

Delegation of Financial Powers Rules, 1960

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State of Assam - Act

Delegation of Financial Powers Rules, 1960

ASSAM

India

Delegation of Financial Powers Rules, 1960

Rule DELEGATION-OF-FINANCIAL-POWERS-RULES-1960 of 1960

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Delegation of Financial Powers Rules, 1960

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1.

Short title and commencement.

(1)

These rules may be called the Delegation of Financial Powers Rules, 1960.

(2)

They shall come into force at once.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Administrative approval" means the formal acceptance by the Department concerned of the proposal for an original work (other than a petty work costing Rs. 3,000 or under) to be undertaken for the Department either by the Public Works Department or the Department to which the work may have been assigned by the Governor. Taken with the provision of funds in the budget, it operates as a financial sanction to the work;

(b)

"Administrative Departments" means the Administrative Departments of the Government of Assam as notified from time to time;

(c)

"Appropriation" means the allotment of a particular sum of money by a competent authority from funds placed at his disposal, to meet specific expenditure;

(d)

"Class of Government servants" means-

(i)

All Government servants, other than ministerial servants, holding posts bearing the same designation in the same Department or Service, and

(ii)

All Government servants holding posts, which have been declared by the Governor or the State Government to be in a single class;

(e)

"Financial sanction" means the sanction of Government or of an authority to which power has been delegated to incur expenditure of public money for a specified purpose and is subject to appropriation of funds;

(f)

"Finance Department" means the Finance Department of the Government of Assam;

(g)

"Financial year" means the period from 1st April to 31st March inclusive;

(h)

"Grade of Government servants" means a sub-division, according to pay of a class of Government servants;

(i)

"Head of a Department" means an authority empowered by Government to exercise the powers of the Head of the Department as specified in these rules. A list of such authorities is given in Schedule IV to these rules;

(j)

"Head of an office" means a Government servant recognised as such by Government or the Head of the Department under whom he may be employed;

(k)

"Non-recurring expenditure" means expenditure sanctioned as a lump sum charge, whether the money be paid as a lump sum or by instalments;

(l)

"Pay" means the amount monthly drawn by a Government servant as defined in Fundamental Rule 9 (21) (a) (i);

(m)

"Re-appropriation" means the transfer of funds from one sub-head of appropriation to another sub-head;

(n)

"Recurring expenditure" means all expenditure which is not non-recurring;

(o)

"Subordinate authority" means any authority subordinate to the Governor or the State Government and includes a Department of Government;

(p)

"Technical sanction" means the sanction of the competent authority to a properly detailed estimate for a work to be done.

3.

General limitations on power to sanction expenditure.

(1)

It is a primary condition of the exercise of all financial powers that public revenues may be spent only on legitimate object of public expenditure. In spite of the sanctions accorded under those delegations no expenditure can be incurred unless funds to cover the charge during the year have been provided. So, when applying for sanction of a competent authority to any expenditure, it should invariably be specified how it is proposed to be met. The sanctioning authority should also indicate how the fund is to be provided on the body of the sanction.

(2)

A subordinate authority may sanction expenditure or advances of public money in those cases only in which it is authorised to do so by-

(i)

the provisions of any legislative enactment for the time being in force or of rules made under such an enactment; or

(ii)

the codes, manuals and regulations issued by the Governor or the Government of Assam; or

(iii)

any order of the Governor or the Government of Assam delegating their powers with reference to the provisions of a legislative enactment or to rules approved or order issued by the Governor or the Government of Assam; or

(iv)

any order of the Governor or the Government of Assam laying down a scale or maximum scale of expenditure; or

(v)

these rules and the Schedules annexed to these rules.

(3)

Nothing contained in sub-rule (2) of these rules shall empower any subordinate authority to sanction without previous consent of the Finance Department an expenditure which involves the introduction of a new principle or practice likely to lead to increase of expenditure.

(4)

The exercise of power by a subordinate authority is subject to the observance of any general or special direction which the authority delegating or re-delegating powers may issue at any time, whether generally or in reference to a particular case.

4.

Effect of sanction.

(1)

Sanction to any given expenditure becomes operative as soon as funds have been appropriated to meet the expenditure and does not become operative until funds have been so appropriated.

(2)

Sanction to recurring expenditure covering a specified term of years becomes operative when funds are appropriated to meet the expenditure for the first year and remains effective for each year or specified term subject to appropriation in such year and subject to the terms of the sanction.

(3)

Disbursing Officers must be careful to observe that no sanction, whether recurring or non-recurring, and whether given in an authorised code or otherwise, is acted upon if appropriation has ceased to be so made in any year.

(4)

Strictly speaking no expenditure should be incurred until the budget has been communicated. Regular and authorised expenditure, however, which cannot in the interest of Government be avoided, such as pay, travelling allowance, die money of witnesses etc., may be incurred in anticipation of budget provision.

The following additional relaxations are permitted :

(a)

expenditure on works in progress from the preceding year under the control of the Public Works Department, on annual repairs and on tools and plants; provided that the expenditure on repairs and tools and plants shall not exceed the provision estimated either for the previous or current year, and that the expenditure monthly on establishments shall not exceed one twelfth of the establishment of the previous year;

(b)

expenditure on departmental lumbering and exploitation work, in the Forest Department in progress from the preceding year.

5.

Provision of funds by Legislature.

- Demands for grants and appropriations for charged expenditure are presented to the Legislature on behalf of the Appropriate Department or authority concerned. After the demands have been voted and the necessary Appropriation Act passed by the Legislature, the amount so authorised become available to the Department or authority concerned for appropriation to meet sanctioned expenditure.

6.

Primary units of appropriation.

(1)

A grant or appropriation for charged expenditure is distributed by sub-heads under which it shall be accounted for. Each such sub-head constitutes a primary unit of appropriation. The primary unit may include provision for both voted and charged expenditure and in that case the amount of each is shown separately.

(2)

Primary units of appropriation shall become one or all of the following :

Pay of Officers.

Pay of establishments.

Allowances and honorary.

Other charges.

Grants-in-aid. Contributions and donations.

Original works-Major works.

Extensions and improvements.

Repairs and maintenance.

Tools and plants.

Assignments and compensations.

Establishment charges payable to other Government Departments, etc.

Reserve.

Suspense.

Expenditure in England.

Loss or gain by exchange.

(3)

The Finance Department may add to the primary units specified in sub-rule any other primary units or prescribe an entirely different set of such units.

7.

Allotment of funds.

- The Department or authority on whose behalf a grant or appropriation for charged expenditure is authorised by the Legislature shall distribute the sanctioned funds, where necessary among the controlling and disbursing officers subordinate to it. Subject to any special rules or orders issued by the Legislature the whole or part of the provision under a primary unit may be placed at the disposal of a Controlling or Disbursing Officer, or the primary unit may be broken into a number of secondary units and the provision under any of these, wholly or in part, may be placed at his disposal.

8.

Appropriation and re-appropriation-General restrictions.

- Powers of Administrative Department subject to the fulfilment of the conditions enumerated in (1) to (16) below on Administrative Department is competent to sanction re-appropriation within a grant from one major, minor or subordinate head to other copies of orders sanctioning re-appropriation being communicated to the Accountant General and Finance Department as soon as such orders are passed and in all cases of re-appropriation a re-appropriation statement in Form K being invariably used.

(1)

The provision under any sub-head shall not be increased by more than 25 per cent of the original provision by

re-appropriation and subject to an overall ceiling of 25 per cent under any minor head.

(2)

No re-appropriation shall be made from the savings under "salaries" to any head.

(3)

No new service will be introduced by the re-appropriation whatsoever. No expenditure shall be incurred on an object for which no provision exists in the budget without making provision.

(4)

The re-appropriation should not have any effect of undertaking or recurring liability.

(5)

No re-appropriation will be permitted for increasing the budgetary provision for travelling allowance of officers and establishment and contingencies.

(6)

Subject to the "Explanation" given below the provision under a sub or minor Head affected by the re-appropriation will not be restored in subsequent years.

(7)

Subject to the "Explanation" given below the re-appropriation should not affect or reduce the volume or physical target of work originally contemplated to be done.

(8)

Subject to the "Explanation" given below the re-appropriation will not have the effect of restoring a cut or reduction made by the Finance Department after scrutiny of the budget proposal.

(9)

No re-appropriation can be made from sub-head accommodating expenditures which is likely to be reimbursed by the Government of India or any other agency to any sub-head which does not accommodate such reimbursable expenditure.

(10)

No re-appropriation can be made from the plan budget to the normal budget.

(11)

No re-appropriation can be made from a head accommodating a centrally sponsored Scheme.

(12)

No re-appropriation will be allowed to enhance provision under a works project or under a suspense Head only to purchase materials unless such materials are required for use during the year.

(13)

In a case in which provision made in the budget under a sub-head is expected to exceed, re-appropriation should ordinarily be postponed until a reliable forecast is possible, as the information available in the earlier part of year is not always a safe guide for making re-appropriation.

(14)

The following restrictions as laid down in Rules 107 to 111 of the Budget Manual will be scrupulously observed :

(a)

No appropriation will be sanctioned from a charged Head to a voted Head and vice versa;

(b)

No re-appropriation will be sanctioned from a provision made for Sixth Schedule areas to general and vice versa;

(c)

No re-appropriation shall be sanctioned for any purpose whatsoever out of provision obtained through supplementary demand voted by the Assembly for specific purposes. The same principle applies to supplementary charged appropriation;

(d)

No re-appropriation will be sanctioned to increase the provision under secret services beyond a limit of 25 per cent of the original provision made under the budget.

(15)

Permissible re-appropriations within the grant or appropriations of a year can be sanctioned at any time within the year but not after expiry of the year.

(16)

Re-appropriations from saving under any new sub-head provided through schedule of new scheme or under any existing sub-head accommodating provision made through such schedule are not permissible without explicit concurrence of Legislature obtained through the process of resolution.

Explanation. - When there are two schemes both of which can be completed by alteration of time schedule and increasing or reducing the provision in a particular year without affecting the total approved expenditure of both the schemes, re-appropriations can be made. For instance, of Scheme 'A' a production target of 50 Units is time schedule for completion in 4 years and Scheme "B" is scheduled for completion in 3 years with a production target of 60 units, and if the Administrative Department feels that by re-appropriation of funds Scheme "B" to Scheme "A" the Scheme "A" can be completed in, say, two years, without reducing the targeted unit production to 50 and it is felt that by reducing the approved funds for Scheme "A" in the last two years and adding to Scheme "B" the same targeted production of Scheme "B" can be fulfilled so that the total expenditure over the period, as approved for "A" and "B" is not increased then re-appropriation is permissible in such a case, a clear statement showing the releasing of the time schedule and the expenditure shall be sent simultaneously to the Finance Deputy. The restriction to keep the limit of expenditure within an over-head ceiling of 25 per cent under a sub-head will not however apply in such cases although overhead ceiling under a minor head will not be affected.

8A.

Appropriation and re-appropriation-General restrictions-Powers of Commissioners of Divisions, Heads of Department and other authorities.

- The following noted officers have been authorised to sanction re-appropriation within the heads subordinate to a minor head subject to fulfilment of the conditions laid down below :

1. Commissioner of Divisions;
2. Heads of Departments;
3. District Judges;
4. District Officers;
5. Director, Veterinary and Animal Husbandry Department;
6. Superintendent, Assam Secretariat Press;
7. Examiner, Local Accounts;
8. Chief Inspector of Factories;
9.
Chief Inspector of Boiler;
10.
Public Works Divisional Officers;
11.
Military Secretary to the Governor;
12.
High Commissioner for India-

(a)

that funds must not be re-appropriated to meet an item of expenditure which has not been sanctioned by proper authority;

(b)

that the re-appropriation does not involve the undertaking of a liability which is likely to extend the financial year is question;

(c)

that funds provided for general areas should not be re-appropriated to provision for Sixth Schedule (Part A) Areas and vice versa;

(d)

that no re-appropriation shall be made from savings under Pay of Officers and pay of establishment;

(e)

that no re-appropriations shall be made from or to the head "Contract Contingencies";

(f)

that all re-appropriations made by officers named shall be in respect of the grants placed at their disposal;

(g)

that the re-appropriation is not made for a new service not completed in the budget for the year nor for an object not specifically included in the estimates and for which no provision has been made;

(h)

that the re-appropriation has not the effect of increasing the expenditure on an item the provision for which has been specifically reduced by a vote of the Assembly;

(i)

(i)

no re-appropriation shall be made from or to the detailed head "Honorarium" under the sub-head "Allowance and Honorarium";

(ii)

that the re-appropriation can be made to the head "Secret Services Expenditure" when the increase is up to 25 per cent of the original provision made in the budget. This power can be exercised only with the concurrence of the Finance Department to the Government";

(iii)

no re-appropriation shall be made by the Head of Department from the saving under any other head to the head "Travelling Expenses".

The following instructions apply to re-appropriations in the Public Works Department:

(i)

The provision for original works in each department forms a separate minor head under the major head "50-Civil Works Under Rule 35" of the Assam Rules of Executive Business; the Minister-in-charge of the Public Works Department can re-appropriate between items included in any one of these minor heads, whilst the Finance Department can re-appropriate from one such minor head to another.

(ii)

Savings under the "original works" minor heads are not regarded as earmarked for the administrative department concerned but may be freely re-appropriated by the Finance Department, to meet urgent demands under another such minor head.

(iii)

Ordinarily re-appropriation may be made from savings on works only for-

(1)

Works in progress.

(2)

Works (not amounting to new services in the primary sense of the term) which can be completed within the years. Exceptions to this rule may be made in certain cases, e.g., where a building, road, embankment or construction has been destroyed or so damaged that it must be rebuilt or repaired without delay. In such cases re-appropriation from savings may be allowed even though the work cannot be completed within the year.

The general reserve should be utilised for-

(1)

incomplete works of the previous year;

(2)

works in progress when more than the re-appropriation for the work can be spent during the year;

(3)

unforeseen work of every kind provided for a new service in not involved;

(4)

addition to the repairs grant for the year.

Copies of orders sanctioning any re-appropriation must be communicated to the Accountant General and the Finance Department as soon as such orders are passed. In all cases of re-appropriation sanctioned either by the controlling officers or by the Government, a re-appropriation statement in Form 'K' should invariably be used. In cases where Government sanction is required, the statement should be submitted in triplicate. The Finance Department will not sanction re-appropriation statement received by them after the 15th March.

9. Creation of temporary posts.

(1)

Notwithstanding anything contained in these rules no post shall be created-

(a)

in any office or Department unless there exists in that office or Department a post of a similar character on a rate or scale of pay approved by the Governor;

(b)

in contravention of the instructions regulating staff composition and work standard;

(c)

unless funds to meet the cost of the post can be found from within the provision placed at the disposal of the authority concerned.

(2)

For the purpose of Clause (a) of sub-rule (1) "department" means all or any of the offices under the administrative control of the Head of a Department.

(3)

The power conferred on a subordinate authority to create temporary post shall not, unless otherwise directed by the Governor, be exercised in respect of any service unless that service is under the control of that authority.

10. Powers of the subordinate authorities.

(1)

Subject to the provisions of these rules, the Departments of the State Government, Heads of Departments and authorities subordinate to them shall in relation to creation of temporary post, renewal of sanction for staff, scheme, sanction of work expenditure, incurring of contingent expenditure, incurring of miscellaneous expenditure, and write off of losses, etc., have the powers respectively specified in Schedules I, II and III; provided that the power delegated to subordinate authority can also be exercised by the higher authority in relation to such subordinate authority.

(2)

A Subordinate authority shall, in regard to matters not covered by Schedules I to III, exercise such powers as may be specified from time to time by general or special order of the Governor.

(3)

An authority empowered by or under these rules to incur contingent expenditure or miscellaneous expenditure shall exercise such power subject to the following conditions, namely :

(a)

The rules for the supply of articles required for the public service and the rules regulating the purchase of stationery stores for the public service contained in Appendix 10 of the Assam Financial Rules and general or special orders on the subject issued from time to time shall be followed.

(b)

In regard to contingent expenditure on each item specified in columns 2 of the Schedules to the rules, orders, restrictions or scales specified in columns 4 and 5 of the Schedules against that item shall be observed.

(c)

In regard to miscellaneous expenditure any rules, orders, restrictions or scales as may be made, imposed or prescribed by the Governor, shall be observed.

(d)

No contingent or miscellaneous expenditure of an unusual character or involving any departure from the rules, orders, restrictions or scales, referred to in Clauses (b) and (c) shall be incurred nor shall any liability be undertaken in connection therewith, without the previous consent of the Finance Department.

Explanation. - In this rule and the Schedules-

(a)

"Contingent expenditure" means all incidental and other expenditure, including expenditure on stores, which is incurred for the management of an office, for the working of technical establishment, such as laboratory, workshop, industrial installation, store depot, and the like but does not include any expenditure which has been specifically classified as falling under some other head of expenditure, such as "Works", "Stock" "Tools" and "Plants"; and

(b)

"Miscellaneous expenditure" means all expenditure other than expenditure falling under the category of pay and allowances of Government servants, leave salary, pension, contingencies, grants-in-aid, contributions, works, stock, tools and plant and the like.

11. Grants and loans.

- Department of Government have full power to sanction loans and renew grants-in-aid including stipends and scholarships tenable in India :

Provided that-

(a)

such grants-in-aid, loans, stipends and scholarships are in accordance with the rules or principles prescribed with the previous consent of the Finance Department; and

(b)

in sanctioning, loans, grants-in-aid, stipends and scholarships the sanctioning authorities should indicate that the provision of sub-rule (a) above has been complied with;

(c)

the rate of interest on loan and the period of repayment thereof are fixed with the previous consent of the Finance Department unless the rate of interest on such loan and the period of repayment thereof are prescribed in any general or special order of that department.

12. Sanction or consent of the Finance Department.

- Wherever the consent or sanctions of the Finance Department is required by these rules, such consent or sanction shall be expressed in writing and communicated to the Audit Officer by that Department.

13.

Communication of financial sanctions.

(1)

Orders conveying the sanction of expenditure or advance of public money shall be communicated as follows :

(a)

If the order is issued by an Administrative Department in exercise of the powers delegated under these rules, by the Secretary, Additional Secretary, Joint Secretary, Deputy Secretary, Under-Secretary of the Department or by any other officer as may be specially empowered under Rule 12 of the Assam Rules of Executive Business;

(b)

If the order is issued by a Head of a Department or an authority subordinate to them to whom the power to sanction has been delegated by that authority; or by any gazetted officer authorised with the approval of the Finance Department to sign for him :

Provided that the copies of the sanctioning memorandum for the Accountant General, Assam, shall be forwarded by the Financial Adviser in the case of the Administrative Department and Finance and Accounts Officer in the case of the Heads of Departments where officers exist;

(c)

If the order is issued by the Governor relating to his own establishment by the Military Secretary to the Governor;

(d)

If the case is not covered by these rules where the expenditure has been sanctioned with the concurrence of the Finance Department, by the Secretary, Deputy Secretary, Under-Secretary to the Government in the Finance Department or any other officer, of that department as may be specially empowered in that behalf under Rule 12 of the Assam Rules of Executive Business;

Provided further that the views of Financial Adviser and Finance and Accounts Officer should be taken, where they are required to forward the sanctioning memorandum to the Accountant General.

(2)

The sanctioning authority should in each case intimate to the Accountant General how the expenditure is proposed to be met.

I

[See Rule 9]

Powers Delegated to the Department of Government

The following powers are delegated to the Departments of Government with up-to-date amendments generally. (Certain

Departments of Government, have, however, been given specific powers to incur expenditure on particular items as detailed in Schedule III).

S. No.

Nature of power

Extent of power

General conditions, if any

(1)

(2)

(3)

(4)

1.

Creation of temporary posts in service, cadres and offices under their control including extension of posts created by subordinate authorities.

Non-Gazetted on pay scale post with the minimum not exceeding Rs. 1515 p.m. for a period not exceeding 12 months.

The power conferred to create temporary post shall be exercised only in case of urgency, i.e., when an appointment is to be made immediately in the public interest and reference to the Finance Department would cause undue delay.

It will further be subject to the following conditions :

(i) Copies of all sanctions should be forwarded to the Finance Department immediately.(ii) No post shall be created in the Secretariat office of the department.(iii) Availability of funds by valid appropriation.(iv) Conformity with standard scales of pay approved for similar posts in the same department.(v) Posts should be in addition to the cadre in existence. No new category of posts should be created.(vi) No advance increment should be given without prior approval of the Finance Department.

Note. - (1) The authority creating the post shall have power to abolish the same before expiry of the stipulated period if circumstances justify the same. If a post is initially created for a shorter period, the authority creating the post shall be competent to extend it to the full limit of its power. Extension thereafter in all cases shall invariably require the approval of the Finance Department.(2) In case of posts in the Secretariat Department is reference to Finance Department will be necessary.(3) Persons appointed to the post will be entitled to Dearness and other allowances as admissible under the rules for the time being in force.

2.

Renewal of sanction to continuing schemes (both plan and non-plan) sanctioned by the Finance Department.

Renewal of sanction for staff (both plan and non-plan) sanctioned by Finance Department.

For one year at a time, for the full period of the sanctioned scheme.

(a) For one year at a time for the full period of the sanctioned scheme in respect of posts under "plan". Subject to a maximum period of five years. (b) For one year at a time for 5 years in respect of other posts.

Subject to budget provision and conformity with the original sanction issued by the Finance Department. Department are authorised to issue sanction to incurring of contingent expenditure included in the continuing scheme, provided no expenditure is sanctioned which has the effect of substantially altering the scope of the scheme as accepted by the Finance Department. (i) Availability of funds by valid appropriation. (ii) Conformity with original sanction. (iii) Circumstances which weighed in creating the posts still exit.

3.

To make minor deviations in a sanctioned scheme.

Administrative Departments are authorised to make minor deviations, in the sanctioned scheme subject to the following : (i) the overall allotment for the scheme in the year in question as also, in case in of Plan Schemes, in the plan period, is not exceeded by more than 10 per cent and the plan ceiling is not exceeded in case of plan scheme; (ii) no increase is made in the recurring expenditure against a saving in non-recurring items of expenditure; (iii) if the deviation in the scheme involves creation of new posts only those posts will be created which are within the competence of the administrative department or the Head of the Department in terms of the powers already to them; (iv) expenditure on special items of contingencies such as require the sanction of Finance Department will continue to be referred to Finance Department; provided that no approval of Finance Department will be required if items of contingencies have already been included in the approved scheme. (v) the deviations do not have the effect of scaling down the physical targets set for the scheme; and (vi) the saving which may be available within the overall allotment for the scheme will be not utilised for any 'new item of expenditure' which requires prior Legislative approval before the expenditure is incurred.

4.

Issue financial sanction to schemes.

The Administrative Departments are authorised to issue financial sanction to new Schemes (plan and non-plan) scrutinised and approved by the Finance Department and included in the Budget, provided the following conditions are fulfilled : (1) The estimates for works other than those to be constructed through P.W.D. should be complete with all details giving the fullest break down of expenditure in the scheme referred to the Finance Department. (2) Some idea as to the manner in which the lump sum provision is to be utilised is

given if lump sum provision has perforce to be suggested.(3)
Complete details are given of the staff existing and additional shown separately in the course of the year and sanction obtained. The Administrative Departments exercise control to see that actual appointments are made only as and when necessary :Provided further that no expenditure even within limit prescribed in this sub-rule, shall be sanctioned without the previous consent of the Finance Department if it has the effect of substantially altering the scope of the scheme as accepted by the Finance Department.

5.

To accord administrative approval to plans and estimate for civil works to be carried out by the P.W.D. or public sector undertaking under the control of the Administrative Departments.

Rs. 3 lakhs for residential works under plan/non-plan for each unit. Rs. 10 lakhs for non-residential works under plan/non-plan for each unit.

Provided-1. The

estimates are scrutinised by the appropriate officers of the P.W.D. or by the Chief Engineer of other public sector undertaking under the administrative control of the Department.2. The norms prescribed by Government regarding floor space of residential and official building are not exceeded.3. The building is assigned to the holder of a specified post who is bound by terms to live in it.

Note 1.- Subject to the conditions

specified above the Public Works Department is the Administrative Department for the purpose of granting administrative approval for projects involving outlay on additions and alterations to existing residential buildings that are borne on its books. In case of additions and alterations to such building in the Sixth Schedule (Part A) Areas, administrative approval will be communicated by Hill Areas Department.2. - The power does not extend to acquisition of land for which sanction of Revenue/Finance will be necessary.

6.

Sanction miscellaneous expenditure any individual case or in any object for which no scale or limit to its power of sanction is prescribed.

Up to Rs.2,000 if

requiring in any single case.

Up to Rs.5,000 if non-recurring in any single case.

Provided that-(i) Budget provisions

exists.(ii) The expenditure is not on a new service which was not contemplated the Budget.

7.

Sanction of expenditure on contingencies.

Subject to-(a) Availability of funds;(b)

Observance of procedural and other general directions laid down

in the Assam Contingency Manual and special orders issued by Government from time to time.

(1)

Rent on land and building leased out to the Government offices.

Full powers.

Subject to-(1) Budget Provision.(2) the rent is fixed by the competent authority under the Assam Urban Areas Rent Control Act, in urban areas.(3) the Deputy Commissioner certifies as to the reasonableness of rent outside urban areas.(4) the floor is in accordance with the standard prescribed by the General Administration Department.

(2)

Purchases of type-writers duplicators and Calculating Machine.

Do.

Subject to-(i) Budget provision.(ii)

Purchase is made from suppliers approved by General Administration Department.

8.

(1) Sanction to writing off of the irrecoverable value of stores, livestock or public money including loss of stamps.

Up to Rs. 25,000 in any single case.

Provided that-(a)

the loss does not disclose;(b) defect of system the amendment of which would require a reference to the Finance Department; or(c) a serious negligence on the part of a particular Government servant or servants which might call for disciplinary action requiring a reference to the Finance Department: Provided further that all cases of defect in system, theft, embezzlement, fraud or serious negligence should be brought to the notice of the Finance Department.

Note.- The expression "livestock"

wherever it occurs should be held to mean elephants, cattle, mule, ponies, sheep, goats, pigs and poultry.

(2)

Write off of the value of unserviceable stores.

Full powers

The Standing Condemnation Board constituted by the Administrative Department has approved of the condemnation of the articles.The Standing Condemnation Board constituted by the Administrative Department shall consist of-

{|

(i)

Secretary

.....Chairman.

(ii)

Head of Department

.....Member.

(iii)

A technical officer nominated by Administrative Department
.....Member.

(iv)

Financial Adviser of Administrative Department
.....Secretary.

|-

| 9.

| Sanction refunds of revenue not otherwise
provided for.

|

| UP to a maximum Rs. 10,000

|

| Subject to any rules that may be applicable and
unless the refund is ordered of by a Court.

|-

| 10.

| Sanction the remission of disallowances by
audit officers.

|

| Up to Rs. 500 in each individual by case.

|

| Subject to an
aggregate maximum of Rs. 500 in the case of any establishment in
which a number of overdrawals are due to the same case and
further subject to the following conditions : (1) that the
money was drawn in good faith. (2) that no defect of system
is disclosed. (3) that the overdrawal has not involved other
expenditure requiring reference to the Finance Department or
orders of the Governor.

(4)

that it does not
involve an addition of pay of more than Rs. 100 per mensem to
any individual and if the overdrawal is challenged within 12
months, subject to the following further considerations :

(1)

That it has not
been caused by any delay in notifying a promotion or
reversion. (2) When a disallowance is remitted under this
rule, the reasons, therefor should invariably be recorded by the
remitting authority. (3) All sanctions to forego recovery
under these orders should be communicated to the Accountant
General. It is open to the Accountant General to require that
the action taken in any case should be reported to the Finance
Department for orders.

|-

| 11.

| Sanction deputation of Government servants
(temporary and permanent) on approved course of training or
instruction.

|

| Full powers

|
| Provided that-(i) The course of training and the deputation of officers is in accordance with a training plan prepared with the approval of Administrative Reforms and Training Department. If such a training plan has not been prepared approval of the Administrative Reforms and Training Department should be taken in each case.(ii) The officers so deputed will be treated as on duty under F.R. 9 (6) (b) (i) and they will be entitled to the following :Pay-The pay drawn at the time he was placed on such duty under F.R. 20.D.A. - As admissible under the rules.C.A. - (Cash allowance. Winter allowance, House rent allowance, Hill allowance, etc.) up to maximum period of 4 months under S.R. 3 (6) read with S.R. 118.

,119.T.A. - As on tour under S.R. 289.L.A. - As admissible as per standing orders of Finance Department for a period not exceeding one year.

| -
| 12.
| Accept tender.

|
| Full powers

|
|
| -
| 13.

| To sanction test relief to Agricultural loans, Rehabilitation loan, Distress loans granted and loans to Displaced persons. Gratuitous relief.

|
| Do.

|
| Subject to-(1) Budget provision and(2) Observation of rules regulating issue of such loans/grants/relief.

| -
| 14.
| To sanction medical reimbursement.

|
| Do.

|
| Notes.- In case where artificial appliance have to be purchased (e.g. for diseases like polio, T.B., etc. or in cases requiring surgical operation, etc.) reimbursement of expenses incurred in connection with the procurement of such artificial appliances (e.g. travelling expenses, hospitalisation charges, etc., if any, including the actual cost of appliances may, where necessary and justified, be allowed in consultation with the Health (A) Department.

| -
| 15.

| To sanction pre-audit claims up to 6 years.

|

| Do.

|

|

| -

| 16.

| To sanction political pension and grants to political pensioner.

|

| Do.

|

| Subject to the rules regulating such pension and grants.

| -

| 17.

| Fixation of remuneration of lawyer.

|

| Do.

|

| Subject to guidelines laid down by L.R. with the approval of Finance Department:

| -

| 18.

| To sanction local printing of standardised forms.

|

| Do.

|

| Provided the Government Press expresses inability to supply or the Government Press unable to supply within 60 days of requisition. In respect of forms of money receipt special order of Finance Department should be obtained.

| -

| 19.

| Grant of Honorarium to the member of the staff up to the level of superintending work in any Department of Secretariat.

|

| Rs. 500, in individual case subject to the limit of 20% of staff up to the level of the Superintendents.

|

| Power of sanctioning honorarium shall rest with the Commissioners/Secretaries of the Department.

| -

| 20.

| To make People State guests by the G. Aid.

|

| Full powers

|

| Subject to the observance of existing rules.

|-

| 21.

| Grant specifically provided in the Budget in favour of a named individual or non-statutory, nonofficial institution or organisation.

|

| Do.

|

|

|-

| 22.

| To sanction a post of driver whenever a vehicle is sanctioned.

|

| Do.

|

|

|-

| 23.

| To sanction additional amount if any required for purchase of vehicle due to increase in price.

|

| Full powers

|

| Provided the original sanction for purchase of vehicle is concurred by Finance Department and the purchase is made within the same financial year.

|-

| 24.

| Report on Departmental vehicle including purchase of tyres, tubes and spare parts, without fixtures /furnishings.

|

| 1. For trucks up to 3 years old, Rs. 10,000 for each truck in a financial year.

|

| Provided that-(1) Budget provision exists.

|-

|

|

|

| 2. For trucks more than 3 years old, Rs 20,000 for each truck in a financial year.

|

| (2) This being subject to audit; a history register should be maintained for each vehicle showing the details of mileage done, spare parts purchased, major and minor repairs made to the vehicle and cost incurred in respect of each item of expenditure.

|-

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|
|

| 3. For other four wheeler motor vehicles up to
3. years old, Rs. 5000 for each vehicle in a financial year.

|
|-
|
|
|
|

| 4. For other four wheeler motor vehicles more
than 3 years old, Rs. 10,000 for each vehicle in a financial
year.

|
|-

| 25.
| Purchase of books, maps, periodicals and
Newspapers.

|
| Full powers

|
| Provided-(i) Budget provision exists and such
purchases are necessary for the working of the Department.(ii)
And subject to maintenance of a register where up-to-date
record c books purchased is kept.

|-
| 25.

| (a) To accord Full powers sanction of house
building advance to all employees who are specially recruited by
the Department such as Research Officer, Asstt. Research
Officer, Research Assistant, Drivers, Peons.

|
| Full powers

|
| Subject to-(i) Fulfilment of conditions laid
down by Finance Department from time to time.(ii) Observance
of all rules and procedures and availability of fund.

|-
| 25.

| (a) To re-allocate fund for house building
advance to the Heads of Departments under their respective
control.

|
| Full powers

|
| Subject to-(i) Fulfilment of conditions laid
down by Finance Department from time to time.(ii) Observance
of all rules and procedures and availability of fund.

|-
| 26.

| Issue sanction to a Central Sector Scheme/
Centrally Sponsored Scheme/N.E.C. Scheme except-(a) Creation

of posts;(b) Purchase of vehicles; and(c) Purchase of equipments, costing more than Rs. 10,000 each.

|

| Full power, with regard to the Central Government N.E.C. share, to Secretary of the Department.

|

| Provided that-(1) Budget provision exists for the scheme.(2) Fund for the scheme has been released by the Central Government, N.E.C. to the State Government.(3) The financial outlay of the scheme in respect of Central Share and State Share (if any) during the financial year is within Rs. 200 Lakhs.(4) The sanction strictly conforms with the approved pattern of the scheme, viz. as approved by the Central Government/ N.E.C. as the case the case may be.

|}

II

Powers delegated to Heads of Departments

Note - The following powers are delegated to the Heads of Departments with up-to-date amendments generally. Certain Heads of Departments have, however, been given specific powers to incur expenditure on particular items as detailed in Schedule III.

S. No.

Nature of Power

Extent of power

General conditions, if any

(1)

(2)

(3)

(4)

1.

Creation of temporary posts in the services, cadres and offices under their control.

Posts on pay scales with the minimum not exceeding Rs. 1255 per month for a period not exceeding 6 months.

The power conferred

to create temporary posts shall be exercised only in case of urgency, i.e. when an appointment is to be made immediately in the public interest and reference to the Finance Department or Administrative Department would cause undue delay. It will further be subject to the following conditions :(i) Copies of all sanctions should be forwarded to the Administrative Department immediately.(ii) No post shall be created in the office of the authority concerned.(iii) Availability of funds by valid appropriation.(iv) Conformity with standard scales of pay, approved for similar posts in the same Department.(v) Posts should be in addition to the cadre in existence. No new category of posts should be created.(vi) Observance of instructions regarding staff composition and work standard where prescribed.(vii) No advance increment should be given without prior approval of the Finance Department.

Note.- The authority creating the post

shall have power to abolish the same before expiry of the stipulated period if circumstances justify the same : (1) If a post is initially created for a shorter period the authority creating the post shall be competent to extend it to the full limit of his power. Extension thereafter for a period of 12 months may be granted by the Administrative Department vide item 1 of Schedule. (2) Persons appointed to the post will be entitled to dearness and other allowances as admissible under the rules for the time being in force.

2.

To accord administrative approval to plans and estimates for civil works to be carried out by the Public Works Department.

Rs. 2 lakhs for residential works under plan/non-plan; Rs. 4 lakhs for non-residential works under plan/ non plan.

(a) The estimates are scrutinised by the appropriate officer of the Public Works Department. (b) The limits of the prescribed admissible outlay are not exceeded. (c) Floor area must be according to specification admissible for post or category wise. (d) Funds by valid appropriation are available. (For procedure in obtaining administrative approval see paragraphs 236-242 of the Assam Public Works Department Code and Rule 188 of the Assam Executive Manual). Note 1.- Subject to the conditions specified above, the Public Works Department is the Administrative Department for the purpose of granting administrative approval for project involving outlay on additions and alterations to existing residential buildings that are borne on its books. In case of additions and alterations in such building in the Sixth Schedule (Part A) Areas, administrative approval will be communicated by the Hill Areas Department. Note 2.- The power does not extend to acquisition of land for which sanction of Revenue/Finance will be necessary.

3.

To accord administrative approval and sanction expenditure on works to be executed departmentally- Subject to budge provision and that there is technical personnel competent to scrutinise the estimates and supervise the works and that the rules laid down for departmental construction of public buildings (Appendix 8 to the Assam Financial Rules are strictly adhered to).

(a)

Original works

In case of project involving residential building Rs. 50,000; for other works Rs. one lakh.

Note.- The term "residential buildings" does not include Government hostel or quarters for employees on pay scales the maximum of which does not exceed Rs. 1475 per mensem.

(b)

Petty construction on departmental buildings and repairs

Up to Rs. 20,000 in each case

(See Notes on item 71 of Appendix 'B'

and item 28 of Appendix 'C' to the Contingency Manual and also para 13 of the Rules regulating to departmental construction of public buildings (Appendix 8 to the Assam Financial Rules).

(c)

Sanction excess expenditure over the estimates

UP to 5 per cent provided fire total of the exceeded estimate within their power of sanction

(d)

Renewal of expenditure sanction in respect of departmental works in progress

For one year at a time

Subject to budget provision and conformity with the original sanction. Note.- The sanction of a competent authority for executing the work carries with it the sanction for incurring necessary expenditure on the purchase of stores required for the work.

4.

Sanction expenditure for maintenance of departmental buildings and miscellaneous expenditure in any individual case or any object for which no scale or limit to its power is prescribed.

Up to Rs. 500 if recurring in any single case. Up to Rs. 4000 if non-recurring in any single case.

Provided that-(1) the expenditure does not relate to the office of the authority concerned.(2) the expenditure is within the power of the authority.(3) the demand, therefor, has not been refused by the Assembly or the supply restricted at the instance of the Finance Department, and(4) the expenditure is not on a new service which was not contemplated in the budget.

5.

Sanction expenditure on contingencies-

1.

(A) Purchase of instruments, appliances, apparatus, machinery, tools and plant and other stores in India including livestock.

(a) Full power when purchase is made through Central Stores Department or on rate contract or through a duly constituted Purchase Board wherein the Administrative Department and Finance Department and Industries Department (where necessary) are represented

Subject to the budget provision and provisions of the Financial Rules governing the purchase of Stores for the public service (Appendix X of the Assam Financial Rules), and the provisions of the Store Purchase Committee Rules, 1961 (where necessary).

(b) Otherwise up to Rs. 10,000 in each case

provided the cost of each item does not exceed Rs. 1,000.

In consultation with the Industries Department,
where necessary.

1.

(B) Repairs on Departmental vehicles including
purchase of tyres, tubes and other spare parts, without fixtures
and furnishing.

1. For trucks up to 3 years old, Rs. 10,000 for
each truck in a financial year.

Provided that-(i) Budget provision exists.(ii)

This being subject to audit; a history sheet should be
maintained for each vehicle showing the mileage done, major and
minor repairs the vehicle has undergone, spare parts purchased,
and cost incurred in respect of each item of expenditure.

2. For trucks more than 3 years old, Rs. 20,000
for each truck in a financial year. 3. For other four wheeler
motor vehicles up to 3 years old, Rs. 5,000 for each vehicle in
a financial year. 4. For other four wheeler motor vehicles more
than 3 years old, Rs. 10,000 for each vehicle in a financial
year.

1.

(c) (i) Purchase of approved office equipments
such as clock, time pieces, table fans, ceiling fans, water
filter, etc.

(i) Up to Rs. 1,000 in each case.

Subject to Store Rules. The limit refers except
where otherwise stated, to the cost of each article or any
number of articles of the same kind purchased at one time,
whether for any office or a number of offices.

(ii) Purchase of approved office equipments,
such as typewriters.

Full powers

Subject to-(i) Budget provision.(ii)

Purchase is made from suppliers approved by G.A.

Department.Note.- The Commissioners of Divisions are
delegated with full powers for purchasing Typewriters &
Duplicators for offices/establishments under their control.

1.

(D) Repair of Typewriters & Duplicators.

Rs. 750 annually for each typewriter

Machine.Rs. 1200 annually for each Duplicator.

Subject to observance of all rules and
procedure and availability of funds.

5(2)

Purchase of furniture for new office or an
expansion of existing offices or in replacement of old
furniture.

Full powers

Subject to the scales and types of entitlement
of furniture as prescribed by G.A.D.

5(3)

Rent on lands and buildings leased out to the Government.

Up to Rs. 2,000 per month for each building.

Subject to the conditions that-(1) budget provision exists.(2) the rent is fixed by the competent authority under the Assam Urban Areas Rent Control Act in Urban Areas.(3) the Deputy Commissioner certifies the reasonableness of rent outside urban areas.(4) the floor area is in accordance with the standard prescribed by the G.A.D.

5(4)

Local purchase of stationery in case of urgency.

All articles of stationery which are supplied by the State Stationery Store Guwahati must ordinarily be obtained from this Store on indent. When supply from this store is not received and it is absolutely necessary to purchase the articles, local purchase up to Rs. 700 in each case subject to an annual limit of Rs. 15,000 may be resorted to by inviting tenders. A nonavailability certificate is obtained from the Stationery Store and on that basis it is certified in each bill that the Stationery Store is not in position to supply the stationery.

5(5)

Urgent printing at local presses (excluding forms standardised or non-standardised).

There is no objection for utilising local private printing presses where these charge reasonable prices and the subject matter to be printed is not confidential. Where no allotment is made under this head charges up to Rs. 5,000 in each case subject to a total of Rs. 20,000 in a year may be charged to the allotment under office expenses and miscellaneous. These limits include the cost of paper.

Standardised forms of money receipt must never be printed locally without special orders of Finance Department. The work may be distributed after obtaining quotation from different local presses and to the best economic interest of Government. It should be certified in each bill that the printing could not be undertaken by the Government Press and that the bill does not contain any charge for any item above the permissible limit.

5(6)

Purchase of books, maps, periodicals and newspapers.

Subject to the condition that all charges incurred are within the budget allotment sanctioned for the purpose and that no addition is made to the allotments by re-appropriation from any source, without the previous sanction of Government/the sanction of the Heads of Departments is sufficient for the purchase of books, maps, publications, newspapers and periodicals required for the essential need of their offices or those of their subordinates. Such purchase can

be made only when the books etc. are necessary for the working of the department. [For full list of officers authorised to purchase books, maps, etc., please see item 22, Appendix 'C' to the Assam Contingency Manual and also refer to Rules 328-331 of the Assam Executive Manual for further instructions.

5(7)

To sanction POL Bills on hire wages of drivers, handyman of vehicles requisitioned under the Assam Requisition and Control of Vehicles Act, 1968 (Assam Act V of 1969).

Full powers.

Subject to a certificate from the requisitioning authority.

6.

Incur expenditure in connection with Exhibitions, Shows and Fairs.

In case of Exhibitions, Fairs and Shows organised on State wide basis-(1) Up to Rs. 5,000 in each case.(2) Up to Rs. 2,000 in each case of District and local Exhibitions, Fairs and Shows.

7.

Write off of the irrecoverable value of stores (including furniture), livestock or public money.

Up to Rs. 5,000 in any single case.

Provided-(1) the loss does not disclose a defect of system the amendment of which requires the orders of higher authority; or(2) a serious negligence on the part of some officer or officers which might call for disciplinary action requiring the orders of higher authority.

8.

Write off of the value of unserviceable stores including livestock and furniture.

Full powers

Subject to the conditions that-(1) The articles are disposed of by sale which should ordinarily be by public auction.(2) The original value of articles disposed of does not exceed Rs. 25,000 in each case.(3) The Standing Condemnation Board, constituted by the Administrative Department had approved of the condemnation of the articles.

8.(a)

Disposal of unserviceable vehicles.

Not exceeding Rs. one lakh (Rupees one lakh)

Subject to the conditions that-(1) The vehicles are disposed of by sale which should ordinarily be by public auction.(2) The Standing Condemnation Board constituted by the Administrative Department has approved of the Condemnation of the vehicle. The Standing Condemnation Board to be constituted by the Administrative Department shall consist of-

{

(i) Head of Department

-Chairman,

(ii) A representative, Administrative Department

-Member,

(iii) A technical Officer, nominate by the Head of Department

-Member.

(iv) Finance and Accounts Officer

-Member-Secy.

|-

| 9(a)

| Refund of revenue in case not otherwise provided for.

|

| Full powers.

|

| Provided-(1) he is competent authority for grant of refund.(2) no single refund, unless ordered by a Court, exceeds Rs. 2,000.

|-

| (b)

| Refund of deposit not otherwise provided for.

|

| Full power

|

| Provided he is competent to order such refund necessitated in accordance with order of Court.

|-

| 10.

| Award Scholarships/ Stipends tenable in India and sanction other ancillary expenses, such as tour expenses, equipment allowance, tuition fees, book grants, etc., to the stipendiary or scholarship holder.

|

| Full power

|

| Subject to budget provision and the rules and orders of the Department or under any Scheme approved by Finance Department.

|-

| 11.

| Sanction compensatory allowance for furnishing security in cash.

|

|

|

| Compensatory allowance for furnishing security in cash will be granted according to the following scale subject to the condition that a security of less than Rs. 500 will not qualify for any compensatory allowance :Rs. 50 per mensem where the security is over Rs. 10,000.Rs. 35 per mensem where the security is over Rs. 5,000 and not above Rs. 10.

,000.Rs. 20 per mensem where the security is over Rs.

1.

,000 and not over Rs. 5,000.Rs. 10 per mensem where the security is Rs. 1,000 or under.The allowances sanctioned above will be drawn only when security has been furnished. They will not, therefore, be admissible to an officer officiating on the security of another. Where an officer furnished security in instalments and the amount deposited exceeds Rs. 500 his allowance will be calculated with reference to the amount actually furnished.

| -

| 12.

| Accept tender

|

| Full powers.

|

| Note.- This limit will, however, not be applicable when purchase is proposed to be effected on the recommendation of a duly constituted Purchase Board made on the basis of the competitive tendered rates. In such cases the Head of Departments are competent to close the deal including formal acceptance of tender.

| -

| 13.

| Execute contracts and instruments

|

|

|

| As per details in Annexure III.

| -

| 14.

| Sanction advance to Government servant for construction, purchase and repair of houses.

|

|

|

| As per details in Rules 382, 383 and 384 of Assam Financial Rules.

| -

| 15.

| Sanction advances to Government servant for purchase of-

|

|

|

|

| -

| (a)

| Motor Car or Motor Boat.

|

|

|

| As per details in Rule 385 of the Assam Financial Rules.

|-

| (b)

| A Motor Cycle.

|

|

|

| As per details in Rule 386 of the Assam Financial Rules.

|-

| (c)

| Bicycle.

|

| UP to Rs. 600 or the actual price of the bicycle whichever is less.

|

| Subject to the conditions laid down in Rule 387 of the Assam Financial Rules.

|-

| (d)

| Other means of conveyance.

|

|

|

| As per details in Rule 387 of the Assam financial Rules.

|-

| (e)

| A typewriter.

|

|

|

| As per details in Rule 389 of the Assam Financial Rules.

|-

| (f)

| Horse, uniform and accoutrements by a probationary Sub-Inspector of Police.

|

|

|

| As per details in Rule 390 of the Assam Financial Rules.

|-

| (g)

| Revolver by an Inspector or a Sub-Inspector of Police as part of his equipment.

|

|

|

| As per details in Rule 393 of the Assam Financial Rules.

| -

| (h)

| Kit by a Superintendent, Inspector or Sub-Inspector of Police including an Inspector of Excise on probation.

|

|

|

| As per details in Rule 391 of the Assam Financial Rules.

| -

| (i)

| Outfit by the Military Secretary and Aided-Camp to the Governor.

|

|

|

| As per details in Rule 392 of the Assam Financial Rules.

| -

| 16.

| (i) Sanction advances to Government servants under orders of transfer.

|

|

|

| Not exceeding one month's substantive or officiating pay plus the travelling allowance he may be entitled under the rules in consequence of the transfer.

| -

| (ii)

| to any public officer in Are civil department:

|

|

|

| As per details in Rs. 396 of the Assam Financial Rules.

| -

| (a)

| on arrival in India on first appointment.

|

|

|

| Ditto.

| -

| (b)

| on return from leave other than leave on average pay not exceeding four months or deputation out of India.

|
|
|
|
Ditto.
(iii)
to an officer other Ditto, than an inspecting
officer, for himself or an Assistant or Deputy, proceeding on
tour to cover his contingent charges for a month.
Ditto.
-
(iv)
to non-gazetted Ditto, officer or inferior
servants accompanying officers proceeding on tour to cover their
personal travelling expenses for a month.
Ditto.
-
(v)
to gazetted officers to Ditto, cover their
personal travelling expenses for a month.
Ditto.
-
(vi)
to a Treasury Officer Ditto, or a District
Superintendent of Police for expenses connected with a
remittance of treasury.
Ditto.
-
(vii)
for Law suits to Ditto which Government is a
party.
Ditto.
-
(viii)
Sanction advance to patients proceeding to the
Pasteur Institute, Shillong or to a public centre for antirabic

treatment.

|
|
|

| As per separate orders issued by Government
from time to time.

|-

| (ix)
| Sanction to Government servants of non-Asiatic
domicile for passages overseas to themselves and their families.

|
|
|

| As per details in Rule 397 of the Assam
Financial Rules.

|-

| 17.
| To sanction medical reimbursement.

|

| Full powers except for his own case.

|

| Note.- In case when artificial
appliances have to be purchase (e.g., for diseases like Polio,
T.B. etc. or in cases requiring surgical operation etc.,
reimbursement of expenses incurred in connection with the
procurement of such artificial appliances (e.g. travelling
expenses, hospitalisation charges etc. if any, including the
actual cost of the appliances) may, where necessary, be allowed
in consultation with the Health, (A) Department through
Administrative Department in respect of all Officers and staff
under his control.

|-

| 18.
| Sanction pre-audit claims upto 6 years.

|

| Full powers

|

| Provided that if it is certified that the
amount was not disbursed previously.

|-

| 19.
| Grants specifically provided in the budget in
favour of a named individual or non-statutory non-official
institution or organisation.

|

| Full powers.

|

|

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III

Specific Powers Delegated to Certain Departments of Governments, Heads of Departments and Authorities Subordinate

to them

Note. - The Departments of Government, Heads of Departments and authorities mentioned below shall exercise the powers indicated against them in regard to matters covered by this Schedule. In other matters, the Departments of Government and Heads of Departments shall have such powers as have been specified in Schedule I and II.

Sl. No.

Nature of powers

Authority

Extent of Power

General conditions, if any

(1)

(2)

(3)

(4)

(5)

1.

Sanction of expenditure on State guests.

General Administration Department.

Full Powers.

Subject to Budget provision in accordance with the rules or principles prescribed with the prior consent of the Finance Department.

2.

Installation of telephones in offices

Do.

Do.

Subject to observance of principles or general directions laid down in this behalf by Finance Department.

3.

Sanction for disposal of unclaimed unidentified dead bodies

Secy., Genl. Administration Department

Do.

Subject to conditions that Budget provision exists.

4.

Approval of the rates for purchase of typewriter machine (both English and Hindi Language)

Secretary, General Administration (P&S)

Department

Do.

Subject to observance of usual rules and procedure.

5.

Purchase of Misc. articles for day to day use in the Assam Government Branch Press at Jorhat.

Asstt. Director (Ptg.) Jorhat.

Up to Rs. 500 in each case subject to an annual limit of Rs. 10,000

1. Tender for Misc. articles should be sent to Director Ptg. & Sty., with comparative statement for approval of the rate and party in the beginning of the Financial

year.2. Availability of funds against proper Head of expenditure.

6.

Purchase of spare parts, furniture including repairs

Asstt. Director (Printing) Jorhat

Up to Rs. 5000

1. Subject to approval of D.P.S.2. On the same condition as in the case of purchase of Misc. articles. 3. Up to Rs. 500 in case of spare and Rs. 250 for petty repairs in each case.

7.

Hiring of taxi for Mps./ Ministers/ other Dignitaries/ officers of the rank of Secretary and above. Trade Adviser and Director of Movement, Calcutta

Up to Rs. 250 per Taxi

1. Subject to Budget provision.2. Hiring of Taxi should be done when V.I.Ps., Ministers, other Dignitaries or officers of the rank of the Secretary and above are on Government duty supported by Tour Diary.3. Duration of hiring of such Taxi each day should not exceed 12 hours maximum.

8.

Local purchase of stationery
Liaison Officer, Assam House, Shillong
Rs. 2,000 per annum
Subject to the condition that budget provision exists.

9.

Purchase of newspapers and periodicals
Do.
Rs. 1,000 per annum

10.

Repair of furniture, wall clock, Typewriter
Do.
Rs. 2,000 per annum

11.

Purchase of utensils in urgent cases
Do.
Rs. 2,000 per annum

12.

Petty expenditure and office expenses
(including tubes/tube lights etc.)
Do.
Rs. 4000

13.

Electric charges
Do.
Actual charges

14.

Telephone charges

Do.

Do.

15.

Rent/rate etc.

Do.

Do.

Personnel Department

1.

To accord sanction of House building advance to the following categories of employees :

Personnel Department

(A) Full powers subject to fulfilment of conditions laid down by Finance (A& F) Department from time to time.

Subject to observance of all rules, procedure and availability of funds

(i)

All A.C.S. Officers working in the Secretariat.

(ii)

All A.C.S. Class I Officers posted in Guwahati.

(iii)

All A.C.S. Class I Officers working in the State Government undertakings.

2.

Fixation of remuneration of Lawyer.

Chairman, A.P.S.C.

Full Power.

Subject to the guidelines laid down by Legal Remembrancer with the approval of Finance Department.

Personnel (Secretariat Administration) Department

1.

Local purchase of stationery in emergent cases.

Personnel (Secretariat Administration) Department.

All articles of stationery which are supplied by the State Stationery Stores at Guwahati and Shillong must ordinarily be obtained from those Stores on indent. When supply from those stores are not received due to some reasons or other and it is absolutely necessary to purchase the articles, local purchase may be resorted to by inviting tenders subject to the following scales up to Rs. 50 in each case subject to an annual limit of Rs. 4,000.

2.

To accord sanction of house building advances to the following categories of employees :

Personnel (Secretariat Administration) Establishment Department.

Full powers subject to fulfilment of conditions as laid down by Finance (A &F) Department from time to time. Subject to observance of all rules and

procedures and availability of funds.

(i)

All Gazetted Officers from Superintendent upward of the Secretariat.

(ii)

All Stenographers Grade I, II and III.

(iii)

All non-Gazetted employees under Secretariat Administration

3.

Purchase of Spare parts for repairing Duplicating Machine.

Personnel S.A. (E) Department.

Rs. 2,000 (Rupees two thousand) at a time subject to a maximum of Rs. 25,000 (Rupees twenty five thousand) only per annum.

Subject to observance of all rules and procedures, availability of funds and purchase is made at Company's/Dealer's price approved by S.A. (E) Departments.

4.

Sanction of cost of repairing of- Personnel S.A. (E) Department

Rs. 750 annually for each type writer Machine, Rs. 1200 annually for each Duplicating Machine.

Subject to observance of all rules and procedures, availability of funds and repairing firms being approved by the Government.

(i)

Typewriter Machine.

Do.

(ii)

Duplicating Machine.

Do.

(iii)

Electric/Electronic type writer.

Do.

Rs. 1500 annually for each Electronic Type Writer.

5.

Purchase of furniture for the Assam Secretariat.

Secretary of the Department.

Full powers.

The purchases should be confirmed to standard types of furniture' and according to scales prescribed by General Administration Department in consultation with Finance Department.

Revenue Department

1.

Grant of land free of rent to local bodies.

Revenue Department.

(i) Up to a grant of the value of Rs. 10,000.
(i) When given as a site for the construction of schools, hospitals, dispensaries or other public works at the cost of recognised local funds.

(ii) Up to Rs. 1,000
(ii) For the other public purpose to a private individual for services to be performed for the State.

(iii) Up to Rs. 5,000
(iii) When the services are to be performed for the community.

2.
Sanction remission of public demands appearing from any cause to be irrecoverable.

Do.
Up to Rs. 2,000 in any one district in each year.
Provided that-(i) the amount remitted does not exceed the prescribed limitation.(ii) the loss does not disclose a defect of system the amendment of which would require reference to the Finance Department.

3.
Sanction refund, suspensions and remissions of land revenue
Do.
Full powers.
Subject to the condition that the refunds, remissions and suspensions are granted under the Departmental rules.

4.
Compensation.
Revenue Department
Full powers
Subject to the condition that such sanction is issued strictly in accordance with the relevant provisions of the Land Reforms Act.

5.
Sanction of ex-gratia grant to the next kins of persons who lost their lives in natural calamities
Special Commissioner and Secretary Revenue Department
Up to Rs. 5000 in each case
Provided that-(1) Budget provision exists.(2)
On the basis of report furnished by the respective D.C.

6.
Sanction of ex-gratia grant to the persons who lost their limbs or both the eyes in natural calamities
Do.
Up to Rs. 2500 in each case
Do.
Director of Land Records

1.

Sanction creation of temporary posts.

Settlement Officers.

On pay scales with the minimum not exceeding
Rs. 900 p.m. for a period not exceeding 3 months.

In connection with settlement under their
control.

2.

Sanction creation temporary posts.

Director of Land Records.

On pay scales with the minimum not exceeding
Rs. 1125 p.m. for a financial year.

In connection with settlement operation.

3.

Rent on lands & buildings leased out to
Government.

Do.

Up to Rs. 350 p.m. in each case for the purpose
of settlement works only

Subject to availability of funds and production
of a certificate from the E.E. to the effect that a suitable
public building is not available for the purposes and a
certificate from the D.C. as to the reasonableness of rent.

4.

Local purchase of stationery in case of
urgency.

Director of Land Records

Up to Rs. 100 in each case subject to an annual
limit of Rs. 850.

When supply from Government stationery stores
are not received on indent due to some reasons or other and it
is absolutely necessary to purchase the article, local purchase
may be resorted to by inviting tenders.

5.

Urgent printing at local presses (excluding
forms standardised or non-standardised).

Director of Land Records

Up to Rs. 375 in each case subject to a maximum
of Rs. 1500 in a year for the purpose of settlement operation
only.

Subject to the condition that prices for such
printing are reasonable and the paper to be printed are not
confidential. Further, where no allotment is made under this
head, the amount permissible may be charged to the allotment
under office expenses and miscellaneous. These limits include
the cost of paper. The work may be distributed after obtaining
quotation from different local presses and to the best economic
interest of Government. It should be certified in each bill that
the printing could not be undertaken by the Government Press and
that the bill does not contain charge for any item above the
permissible limit.

6.

Creation of temporary post of Chairmen for S.
Ks.

Director of Land Records

For a period of 8 months or till the field
season is over, whichever is earlier.

In connection with Land Records works in
general.

Director of Surveys

1.

Sanction of advances to Khalasis of the survey
department.

Director of Surveys.

(a) Up to Rs. 50,000 (Fifty thousand) in each
year.

In order to grant advances of Railway fare and
one month's pay to Khalasis, etc. before they take the field.

(b) Up to Rs. 25,000 (Twenty-five thousand) in
each year.

For paying off traversers and their squads pay
and their Railway fares to their home.

2.

Sanction creation of temporary posts.

Director of Surveys.

On pay scales with a minimum not exceeding Rs.
930 for the field season.

IVth Grade Field staff during season only.

Excise Department

1.

Sanction refunds or remission of excise
revenue.

Excise Department.

Full power.

Subject to the conditions that the refunds or
remissions are granted under the Departmental Rules.

Commissioner of Excise

1.

Refund of opium and excise revenue.

Commissioner of Excise.

Full power.

2.

Remission of irrecoverable excise revenue.

Do.

Do.

Provided that the failure is not due to
excessive or reckless or speculative bidding at auctions.

Stamps Department

1.

Refunds of stamps revenue.

Stamps Department.

Full power.

Subject to the Departmental Rules.

2.

Refund of the pleader's certificates stamps.

Superintendent of stamps.

For Pleaders, Mukhtears and Revenue Agents
certificates when they are not made use of.

3.

Refund of process fees under the Court Fees

Act.

The Judge of Court.

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Forest Department

1.

Make Forest concessions.

Administrative Department.

Full power.

Provided the concession granted is in
accordance with the terms of a forest settlement-(i) For
construction of large public works o Utility.(ii) For
village communities, public bodies, Departments of Government
and sections o the community in their collective capacity.(iii)

In other cases.

2.

Sanction special grants of timber or other
forest produce free or at favourable rates for special purposes.

Administrative Department.

(i) Up to Rs. 10,000.(ii) Rs. 3,000.(iii)

Rs. 1,500.

3.

Sanction refunds of forest revenue.

Do.

Up to Rs. 5,000 in any single case.

4.

Pass orders authorising the sale of stores,
livestock, tools and plant and forest produce without payment of
the value in full at the time of delivery.

Do.

Up to Rs., 10,000.

Provided that credit will be given with
suitable safeguard for ultimate recovery.

5.

Sanction all usual payments on account of items
classified as revenue expenditure in the Forest Department Code.

Do.

Full power.

6.

Sanction all capital expenditure in the Forest
Department.

Do.

Up to Rs. 50,000.

7.

Accept tender.

Do.

Full power.

8.

Writing off of irrecoverable forest revenue.

Do.

Up to Rs. 2,000.

9.

Writing off of irrecoverable advances in the Forest Department.

Do.

Up to Rs. 2,000.

10.

Writing off of the value of stores, livestock, tools and plant, timber and other stock.

Do.

Up to Rs. 4,000 in each case.

Provided the loss does not disclose-(a) defected system the amendment of which would require a reference to the Finance Department-(b) a serious negligence on the part of a particular Government servant or servants which might call for disciplinary action requiring a reference to the Finance Department.

11.

Writing off of the irrecoverable value of stores, livestock or public money, lost by fraud or the negligence of individual or other causes.

Do.

Up to Rs. 5,000 for value of stores and livestock and Rs. 2,000 for money.

Provided that the loss does not disclose-(a) defect of system the amendment of which would require a reference to the Finance Department; or (b) a serious negligence on the part of a particular Government servant or servants which might call for disciplinary action requiring a reference to the Finance Department.

Refund and write

off

12.

Refund of forest revenue.

(a) Conservator of Forest.

(a) Up to Rs. 1,500 in each case.

(b) Divisional Forest Officers (including, D.C. incharge Forest, Mizo District).

(b) Up to Rs. 300 in each case.

13.

Refunds in cases not otherwise provided for.

All Disbursing Officers.

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Provided that-(1) the refund is necessitated by an order which he is himself competent to pass; and(2) no

single refund unless ordered by a Court, exceeds Rs. 500.

14.

Writing off of irrecoverable revenue in the Forest Department.

(a) Conservator of Forest.

(a) Up to Rs. 1,000 in each case.

(b) Divisional Forest Officers (including D.C. incharge Forest, Mizo District).

(b) Up to Rs. 100 in each case.

15.

Writing off of the irrecoverable value of stores, livestock, tools and plant, timber and other stock (including furniture).

(a) Conservator of Forest.

(a) Up to Rs. 2,000 in each case.

Provided that the loss does not disclose-(1) defect of system, the amendment of which requires the order of higher authority; or (2) a serious negligence on the part of some officers which might possibly call for disciplinary action requiring the orders of higher authority.

(b) Divisional Forest Officers (including D.C. incharge Forest, Mizo District).

(b) Up to Rs. 350 in each case.

16.

Writing off of irrecoverable advances.

Conservator of Forest.

Up to Rs. 500 in each case.

17.

Writing off of public money lost by fraud or the negligence of individual or other causes.

(a) Conservator of Forests as Head of the Department.

(a) Up to a limit of Rs. 1,000.

Provided that the loss does not disclose-(1) a defect of system, the amendment of which requires the order of higher authority; or (2) a serious negligence on the part of some officer or officers which might possibly call for disciplinary action requiring the order of higher authority.

(b) Divisional Forest Officers (including D.C. incharge Forest, Mizo District).

(b) Up to Rs. 100.

On the same condition as above.

18.

Writing off of irrecoverable value of property including building due to loss by fire : Stores and equipment.

Conservator of Forest.

Up to Rs. 1,000.

As per provisions in the Assam Forest Manual, Volume II.

19.

Sanction purchases of store, tools and plant

(excluding livestock).

(a) Conservator of Forests.

(a) Full power if on rate contract otherwise

Rs. 5,000 in each case.

Subject to observance of the Store Rules.

(b) Divisional Forest Officer (including D.C.

incharge Forest, Mizo District.)

(b) Up to Rs. 750 in each case.

20.

Sanction items of capital expenditure

(excluding purchase of livestock, stores, tools and plant, furniture and tents).

(a) Conservator of Forests, Assam.

(a) Up to Rs., 10,000 in each case.

(b) Divisional Forest Officers (including D.C.

incharge Forest, Mizo District.)

(b) Up to Rs. 2,000 in each case.

21.

Purchase of Office and Rest House furniture.

(a) Conservator of Forests, Assam.

(a) Up to Rs. 3,000 in each case.

(b) Divisional Forest Officers (including D.C.

incharge Forest, Mizo District.)

(b) Up to Rs. 300 in each case.

22.

Purchase of tent for the Forest Department.

Conservator of Forests, Assam.

Up to Rs. 1,500.

Subject to observance of the Store Rules.

23.

Purchase of arms and ammunition.

(a) Administrative Department.

(a) Up to Rs. 10,000 for purchase of arms and ammunition from local markets, annually.

Subject to Budget provision.

(b) Chief Conservator of Forests, Assam.

(b) Up to Rs. 4,000 for purchase of arms and ammunition from local markets, annually.

Subject to Budget provision.

Other expenditure

24.

Sanction all usual payments on account of revenue expenditure in the Forest Departments.

Conservator of Forests, Divisional Forest

Officers and D.C. incharge, Forest Mizo District.

Full power for all usual payments.

25.

Sanction leaders fees in the prosecution of criminal offences in the Forest Departments.

(a) Conservator of Forests, Assam.

(a) Up to a maximum of Rs. 500 in any one case.

(b) Divisional Forest Officers (including D.C. incharge Forest, Mizo District).

(b) Up to a maximum of Rs. 200 in any one case.

26.

Sanction deviation from a sanctioned working plan.

Conservator of Forests, Assam.

Provided that the deviation does not amount to alteration in the general scheme of management, that all such deviations are reported in the control form and that a separate paragraph is added in the annual report showing what has been done in the year in the exercise of the powers.

27.

Purchase of livestock other than elephants.

Conservator of Forests, Assam.

Up to Rs. 2,000 in each case.

28.

Purchase of Elephants.

Conservator of Forests, Assam.

Up to Rs. 9,000 for each Elephant.

Provided the sanctioned scale is not exceeded.

29.

Sanction free or at favourable rates the grant of timber or other forest produce.

(a) Conservator of Forests.

(a) Up to Rs. 1,000 in any one case.

Subject to Departmental Rules and the principles laid down in Appendix VII to the Forest Departmental Code, 7th Edition.

(b) Divisional Forest Officers (including D.C. incharge Forest, Mizo District).

(b) Up to Rs. 250 in any one case.

On the same condition.

Loans and Advances

30.

Grant Agricultural loans to forest villages.

Conservator of Forests, Assam.

Up to Rs. 1,000 per forest village in each case.

31.

Sanction advances to contractors other than sawing and carting sirdars.

Divisional Forest Officers (including the D.C. incharge Forest, Mizo District).

Up to Rs. 500 in each case.

32.

Sanction advances to sawing and carting sirdars employed for sawing and removal of timbers.

Divisional Forest Officers (including the D.C. incharge Forest, Mizo District).

Up to Rs. 2,000 in each case.

33.

Sanction advances to stockholders sirdars.

Officer-in-charge Departmental Khedah

Operation.

34.

Sanction payment of commission for recruitment
of labourers.

Conservator of Forests and Divisional Forest

Officers (including the D.C incharge of Forest, Mizo District).

As per details in the Assam Forest Manual,
Volume II.

35.

(1) Sanction advances to the extent of one
month's pay to the following classes of non-gazetted officers on
permanent establishment serving under their orders-

(a)

Officers on the executive establishment.

(a) Conservator of Forests, Assam.

(b)

Assistants employed in range offices elsewhere
than the headquarters of Divisional offices.

(b) Divisional Forest Officers (including D.C.
incharge of Forest, Mizo District).

(c)

Assistant and inferior staff who are required
to accompany gazetted officers on continuous tour likely to last
for more than a month.

Do.

The scope of such advances should be limited to
cases where the need of it arises out of the peculiar
circumstances of services in the Forest Department, for
instance, advances may be granted for the following purposes

:(i) to meet expenses in connection with equipment and
purchase of provisions before proceeding or while on tour.(ii)
to meet expenses incurred on account of purchase of paddy or
other grain, in localities where supplies are not readily
available.(iii) to meet expenses incurred on the purchase of
articles and clothing on account of theft of property if the
theft occurs on tour.

(2)

Advances of pay should be recovered in 3 equal
instalments beginning with the month following that in which the
advance is made.

Divisional Forest Officers (including D.C.
incharge of Forests, Mizo District).

(3)

A second advance should be granted until the
first one has been fully repaid.

36.

Accept tenders.

Conservator of Forests, Assam.

Up to Rs. 50,000.

Divisional Forest Officers.

Up to Rs. 10,000

37.

Purchase of spares and cost of petty repairs to

Departmental vehicles.

Divisional Forest Officers.

On the same conditions as in the case of the

Heads of Departments up to Rs.250 in case of spares and Rs. 100 for petty repairs in each case.

38.

Sale, purchase or replacement of animals and

birds in respect of Assam State Zoo, Gauhati.

Divisional Forest Officer, Assam State Zoo,

Guwahati.

Full powers in respect of sale and replacement

of animals and birds up to Rs. 2,000 in the case of purchase of each species of animals and birds purchase at a time.

(i) Standard rates, duly approved by the

Conservator of Forests, as maintained to regulate sales and

purchases.(ii) The maximum number of animals and birds in

respect of each species that may be held in the Zoo is

prescribed.(iii) Purchases of new animals and birds are made

only against acquisition proposals already approved by the

Conservator of Forests/Government.(iv) In case of purchase

of the expenditure should be within the budget provision.

Registration Department

1.

Refund of Registration fees.

Registering Officers.

Full power.

Under the Departmental Rules.

2.

Sanction Sub-Registrar on commission system to

start office in the State of Assam.

Inspector General of Registration.

So far as it relates to temporary Sub-Registry

Offices.

On commission system in the scale of commission

admissible under Registration Rules (Assam).

3.

Sanction temporary extra writers on daily pay

in his own office and subordinate offices.

District Registrars.

At such rate of remuneration as approved by

Government; provided he is satisfied that the permanent

establishment has worked up to the prescribed standard but is

unable to complete documents without undue delay.

Taxation Department

1.

Refunds under the Assam Sales Tax Act, 1947 and

Rules 49 to 53 framed thereunder.

(a) Commissioner of Taxes.(b) Deputy

Commissioner of Taxes.(c) Assistant Commissioner of Taxes.

Full power.

Provided that refunds have become due as a matter of right owing to collection or payments having been made in excess of the amount due under the Act, or mistake or similar causes.

2.

Writing off of irrecoverable revenue in the Taxation Department.

Commissioner of Taxes.

Up to Rs. 1,000 in each case.

3.

Refund under the Assam Amusement and Betting Tax Act, 1939 and the rules framed thereunder.

(a) Commissioner of Taxes.(b) Deputy

Commissioner of Taxes.(c) Assistant Commissioner of Taxes.(d) Superintendent of Taxes.

All refunds which have become due either as a result of excess payment of tax in case under Section 3 (3) or 3-A or under Section 4(a) when amusement stamps are not available for purchase or due to payment of tax in advance before the order of exemption is passed under Section 8 or due to issue of new stamps in place of or old ones under Rules 22 and 23.On the same conditions up to the limit of Rs. 250 in each individual case.

4.

Refunds under the Assam (Sales of Petroleum and Petroleum Products including Motor Spirit and Lubricants) Taxation Act, 1955 and Rules 41-48 framed thereunder.

(a) Commissioner of Taxes.(b) Deputy

Commissioner of Taxes.(c) Assistant Commissioner of Taxes.(d) Superintendent of Taxes.

Full power.

Provided that refunds have become due as a matter of right owing to collections or payments having been made in excess of the amount due under the Act, or due to mistake or similar causes.On the same conditions up to a limit of Rs. 250 in each individual case.

5.

Refund under the Central Sales Tax Act, 1956 and Rule 17 of the Central Sales Tax Accounts and Procedure Rules, 1957.

(a) Commissioner of Taxes.(b) Deputy

Commissioner of Taxes.(c) Assistant Commissioner of Taxes.(d) Superintendent of Taxes.

Full power.

Provided that refunds have become due as a matter of right owing to collections or payments having been made in excess of the amount due under the Act, or mistake or

similar causes. On the same conditions up to a limit of Rs. 250 in each individual case.

6.

Refunds under the Assam Taxation (on Goods carried by Roads or Inland Water Ways) Act, 1954 and Rules framed thereunder.

Superintendent of Taxes.

Full powers.

On the same conditions up to a limit of Rs. 250 in each individual case.

7.

Refunds under the Assam Finance (Sales Tax) Act, 1956 and Rules 39-46 framed thereunder.

Do.

Do.

Do.

8.

Refunds under Rule 31 framed under Section 19 of the Assam Professions, Trades, Callings and Employment Taxation Act, 1947.

Do.

Do.

Provided they have become due as a matter of right owing to collection or payments having been made in excess of the amount due under the Act, or by mistake or similar causes.

9.

Refunds of taxes under Rule 25-A of the Rules framed under Sections 39 and 50 and fees and interest under Section 28 of the Assam Agricultural Income-tax Act, 1939.

(a) Commissioner and Assistant Commissioner of Agricultural Income Tax.

Full power.

(b) Agricultural Income Tax Officers, Assam.

All refunds which have become due either as a result of over- assessment as determined by the proper authority under Sections 24, 25, 26, 27 and 31 of the Assam Agricultural Income Tax Act, 1939 or on account of taxation and deduction at source or due to excess payment of tax in advance by assessee subject to the provision of the Rule 25-A (4) of the Assam Agricultural Income- Tax Rules, 1939. Such refunds due may also be set off or adjusted, wholly or partially against demands payable by the same assessee in respect of any other year.

10.

Refund under the Assam Passenger and Goods Taxation Act, 1962 and Rule 24 to 26 framed thereunder.

(a) Commissioner of Taxes.

Full power.

Provided that refunds have become due as a matter of right owing to collection or payments having been made in excess of the amount due under the Act, or due to mistake or

similar causes.

(b) Deputy Commissioner of Taxes.

Do.

(c) Assistant Commissioner of Taxes.

Do.

(d) Superintendent of Taxes.

Up to Rs. 250 in each case.

On the same conditions up to a limit of 250 in each individual case.

11.

Refund under the Assam Urban Immovable Property Tax Act, 1963, and Rules 15 and 17 framed thereunder.

(a) Commissioner of Taxes.

Full powers.

Provided that refunds have become due as a matter of right owing to collection or payments having been made in excess of the amounts due under the Act, or due to mistake or similar causes.

(b) Deputy Commissioner of Taxes.

Do.

(c) Assistant Commissioner of Taxes.

Do.

(d) Superintendent of Taxes.

Up to Rs. 250 in each case.

On the same conditions up to the limit of Rs. 250 in each individual case.

12.

Refund under the Assam Electricity Duty Act, 1964 and the rules framed thereunder.

(a) Commissioner of Taxes.

Full power

Provided that refund becomes due as a matter of right owing to collection or payments having been made in excess of the amount due under the Act or due to mistake or similar causes. Refund should be made by adjustment and each refund sanctioned only where there is no scope for adjustment.

(b) Deputy Commissioner of Taxes.

Do.

(c) Assistant Commissioner of Taxes.

Do.

(d) Superintendent of Taxes.

Up to Rs.250 in each case.

On the same conditions up to a limit of Rs. 250 in each individual case.

General Administration Commissioners

(i) Creation of temporary post and their continuance

1.

Sanction creation of temporary posts.

Commissioners.

On a pay scale with a minimum not exceeding Rs.

1125 for a period not exceeding 12 months.

In connection with settlements under their control.

2.

Sanction creation of temporary posts in the District establishments under their control.

Commissioners.

Do.

For tehsil establishment at kist time and for Record Room and in case of other emergencies.

3.

Sanction the creation of temporary posts of peons.

Do.

On the minimum scale of pay sanctioned for peons from time to time.

In emergent cases for any specified period not exceeding 6 months.

4.

Creation of temporary posts of Chairmen.

Commissioners.

On the minimum scale of pay sanctioned for Chairmen from time to time for a period not exceeding 12 months.

Such Chairmen as are actually required for District Officer, Assistant and Extra Assistant Commissioners and Sub-Deputy Collectors employed in the District for Land Record work.

5.

Appointment substitutes for the leave and training reserve.

Do.

Up to one reservist for every 100 assistants in the Division.

6.

Renewal of temporary posts originally created with the concurrence of Finance Department in the District Establishments under their control.

Do.

Up to one year at a time subject to a limit of 5 years.

Subject to budget provision so long as the circumstances justifying the creation of the posts continue to exist.

(ii) Refund and Remission

7.

Remission of land revenue.

Commissioner.

Up to Rs. 10,000 in any one District for each calamity.

(1) In case of local calamities in temporary settled areas, such as flood, hailstorms, blight or ravage by

insects, which cause damage to a particular harvest. Suspension may be sanctioned up to any amount but sanctions over Rs. 10,000 must be reported to Government. Any amount may be remitted following annulment of an estate under Section 90 of the Assam Land and Revenue Regulations. (2) To remit any unrealized arrears due from an estate sold under the provision of Section 70 of the Assam Land and Revenue Regulations. (3) To sanction the remission of land revenue upto Rs. 500 in any one district in each year in cases other than those mentioned above.

8.

Refund of the value of timber and of survey fees.

Commissioner.

To the extent allowed by Departmental Rules.

In sanctioning such refunds the details, viz.,

(1) the sum originally paid into the treasury and credited to miscellaneous land revenue (this is to be checked and certified to by the Treasury Officer), (2) the sum, if any, paid on account of the survey, and (3) the balance refundable should be given.

9.

Remission of loans under the Land Improvements

Act.

Do.

Up to Rs. 2,000 in each case.

Both principal and interest where a work fails from causes beyond the borrower's control and where recovery in full would occasion serious hardship.

9-A.

Remission of loans under the Agriculturists

Loans Act, 1884.

Do.

Up to Rs. 1,000 in each case.

Remission may be sanctioned only where the recovery of the loan would occasion serious hardship to the borrower.

10.

Remission of Fishery Revenue.

Commissioner.

Up to Rs. 1,000 in any one case.

Provided the Commissioner is satisfied that the refusal of remission will cause hardship to the lessee.

11.

Remission and refund of Ferry revenue and tolls on roads and bridges.

Do.

Under Section 15, Northern India Ferries Act, 17 of 1878.

12.

Refund of the value of non-judicial stamp to any person.

Do.

Full power.

Under Departmental Rules, if application is made with two years of the date when the stamps become spoiled or the date instrument or execution.

13.

Disburse sums to carry on suits or appeals.

Do.

(i) Abatements of rents.(ii) Other

expenditure. Sums which are necessary to be expended for the carrying on of any suit or appeal in which Government of Assam is a party.

Provided the Legal Remembrancer has directed that such suit shall be instituted or defended.

14.

Disburse sums to satisfy decrees etc. against Government.

Commissioners.

Any sum.

In order-(a) to satisfy any decree against the Government of Assam in cases where the law allows of no further appeal from such decree, or in which the Legal Remembrancer has advised that no further appeal shall be made; and (b) to adjust compromise of any suit or claim against the Governor of Assam which the Legal Remembrancer has directed to be compromised, or which can be dealt with by the Commissioner under Rule 32 of the Civil Suit in the Assam Law Department Manual.

15

Compromise suits brought against Government.

Do.

Valued at Rs. 1,000 or under.

Suits of claims of a civil nature.

16.

Grant Loans under the Land Improvement Loans Act.

Do.

Loans and advances up to Rs. 5000 in each case.

17.

Grant loans under the Agriculturist Loans Act.

Do.

Up to Rs. 3,000 in each case.

18.

(a) Suspension of stall rents.

Do.

Full power.

Suspension over Rs. 10,000 must be reported to Government.

(b)

Sanction remission of stall rents appearing from any cause to be irrecoverable.

Commissioners.

Up to Rs. 500 in any one District in each year.

Subject to the condition that the loss does not disclose defect of system, the amendment of which requires reference to Finance Department.

19.

To purchase furniture and other accessories for the newly constructed Circuit Houses and Dak Bungalows and replacement of unserviceable furniture and accessories in the Circuit Houses and in the Dak Bungalows.

Do.

Full powers.

Subject to-(1) All formalities being observed before purchase.(2) Purchase of furniture and accessories being in accordance with the scales laid down by the General Administration Department(3) Fund being available in the Budget.

Deputy Commissioners and Sub-divisional Officers

(i) Creation of temporary posts

1.

Creation of temporary post in the service, cadres and offices under their control.

Deputy Commissioners.

Post on pay scales with the minimum not exceeding Rs. 1125 p.m. for a period not exceeding 6 months.

2.

Appoint Process serving peons.

Deputy Commissioners.

Districts where the process serving establishment of Civil, Criminal and Revenue Courts have been amalgamated, according to the yardstick laid down by Government.

3.

Appoint substitutes for Mandals deputed for training.

Deputy Commissioners of Plain Districts.

On the minimum of the scale of pay sanctioned for Mandals.

In case of deputation for training special class at the Survey School to qualify for the post of Supervisor Kanungo; provided he is satisfied that the work cannot be carried on without a substitute.

4.

Appoint pleaders in criminal cases and appeals.

Deputy Commissioners.

When the public prosecutor is unable to appear and the Deputy Commissioner is satisfied that the case or appeal can be conducted by another pleader without prejudice.

5.

Appoint subordinate Government pleaders.

District Officers.

All stations not the headquarters of districts.

Such pleaders will be subject to the control and supervision of the District Government pleader and will be remunerated by fees according to the High Court Civil Rules.

6.

Appoint a temporary pleader in place of a permanent Government pleader disqualified from conducting a suit.

Do.

The District Officer should inform the Legal Remembrancer of having done so, stating the reasons therefor.

(ii) Refund, remission and write off

7.

Remission of land revenue.

Deputy Commissioner.

Up to Rs. 5,000.

(a) To suspend only in cases detailed against

Commissioner's power and in cases of private calamity.(b)

Remission following annulment of an estate in *faut ferar* and

Jotrathin cases.(c) Suspension and remission of house-tax,

dao-tax, foreigners-tax and other taxes including land revenue in case in which they consider necessary to a limit of Rs. 500 in

any one village in a year.

8.

Remission of gazing fees.

Do.

Unpaid portions of the fees.

(a) In cases in which their realisation would

cause hardship, e.g., in the case of number of animals destroyed by an outbreak of disease or when animals are sold by an order of

a Court.

Deputy Commissioners and Sub-divisional Officers.

(b) Remit the fees payable by poor persons in cases of hardship.

9.

Remission of Fishery Revenue.

Deputy Commissioner.

Up to Rs. 100 in any one case.

Provided he is satisfied that the refusal of remission will cause hardship to the lessee.

10.

Refund of land revenue.

Do.

All refunds which have become due as a matter of right owing to mistakes in collection, collections being made twice over or to similar causes.

11.

Refund of grazing revenue.

Deputy Commissioner.

All refunds to *mouzadars* and *mohsirdars* of

arrears already credited into the Treasury which have become

irrecoverable from the graziers; provided coercive measures taken

were prompt and adequate.

12.

Refund of the value of timber and of survey fees.

Do.

To the extent allowed by Departmental Rules.

Subject to the conditions laid down in Serial No. 8 against Commissioner's power.

13.

Reduction of land revenue assessment.

District Officers.

Do.

In the case of temporarily settled estates when the soil has permanently deteriorated through causes beyond the settlement holders' control, or an improvement which was taken into account when the assessment was fixed has failed.

14.

Refund of local rates and revenue deposits.

Deputy Commissioner.

Full powers.

In those cases only in which refunds have become due as a matter of right owing to mistakes in collection, collections being twice over or to similar causes.

15.

Refund of the value of impressed court fee stamps to any person.

District or Sub-divisional Officers.

Do.

Under the Departmental Rules within six months of purchase.

16.

Refund of the value of undetached court fee adhesive labels for which any person has no immediate use.

Do.

Do.

Under the Departmental Rules; provided that if such stamps are below Rs. 5 in value there are at least four of them and otherwise at least two and that application is made within six months of purchase.

17.

Refund of the value of detached court fee adhesive labels to any person.

District or Sub-divisional Officer.

Full powers.

In special cases if application is made within one year of purchase under the Departmental Rules.

18.

Refund of the value of impressed Court fee stamps to any person.

Do.

Do.

In special cases if application is made within one year of purchase.

19.

Refund of the value of non-judicial stamps to any person.

Do.

Do.

Under Departmental Rules if application is made within one year of the date when the stamps become spoiled or the date of the instrument or execution.

20.

Refund of receipts of local bodies credited to the State revenue.

Do.

Do.

All refunds which have become due as a matter of right owing to mistakes in collection, collections being made twice over or to similar causes.

21.

Refund of opium and excise revenue.

District Officers.

Do.

Provided that they have become due as a matter of right owing to collections having been made by mistake or twice over or similar causes.

22.

Remission and refund of process fees in cases in which the original demand is remitted or the process has been issued by mistake.

Deputy Commissioner and Sub-divisional Officers.

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23.

Remission of loans under the land improvement Loans Acts.

District Officers.

Up to Rs. 250 in each case.

Both principal and interest where work fails from causes beyond the borrower's control and where recovery in full would occasion serious hardship.

23-A.

Remission of loans under the Agriculturists Loans Act, 1884.

Deputy Commissioners.

Up to Rs. 100 in each case.

Remission may be sanctioned only where the recovery of the loan would occasion serious hardship to the borrower.

24.

Write off of irrecoverable value of stores (including furniture) livestock or public money lost by fraud or negligence of individual or other causes.

(i) Deputy Commissioners.(ii) Sub-Divisional Officers

(i) Up to Rs. 3,000 in any single case.(ii)

Up to Rs. 1,000 in any single case.

On the same conditions as the case of the Heads of Departments.

25.

Writing off of value of unserviceable stores (including livestock and furniture).

(a) Deputy Commissioner.

Full power.

(a) (i) Subject to the condition that the articles are disposed of by sale which should ordinarily be by public auction.(ii) The original value of article disposed of does not exceed Rs.25,000 in each case.

(b) Sub-Divisional Officer.

Do.

(b) (i) Same as (a) (i) above.(ii) The original value of article disposed of not exceed Rs. 5000.

26.

Local purchase of stationery in case of urgency.

(i) Deputy Commissioner.

Up to Rs.500 in each case.

(i) Subject to an annual limit of Rs. 10,000.

(ii) Sub-divisional Officer.

Up to Rs. 250 in each case.

(ii) Subject to an annual limit of Rs. 10,000.

27.

Urgent printing at local presses (excluding standardised forms of money receipt).

Deputy Commissioner.

Up to Rs. 2,000 in each case.

(a) Subject to total of Rs. 10,000 in a

year.(b) In the case of standardised forms of money receipt, printing up to one month's requirement will be admissible without a certificate from Government Press that it cannot undertake such work and beyond one month requirement on production of such certificate.

28.

Purchase of spare parts, tyres and cost of repairs on departmental vehicles.

(i) Deputy Commissioner.

(i) Up to Rs. 1,000 in each case in the case of spares & up to Rs. 2,000 in each case in the case of overhaul and repairs.

(ii) Sub-Divisional Officer.

(ii) Up to Rs. 500 in each case in the case of spares and up to Rs. 1,000 in each case in the case of overhaul and repairs.

*1.

Purchase of stationery article in connection

with Intensive Revision of Electoral Rolls with 1st January, 1955 as the qualifying date. White thin paper, Deputy Gum, Carbon paper, Commissioner/ Dot Pen, Alpin, Stamp Sub-Divisional Pad, Iron/Wooden Officers. Scale; correcting fluid. F.C. and D.F.C. Paper, Duplicating paper, Duplicating Ink, Stencil paper, Tracing paper, Photostat Paper, Tag, Thread, Red Oxide, Stamp Pad, Stamp Pad Ink, Wood Pencil and Dot Pen refill.

Deputy Commissioner/ Sub-Divisional Officers.

Full powers.

Subject to availability of funds and also observance of rules and procedures in force.

*2.

Printing of various forms, Electoral cards, Electoral Rolls etc. in connection with Intensive Revision of Electoral Rolls with 1st January, 1995 as the qualifying date.

Do.

Subject to conditions that-(1) Budget provision exists.(2) Printing works are done with prior approval of the C.E.O. Assam.(3) Normal rules/procedures are observed.

29.

Purchase of spares and cost of petty repairs to Departmental vehicles.

Deputy Commissioner.

On the same conditions as in the case of the Heads of Departments up to Rs. 250 in case of spares and Rs. 100 for petty repairs in each case.

30.

Incur expenditure on State guest.

Do.

Subject to Budget provision in accordance with rules or principle prescribed with the prior consent of the Finance Department.

31.

To sanction POL bills, hire wages of drivers, handyman of vehicles requisitioned under the Assam Requisition and Control of Vehicles Act, 1968.

Do.

Full powers.

32.

Purchase of office equipment such as clocks, time-pieces and table fans.

(i) Deputy Commissioner.

(i) Up to Rs. 500 in each case.

(ii) Sub-Divisional Officer.

(ii) Up to Rs. 250 in each case.

33.

Purchase of furniture for new office or on expansion of existing offices or replacement of old and worn out items.

Deputy Commissioner.

Full powers.

34.

Rent on Lands and buildings leased out of Government.

(i) Deputy Commissioner.

(i) Up to Rs. 1000 p.m. each case.

(ii) Sub-Divisional Officers.

(ii) Up to Rs. 300 p.m. each case.

35.

Purchase of books, maps, periodicals and newspapers.

Deputy Commissioner.

Full Powers.

Subject to the conditions laid down in item 22-

Appendix to the Assam Contingency Manual and Rules 328-81 of Assam Executive Manual.

36.

Purchase of Typewriter & Duplicator.

Deputy Commissioner.

Full powers.

37.

Repair of Type-writers, duplicators.

Do.

Rs. 500 annually in each case of Typewriter. Rs.

1,000 annually in each case of duplicator.

Subject to observance of all rules and procedure and availability of fund.

38.

Sanction of grant to the private persons killed/injured in case of police firing, bomb blasts, etc. with the ABSU's agitation.

Deputy Commissioner.

Up to Rs. 5,000 in case of death and up to Rs.

3,000 in case of injury.

Provided that-(1) Budget provision exists.(2)

After getting necessary report from the respective police officers as well as medical officers.

39.

Creation of temporary posts in the services cadres and offices under their control.

Deputy Commissioner.

Posts on pay scale with the minimum not exceeding Rs. 1125 p.m. for a period not exceeding 6 months.

General condition etc. will continue to remain the same.

40.

Sanction of plan schemes brought within the purview of Sub-divisional Planning excluding purchase of vehicles, creation of posts, central sector schemes subject to specific conditions mentioned in the items indicated against Sl. Nos. 41 to 70.

Deputy Commissioners of Plain Districts.

As per extent of powers indicated against each item below.

Subject to conditions : (1) that the scheme is within the approved Annual State Plan.(2) that the scheme is approved by the Sub-divisional Planning and Development Council.(3) that the sanction does not exceed the annual outlay approved for the scheme for the sub-division.(4) that the plan and estimates are scrutinised by appropriate technical officer.(5) that the limit of the prescribed admissible outlay is not exceeded.(6) that floor area must be according to specification admissible.(7) that there must be provision of fund for the project.(8) that the procedure of purchase for public service is followed.(9) that fund provided for one scheme is not diverted to another.(10) that fund provided for the scheme in one sub-division is not diverted for the same schemes or other schemes in another sub-division.(11) that there shall not be any re-delegation of power by the officer mentioned in column 3.(12) that norms, rules governing the scheme are strictly adhered to.

41.

To accord administrative approval and sanction expenditure on works to be executed departmentally original works.

Deputy Commissioners of Plain Districts.

In case of project involving residential building Rs. one lakh; for other works Rs. two lakhs. Drinking water supply and irrigation projects up to Rs. 3 lakhs.

(1) Subject to fund provision in the Annual Sub-divisional Plan and that there is technical personnel competent to scrutinise the estimates and supervise the works and that the rule laid down for departmental construction of public building (Appendix 8 to the Assam Financial Rules) are strictly adhered to.Note.- The term "residential buildings" does not include Government hostel or quarters for employees on pay scales the maximum of which exceeds Rs. 1375 p.m.(2) Subject to the general guidelines of Planning and Development Department and the norms and guidelines governing the schemes.(3) Subject to proper projectisation, provision of funds and approval of Sub-divisional Planning & Development Council.(4) Subject to proper estimate drawn up by competent technical authority as per P.W.D. and other concerned rules and procedure and technical approval obtained.(5) Norms for permissible outlay for office, residential accommodation is not exceeded if the functional building complex includes office/residential accommodation.

42.

For Public Works Department. To accord administrative approval to plants and estimate, for works.

Deputy Commissioners of Plain Districts

Upto Rs. 5 lakhs

Provided that-(1) The

estimates are scrutinised by the appropriate officer and technical sanction obtained.(2) The limit of the prescribed admissible outlay are not exceeded.(3) Floor area must be according to specification admissible for post or categorywise.

(4) Funds by valid appropriation are available, (for procedure in obtaining administrative approval see paragraphs 236-242 of Assam Public Works Department Code and Rule 188 of Assam Executive Manual).Note.- Subject to the conditions specified above the Public Works Department is the Administrative Department for the purpose of according administrative approval for projects involving outlay on additions and alterations to existing residential buildings that are borne on its books.(5) Subject to proper projectisation, provision of fund under concerned scheme/project and approval of Sub-Divisional Planning and Development Council.(6) Subject to general guidelines of Planning and Development Department and guidelines governing the scheme.

43.

Sanction of schemes of M.N.P. Roads.
Deputy Commissioners of Plain Districts.
UP to Rs. one lakh for each project.

1. Provided technical sanction concerning the schemes/projects is obtained from competent authority.2. Provided funds under the concerned decentralised plans/schemes/projects are there.3. Provided that location of the schemes/projects is approved by the Sub-divisional Planning and Development Council.

For Agriculture Department

44.

Sanction of schemes involving purchase of instruments, appliances, apparatus and machinery.
Deputy Commissioners of Plain Districts.
(a) Full powers when purchase is essential, the items being competent of the scheme for implementation as per norms, rules, guidelines laid for the concerned decentralised plan scheme and purchase is proposed to be made through Central Stores Department or on rate contract through Agro-Industries Development Corporation or as per price form and specification approved by duly constituted State Level Purchase Board wherein the Administrative Department and Finance Department are re-presented.

Subject to provision of the financial rules governing the purchase of stores for the public service (Appendix X of the Assam Financial Rules) and provisions of fund under the concerned scheme under decentralised Planning.
(b) Otherwise up to Rs. 12,000 in each case when purchase is essential, being component of the scheme for implementation as per norms, guidelines for the concerned schemes as approved by the Government in the Agriculture Department.

Do.

45.

Sanction of schemes involving distribution of seeds, fertilisers, pesticides stores.

Deputy Commissioners of Plain Districts.

(a) Full powers when purchase is essential being component of the scheme for implementation as per norms, guidelines, rules laid down for the concerned decentralised plan scheme and purchase is proposed to be made through Central Stores Department or on rate contract or through Seed Corporation or Agro Industries Development Corporation or as per price, quality and specification approved by a duly constituted States Level Purchase Board wherein the Administrative Department and Finance Department are represented.

Do.

(b) Otherwise up to Rs. 5,000 in each case when purchase is essential being component of the scheme for implementation as per norms, rules, guidelines for the concerned scheme as approved by the Government in the Agriculture Department.

Do.

46.

Sanction of schemes involving training of farmers, demonstration works, grant-in-aid/subsidy.

Deputy Commissioners of Plain Districts.

Up to Rs. 3,000 in each case.

Subject to strict adherence to norms, rules and guidelines for the concerned scheme as prescribed by the Government in the Agriculture Department, and subject to provision of plan fund under the concerned decentralised scheme.

47.

Sanction of schemes involving marketing of produces.

Do.

Up to Rs. 30,000 in each case.

Do.

48.

Sanction of schemes involving repair of machineries.

Do.

Up to Rs. 1,000 in each case.

For Veterinary Department

49.

Sanction of scheme involving purchase of instruments, apparatus, appliance, machinery, tools and plants and live stock and stores (medicine, feed, fodder) under decentralised plan schemes.

Do.

(a) Full power when purchase is essential the items being component of the schemes for implementation as per norms and procedures of the concerned scheme and purchase is proposed to be made on rate contract or as per sample, farm, price, quality and specification approved by duly constituted

Purchase Board wherein the Administrative Department and Finance Department are represented.(b) Otherwise up to Rs. 12,000 in each case when the items are component of the scheme, subject to norms, guidelines for the concerned scheme.

Subject to provision of the financial rule governing the purchase of stores for the public service (Appendix X of Assam Financial Rules) and provision of funds under the concerned decentralised plan scheme.

49-A.

Schemes involving subsidy for distribution of livestock etc., under decentralised plan.

Deputy Commissioners of Plain Districts.

Full powers.

(a) Provided schemes are proposed Schematic norms and guidelines duly approved by Government.(b) Schemes are approved by the concerned SPDC.(c) Provided funds are available during the year for the purpose under appropriate head of account.(d) Provided the scheme is within the approved Annual Plan of the State.(e) Subject to observance of usual rules and procedures.

For Fisheries Department

50.

Sanction of scheme involving purchase of instruments, appliances, equipments, fish seeds and feeds.

Deputy Commissioners of Plain Districts.

Full power when purchase is essential being component of the decentralised plan scheme for implementation as per norms, guidelines, etc. laid down for the concerned scheme and purchase is proposed to be made as per price, specification and form approved by a duly constituted State Level Purchase Board wherein the Administrative Department and Finance Department are represented.

Subject to provision of the financial rule governing the purchase of stores for the public service (Appendix X) of Assam Financial Rules.2. Subject to provision of funds under concerned decentralised plan scheme.

51.

Sanction of scheme involving grants-in-aid subsidy.

Deputy Commissioners of Plain Districts.

Full power when proposed as per norms.

Subject to strict adherence to schematic norms and quantum and guidelines as prescribed by the Government in the Fisheries Department and subject to provision of funds under the concerned decentralised plan scheme.

For Irrigation Department

52.

Sanction of schemes involving installation of irrigation project.

Deputy Commissioners of Plain Districts.

Up to Rs. 3 lakhs.

1. Provided scheme is approved by the Sub-Divisional Planning and Development Council for which survey and investigation has been made and viability of the project is proved.2. Provided technical sanction of the project is obtained.3. Subject to provision of fund under the concerned decentralised plan schemes.

For Co-operation Department

53.

Sanction of schemes involving grants-in-aid, share capital contribution subsidy and loan concerning Sub-divisional schemes.

Deputy Commissioner of Plain Districts.

Full power when such grants and loans are as per norms, regulations laid down in the bye-laws.

*(i) Subject to satisfactory performance of the societies and provision of funds under concerned schemes.

For Forest Department

54.

Sanction of scheme involving plantation work and maintenance.

Deputy Commissioners of Plain Districts.

Full power when proposed as per norms approved by the Government.

*(ii) Subject to the provision of fund under the concerned plan scheme and approval of the detailed scheme by the Sub-divisional Planning and Development Council.(iii) Subject to the limitation of expenditure within the schematic allocation.(iv) Subject to condition that expenditure proposed is as per norms, rules governing the concerned scheme.

For Soil Conservation Department

55.

Sanction of schemes concerning Soil Conservation Department.

Deputy Commissioners of Plain Districts.

Up to Rs. 50,000 in each case.

1. Subject to condition that expenditure proposed is as per norms, rules and guidelines governing the concerned schemes prescribed by the Government in the Soil Conservation Department.2. Subject to provision of funds under the concerned decentralised scheme and approval of the detailed scheme by the S.P.D.C. during the year.

For Industries Department

56.

Sanction of schemes involving Loans, and subsidies and incentives.

Deputy Commissioners of Plain Districts.

Full powers when proposed as per norms.

Subject to strict adherence to rules and norms provided in the Aid to Industries Act and State Government's approved norms and rules and recommendation of Sub-divisional or District Level Committee and provision of funds under concerned

decentralised plan schemes.

57.

Sanction of schemes involving supply of improved tools and seed money.

Deputy Commissioners of Plain Districts.

Full powers when proposed as per approved norms.

Subject to strict adherence to the State

Government's approved norms and rules, and recommendations of

Sub-divisional District Level Committee and provision of funds

under concerned decentralised plan schemes.

For Sericulture Department

58.

Sanction of schemes involving grants, subsidy and seed money concerning sericulture.

Deputy Commissioners of Plain Districts.

Up to Rs. 5,000 in each case.

Subject to rules, norms and quantum as

prescribed by the Government is Sericulture Department and

subject to provision of funds under the concerned decentralised schemes.

59.

Sanction of schemes involving plantation.

Do.

Up to Rs. 10,000 in each case.

Do.

60.

Sanction of schemes involving purchase of reeling machines.

Do.

Up to Rs. 8,000 in each case.

Do.

61.

Sanction of schemes involving purchase of rearing appliances, etc.

Do.

Up to Rs. 2,500 in each case.

Do.

For Handloom Textile Department

62.

Sanction of schemes involving subsidy, margin money, share capital incentive and modernisation of looms.

Deputy Commissioners of Plain Districts.

Full powers when it is as per norms.

Subject to condition that norms, rules and

guidelines as prescribed by the Government in the Handloom and

Textile Department are fulfilled and subject to provision of

funds under the concerned decentralised plan schemes.

For Education Department including Sports

63.

Sanction of schemes of Education Department

involving purchase of teaching materials, furniture, instrument

and uniform brought within the purview of decentralised planning.
Deputy Commissioners of Plain Districts.

Full powers if the purchase is essential being
component of the concerned decentralised plan scheme and the
purchase is proposed to be made as per price, quality,
specification and forms approved by the State Level Purchase
Board wherein Administrative Department and Finance Department
are represented.

Subject to (i) Observance of approved norms,
rules, guidelines for the concerned decentralised schemes,(ii)
Provision of funds under the concerned scheme and approval of
Sub-divisional Planning and Development Council, and(iii)
Limiting sanction within the provision for the concerned scheme
for the year.

64.

Sanction of schemes involving grants-in-aid
concerning schemes of Education Department brought within the
purview of Sub-divisional Plannings.

Deputy Commissioners of Plain Districts.

Full power when grants-in-aid are proposed to be
sanctioned strictly as per departmental norm, quantum and
criteria for the concerned schemes or as recommended by the State
Level Committee for the purpose.

Subject to (i) Provision of funds under the
concerned schemes and approval of Sub-divisional Planning and
Development Council.(ii) Quantum of grants is strictly as per
norms concerning the scheme.(iii) Institution/beneficiaries
selected are strictly as per norms, criteria and guidelines
concerning the scheme.(iv) Limiting expenditure within the
provision for the concerned scheme for the year.(v)
Submission of utilisation certificate of earlier grants, if any.

65.

Sanction of schemes concerning adult education
and post literacy centres under the on-going projects.

Deputy Commissioners of Plain Districts.

Full powers when as per approved norms.

Subject to strict observance of norms concerning
the scheme and subject to provision of fund under the concerned
decentralised plan scheme.

66.

Sanction of schemes involving purchase of sport
equipments and expenditure for holding tournament and coaching
camp.

Do.

Full powers when purchase is essential being
component of the concerned decentralised plan scheme and the
purchase is proposed to be made, on rate contract or as per
sample, price, quality and specification approved by a duly
constituted State Level Purchase Board wherein Administrative
Department are represented and for holding of tournament and camp
if the estimate is as per approved norms and guidelines.

1. Subject to provision of funds under the concerned Sub-divisional schemes. 2. Subject to strict adherence to the norms, rules and guidelines approved by the Government.

67.

Sanction of schemes involving grants-in-aid for construction of mini stadium and development of play field for schools.

Deputy Commissioners of Plain Districts.

Full powers when proposed as per norms of the concerned scheme for which comprehensive guidelines and norms are prescribed by the Government.

Subject to-(1) guidelines for concerned schemes strictly followed. (2) quantum of grants as per schematic norms. (3) provision of funds under concerned scheme. (4) approval of Sub-divisional Planning and Development Council. (5) submission of utilisation certificate of earlier grants, if any.

For Panchayat and R.D. Department

68.

Sanction of schemes involving grants to Panchayat Institution and self-help schemes.

Deputy Commissioners of Plain Districts.

Full powers.

As per norms prescribed by the Government in the Panchayat and Community Development and R. D. Department and subject to provision of fund under concerned decentralised scheme.

For Revenue Department

69.

Sanction of schemes involving grant-in-aid and subsidy in respect of rural housing and land reforms scheme brought within the purview of decentralised planning.

Deputy Commissioners of Plain Districts.

Full powers.

(1) Subject to strict adherence to the norms and guidelines of the concerned schemes. (2) Subject to finalisation of list of eligible beneficiaries. (3) Subject to condition that grants/subsidy are sanctioned in the name of the beneficiaries. (4) Subject to condition that operational scheme is prepared adhering strictly to the approved norms and guidelines concerning the scheme. (5) Subject to provision of funds under the concerned decentralised plan scheme.

For Health and F.W. Department

70.

Sanction of schemes involving purchase of medicines, equipments concerning decentralised schemes of Health Service Sector.

Deputy Commissioners of Plain Districts.

Up to Rs. 50,000 when purchase is for essential items being component of the scheme for implementation as per norms, guidelines, rule for the combined scheme prescribed by the

Government in the Health Department and purchase is proposed to be made through approved stores as per sample, price and specification approved by a duly constituted State Level Purchase Board wherein Administrative Department and Finance Department are represented.

Subject to provision

of funds under the concerned decentralised plan schemes.

Subject to condition that expenditure does not exceed the plan fund provided for the purpose for a sub-division.

71.

Sanction of Scooter/ Motor Cycle advances to the non-gazetted staff of their respective establishments.

Deputy Commissioner.

Full powers.

Subject to observance of the requirement of the relevant Financial rules and procedure.

Administration of Justice

1.

Appoint substitutes against public prosecutors granted leave.

Legal Remembrancer.

Full powers.

Provided no extra cost to Government is entailed.

2.

Appoint associate pleaders in special cases.

Do.

3.

Appoint Legal practitioners.

Legal Remembrancer.

Full powers.

May grant fees up to Rs. 100 per diem.

4.

Refund of Judicial fines.

Presiding Officer of the Court ordering the refund.

Should be supported by a certified copy of the order (not of the reasons) of the Court under the High Court's General Rules and Circular, Orders (Civil).

5.

Refund of Amin's fees.

Judges in charge of the Court who passes these refund orders.

6.

Remission or writing off of sums.

Legal Remembrancer.

Any sum due to the Government under the decree of a court which is found to be irrecoverable.

7.

Pay sums to carry on suits, etc.

(a) Legal Remembrancer.

- (a) Any sum for the purpose of carrying on any suit or appeal in which the Government of Assam is a party or of which the Government of Assam undertakes the defence.
- (b) Department of the Secretariat concerned.
- (b) Satisfying any decree against the Government of Assam or against any party whose defence has been undertaken by Government of Assam.
- (c) Departments of the Secretariat concerned in consultation with L.R.
- (c) Adjusting any suit or claim against the Government of Assam which has been compromised.

Jail Department

- 1.
Local purchase of medicines.
Superintendent of District jails.
Up to Rs. 100 per year in case of emergency.
Any purchase in excess of this limit will have to be made with the prior approval of Government.
- 2.
Writing off of the irrecoverable value of stores (including furniture), livestock or public money lost by fraud or the negligence of the individuals.
Superintendent of Jails and Special Officer Jail Industries.
Up to Rs. 100.
On the same conditions as in the case of the Heads of Departments.
- 3.
Writing off of the value of unserviceable stores (including livestock) and furniture.
Do.
Up to Rs. 200.
On the same conditions as in the case of the Heads of Departments.

Police Department

- 1.
Recruit probationary Sub-Inspector of Police.
Inspector General of Police.
Subject to budget provision each year up to ten per cent of the sanctioned strength of Inspectors and Sub-Inspectors in the unarmed branch.
- 2.
Create temporary posts.
Do.
Against deputation of non-Gazetted Police Officers and men under Section 13 of Act 5 of 1861 entailing expenditure not exceeding the amount recoverable as cost from the party requisitioning the additional police under the section.
- 3.
Charges on account of feeding, grooming, medical and other incidental charges etc., regarding maintenance of dogs

of Dog Squad.

Inspector General of Police.

Full powers.

Subject to budget provision.

4.

Purchase of spare parts, tyres, tubes etc., and cost of all repairs and overhauls of vehicles belonging to Police Department including those of Wireless and Fire Brigade Organisations.

Inspector General of Police.

Full powers.

Subject to Budget provision. As the transaction pertaining to these are considerable and are subject to audit, a history sheet should be maintained for each vehicle showing the mileage done, spare parts purchased, major and minor overhauls the vehicle has undergone, repairs undertaken and cost incurred in respect of each item of expenditure.

5.

Sanction deputation of Subordinate Police Officers up to the rank of Inspectors (temporary and permanent) on an approved course of training or instruction.

Do.

For a period not exceeding 12 months. The officers so deputed will be treated as on duty under F.R. 9 (6) (b) (i) and they will be entitled to the Following: Pay-The pay drawn at the time he was placed on such day under F.R. 20.D.A. - As admissible under the rules.C.A. - (Cash allowance, Winter allowance, House rent allowance, Hill allowance etc.) up to a maximum period of 4 months under S.R. 3 (6) read with S.R. 118, 119.T.A. - As on tour under S.R. 289.L.A. - If any in lieu of daily allowance at the rate approved by Finance Department for each course of training or instruction.

6.

Writing off of the value of irrecoverable stores (including furniture) livestock, or^{***}

[Sic-Some words in Serial No. 6 and Serial Nos. 7, 8 & 9 are missing in the Gazette.]

Up to Rs.100.(1) Superintendents of Police.(2) Commandants, Assam.

On the same conditions as in the case of the Heads of Departments.

9-A.

Purchase of equipment, appliances, arms, accoutrement clothing and ration of the Police Department including those of the Wireless and Fire Brigade Organisation.

Inspector General of Police.

Full powers for local purchase only (but not for purchase in bulk for the whole State).

Subject to the provision of the Police Manual and Contingency Manual.

10.

Purchase of spares and cost of petty repairs to

departmental vehicles.

(1) Superintendent of Police.(2) Deputy Inspector General of Police.(3) Commandants of Assam Battalions.(4) Commandants of Border Security Force Battalions.(5) Principal, Police Training College(6) Fire Adviser State Fire Service Organisation.

On the same conditions as in the case of the Heads of Departments up to Rs. 250 in case of spares and Rs. 100 for petty repairs in each case.

11.

Sanction of ex-gratia grant to Police Personnel, Home guards and drivers and Handymen or other employees of vehicles requisitioned by the Police authorities for law and order duty, killed while on duty by extremists, anti-social elements, dacoits, smugglers, hostiles etc. Director General and Inspector General of Police.

50 (Fifty per cent of totalex-gratiagrant.

the Provided that-(1) Budget provision exists.(2) After making necessary verification as may be required by rule.

12.

Sanction of grant to private persons killed/injured in case of Police firing, bomb blast by the extremists, anti-social elements, etc. Deputy Commissioners.

Up to Rs. 5,000 in case of death and up to Rs. 3,000 in case of injured.

Provided that-(1) Budget provision exists.(2) After getting necessary report from the respective Police Officers as well as Medical Officers.

13.

Local purchase of stationery in case of urgency.

(a) D.G.P.

Full power in each case on the failure of Government Stationery Store Department to supply the stationery. Subject to availability of Budget provision.

(b) I.G.P.

Rs. 1,000 in each case subject to annual limit of Rs. 10,000.

Subject to availability of Budget provision.

(c) Deputy I.G.

Rs. 500 in each case subject to annual limit of Rs. 5,000.

Subject to availability of Budget provision.

(d) S.P./Commandants.

Rs.500 in each case subject to annual limit of Rs. 5,000.

Subject to availability of Budget provision.

14.

Purchase of office equipments such as clocks,

time pieces, table fans, etc.

(a) D.G.P.

Full power, subject to observance of Store Rules.

Subject to availability of Budget provision.

(b) I.G.P.

Rs. 1,000 in each case, subject to observance of Store Rules.

Do.

(c) Dy. I.G.P. & S.P. Commandants.

Rs. 500 in each case, subject to observance of Store Rules.

Do.

15.

Purchase of furniture for new office or on expansion of existing offices or in replacement of old ones.

(a) D.G.P.

Full power.

Do.

(b) I.G.P.

Rs. 5,000 in each case, subject to an annual limit of Rs. 15,000.

Do.

(c) S.P./ Commandants.

Rs. 2,000 in each case subject to an annual limit of Rs. 10,000.

Do.

16.

Purchase of spare parts, tyres, tubes, etc. and cost of all repairs and overhauls of vehicles belonging to Police Department including those of Wireless and Fire Service Organisation.

(a) I.G.P.

Rs. 5,000 in each case.

Do.

(b) Dy. I.G.P.

Rs. 3,000 in each case.

Do.

(c) S.P./Commandants.

Rs. 2,000 in each case.

Subject to availability of Budget provision.

17.

To accord administrative approval and sanction expenditure on works to be executed Departmentally.

D.G.P.

Full power for according administrative approval in connection with the original works residential (Plan) non-residential (Plan) to be carried out through Assam Police Housing Corporation.

Subject to plans and estimates to be drawn up by the Civil Engineering Staff attached to Police Department.

(a)

Original works.

D.G.P.

Full power for according administrative approval for all other buildings non-plan, subject to Rs. five lakhs in each case.

Do.

(b)

Petty constructions on Departmental buildings (non-residential) and repairs.

D.G.P.

Full power to repair buildings on book of Police Department.

Subject to Budget provision.

18.

Purchase of books, maps and periodicals.

(a) I.G.P.

Full powers.

Subject to Budget provision.

(b) S.P./Commandants.

Rs. 1,000 in each case subject to an annual limit of Rs. 10,000.

Do.

19.

Rent of lands and buildings leased out to Government.

(a) I.G.P.

Rs. 2,000 in each case.

Provided that the rent is fixed by the P.W.D.

(b) Deputy I.G.P.

Rs. 1,500 in each case.

Do.

20.

Purchase of typewriters, duplicators and calculating machines.

(a) D.G.P.

Full power in connection with the purchase of type writers, duplicators and calculating machines.

Provided that the rates are approved by the Government and subject to Budget provision.

(b) I.G.P.

Rs. 5,000 in each case.

Do.

21.

Countersignature of contract contingency and detailed countersigned contingency Bills.

(a) I.G.P. (TAP) in respect of Battalions.

Full powers.

(b) Dy. I.G.P.

Do.

22.

Countersignature of T.A. Bills of
Superintendents of Police.

Dy. I.G.P.

Full powers.

23.

Purchase of bicycle.

I.G.P.

Full powers.

Subject to authorisation and availability of
Budget provision.

24.

Re-appropriation.

D.G.P.

Full power under intimation to Government.

25.

Sanction of reward to Police Personnels.

(a) D.G.P.

Rs. 2,000 in each case.

Subject to Budget provision.

(b) Dy. I.G.P.

Rs. 1,000 in each case.

Do.

(c) S.P./Commandant

Rs. 500 in each case.

Do.

Education Department

(General and Technical Education)

1.

Transfer ungraded appointments which are borne
on local scales, from one school to another.

Director of Public Instruction. The term covers

Director of Technical Education.

All such sanctions must be reported annually by
the 15th of April to Government.

2.

Sanction grants-in-aid to non-government
institutions for various purposes.

Do.

Provided such grants-in-aid are in accordance
with any scale or rules framed or prescribed in consultation with
the Finance Department.

3.

Sanction grants for miscellaneous purposes in
connection with educational matters.

Directors of Public Instruction. The term covers

Director of Technical, Education.

Subject to Budget provision and to the limit of
Rs.500 in each case or as provided in the rules, framed with
prior consultation with the Finance Department.

4.

Sanction grants for games and common room of

Government College, Polytechnics and Industrial Training Institutions.

Do.
Subject to Budget provision and the monetary limit provided by Government from time to time. Note.-Colleges-An amount equal to the contribution of each student at an amount of Rs. 36 per annum. Polytechnics-An amount equal to the contribution of each student at an amount of Rs. 12 per annum. Industrial Training Institute-Rs. 0.50 P. per student per month.

5.
Sanction charges on grants for 'games' and 'Common-room' charges of Schools under their charge.

Inspector of Schools.
Subject to the allotment made by the Director of Public Instruction for each school.

6.
Stipends to students in the Normal Schools.
Superintendent of Normal Schools.
Under Section 34 of the Education Department Rules and Orders subject to the monetary limit prescribed therein.

7.
Sanction house rent allowances.
Director of Public Instruction.
To Mistresses of Girls' Schools belonging to Assam Lower School Service at Rs. 25 p.m. in lieu of free quarters :Provided that a mistress is not living with relatives other than dependants. The allowance will continue so long as he pay does not exceed Rs. 100 p.m.

8.
Refund of fees of the (a) Middle Schools Leaving Certificate and Scholarship; and
Inspector of Schools.

Full powers.
(b)
Primary Scholarship Examinations.

9.
(a) Refund of fees paid by students of colleges and technical institutions.
Principals of Colleges or Heads of the Institutions.
Fees paid in advance by students who are subsequently granted Government scholarships tenable in other institutions and leave before they have secured an adequate refund for the fees which they have paid.

(b)
Students of Schools.
Inspector of Schools.
Under the circumstances noted above.

10.
Writing off of the irrecoverable value of stores

(including furniture), livestock or public money lost by fraud or the negligence of individuals or other causes.

Principals of Colleges.

Up to Rs. 100 in each case.

On the same condition as in the case of the Heads of Department.

Heads of the Technical Institution.

Up to Rs. 50.

Inspectors of Schools.

Up to Rs. 50.

11.

Writing off of the value of unserviceable stores (including livestock) and furniture.

Do.

Up to Rs. 200 in each case.

Do.

12.

Exemption from payment of the late fee under Rule 14 (a), Part II, Chapter II of the Assam Education Department Rules and Orders, Vol. I. (Revised Edition, 1955).

Director of Public Instruction.

In case where the students dependent on Government for prosecuting their higher studies have defaulted in timely payment of the School fees as a result of delay in payment of Government aid.

13.

Purchase of instruments, appliances, apparatus, machinery and tools and plants.

Through a duly constituted Purchasing Board wherein the Administrative and Finance Department are represented.

Full powers.

Subject to Store Rules and Budget allotment.

Director of Public Instruction.

Full powers on rate contract basis. Otherwise up to Rs. 5,000 in each case.

Subject to Store Rules and Budget allotment.

Principal of Colleges.

Up to Rs. 1,000 in each case.

Do.

Inspectors, Inspectresses.

Up to Rs. 500 in each case.

Do.

14.

Award scholarships and stipends, general and special tenable both inside and outside the State, including those on technical subjects.

Director of Public Instruction.

As per provision in the Education Department Rules and Orders and Schemes approved by Government in consultation with Finance Department.

15.

Purchase of instruments, apparatus, machinery, tools and plants and other stores in India (including livestock).

Heads of Technical Institution.

Up to Rs. 1,000 in each case.

Subject to Budget provision and provision of the Financial Rules governing the purchase of stores for the public service (Appendix X of the Assam Financial Rules).

16.

Incur expenditure on departmental building in emergency created by natural calamities like storm, flood fire, earthquake, etc.

Inspectors of Schools.

Up to Rs. 100 in each case.

Subject to availability of fund in Budget for the purposes.

17.

Sanction expenditure for N.C.C. training/camping.

Director of Public Instructions.

Up to Rs. 5,000 in each case for training or camping.

Subject to Budget provision and that the expenditure is incurred as per scale laid down in National Cadet Corps Act, 1948 and rules framed thereunder.

Director of Technical Education

1.

Printing of question papers outside the State for holding joint admission tests.

Director of Technical Education, Assam.

Up to Rs. 80,000 in each case and up to Rs. 2.5 lakhs in a year.

Subject to the conditions that-(1) The amount sanctioned shall not exceed the amount deposited in the Government accounts as examination fee.(2) Budget provision exists.(3) Usual rules and procedures for fixing rate of printing are followed.

Health and and Family Welfare Department

1.

Sanction temporary establishment in time of emergency.

Director of Health Services, Assam.

Such staffs as are deemed necessary with a view to more speedy control of epidemics including Assistant Surgeon I, Rural Health.

1-a.

To sanction schemes of family welfare programme as approved by Government of India.

Secretary to Government Assam, Health and F.W. Department.

Full powers.

Subject to-(1) The schemes being 100 (hundred) per cent Centrally sponsored.(2) Creation of posts and purchase of vehicles being not made without prior concurrence of Finance Department.(3) This delegation of power having in no way commit Finance Department to the continuance or formalisation of these schemes once Central assistance ceases.(4) Copies of sanctions issued being endorsed to Finance and P & D Department.(5) Financial adviser attached to Health & F.W. Department being consulted before issue of orders etc.Inspectors, Health Assistants, Pharmacists, Nurses and Sisters, Vaccinators, Peons and Medicine carriers, etc., on the existing time scale of pay applicable in each case for a period not exceeding three months with intimation to the Administrative Department and Finance Department.

2.

Purchase of stores (including medicines) instruments, appliances and apparatus.

(i) Through a duly constituted Purchasing Board wherein the Finance and the Administrative Departments are represented or through Central Stores Depot or on rate contract.

Full powers.

Subject to observance of the Store Rules.

(ii) Otherwise in case of local purchase for Director of Health Services.

Up to Rs. 5,000 in each case.

On the same conditions.

(iii) For Principals of Colleges and Heads of Technical Institutions.

Up to Rs. 1,000 in each case.

Do.

(iv)(i) For Superintendent, Mental Hospital, Tezpur.

Rs. 500 (Five hundred) in each case.

Subject to observance of the Store Rules.

(iv)(ii) For Superintendent, Medical College Hospital and Superintendent Mohendra Mohan Choudhury Hospital Guwahati.

Rs. 1000 (one thousand in each case.)

Subject to observance of Store Rules.

(v) For Civil Surgeon.

Up to Rs. 300 (three hundred) in each case.

On the same conditions.

3.

Refund of fees paid by the students of the Assam Medical College, Ayurvedic College and students of the Pharmacists class.

Principal, Assam Medical College as Superintendent, Medical School and Principals of the Colleges.

If the students are subsequently awarded scholarships or free studentships with retrospective effect or are granted Government scholarships, which carry privilege of

free tuition with it.

4.

Refund in cases not otherwise provided for

(1) Principals Assam Medical College.(2)

Principal, Assam Medical College as Superintendent, Medical

School.(3) Principal, Ayurvedic College.(4) Director,

Pasteur Institute.(5) Superintendent, Mental Hospital.(6)

Medical Superintendent, Ganesh Das Hospital.(7)

Superintendent, R.P. Chest Hospital.(8) Civil Surgeon.(9)

Surgeon Superintendent.

Provided that (1) the refund is necessitated by

an order which he is himself competent to pass; and(2) no

single refund, unless ordered by a court, exceeds Rs. 250.

5.

Writing off of the irrecoverable value of stores

(including furniture) livestock or public money lost by fraud or

the negligence of individuals or other causes.

As under S. L. 4.

Up to Rs. 100

Provided the loss does not disclose-(1) a defect

of system, the amendment of which requires the order of higher

authority; or (2) a serious negligence on the part of some

officer or officers which might call for disciplinary action

requiring the orders of higher authority.

6.

Writing off of the value of unserviceable stores

(including livestock) and furniture.

As under S.L. 4.

Full powers.

Subject to the condition that the articles are

disposed of (1) by sale which should ordinarily be by public

auction and the original purchase value of articles disposed of

at one and the same time does not exceed Rs. 250.Note.- When articles are disposed of otherwise than by public auction

the reasons should be placed on record.7.

7.

Writing off of the value of all size of ampoules

of vaccines which are time-barred.

Director of Pasteur Institute and Medical

Research Institute.

Full powers.

8.

Disposal of all sizes of ampoules of vaccines

which are time-expired.

Director of Pasteur Institute and Medical

Research Institute.

Full powers.

Such time-expired vaccines should be destroyed

in the presence of the Director or Additional Director, Pasteur

Institute and necessary certificate should be recorded by them

and the cost of the same should be written off by the Head of the

Department.

9.

Purchase of spares and cost of petty repairs to

Departmental vehicles.

Civil Surgeons.

On the same conditions as in the case of the

Heads of the Departments up to Rs. 250 in case of spares and Rs.

100 for petty repairs in each case.

10.

Acceptance of tenders for the schemes under the

Public Health Engineering Organisation.

Public Health

Up to Rs. 50,000 Engineer, Assam.

Subject to observance of the Assam P.W.D. Code.

11.

Repairs of Type-writers and Duplicators.

Prof. and Head of Dental Wing.

Up to Rs. 400 annually for each machine.

Subject to-(i) Availability of fund.(ii)

Repairing firms being approved by General Administration

Department.

12.

Purchase of furniture for new office or an

expansion of existing offices or in replacement of old ones

including hostel furniture.

Prof. and Head of Dental Wing.

Up to Rs. 1,000 in each case subject to a limit

of Rs. 10,000 per year.

Where standard types, scales of furniture have

not been prescribed, General Administration Department should lay

down standard types and scales.

13.

Local purchase of stationery in urgency.

Up to Rs. 1,500 annually.

All articles of stationery which are supplied by

the State Stationery Store at Guwahati must ordinarily be

obtained from this Store on indent. When supply from this Store

is not received due to some reason or other and it is absolutely

necessary to purchase the articles, local purchase up to Rs. 200

in each case subject to an annual limit of Rs. 1,500 may be

resorted to by inviting tenders. It should be certified in each

bill that the supply from the State Stationery Store was not

available and that the bill does not contain any charge or any

item above the permissible limit. Purchase of fountain pen is

prohibited.

14.

Purchase of Books, journals and Maps for

Library.

Do.

Up to Rs. 3,000 in each case with an annual

limit of Rs. 25,000.

Subject to the conditions that all charges incurred are within the budget allotment sanctioned for the purchase and that no addition is made to the allotments by re-appropriation from any source without the previous sanction of Government. Sanction of Head of Department is sufficient for the purchase of Books, Maps, Publications, Newspapers and periodicals required for the essential needs of their offices, those of their subordinates. Such purchase can be made only when the book etc. are necessary for the working of the Department.

15.

Sanction expenditure on contingencies purchase of store including medicines, instruments appliances and apparatus.

Professor and Head of Dental Wing G.M.C.

(upgraded to Principal Regional Dental College, Guwahati vide Notification No. HLB 499/84/54, dated 11th February, 1985).

Full Powers.

The purchase should be made by duly observing the rules of Government instructions governing purchase of such stores-(A) There should be adequate funds in the Budget for making such purchase.(B) (i) The first preference should be given to local manufacturers of the State of Assam within limit of price preference prescribed by Government from time to time.(ii) Second preference should be given to Drugs and Pharmaceutical Ltd. (A Government of India Undertaking) for Drugs formulations, manufactured by the company and direct indent for supply at special price and other special discount will be made by the District Health Officers/Superintendents of Medical Colleges Hospitals/ L.G.B.T.B. Chest Hospital and Mental Hospital, Tezpur, without calling for competitive quotations.(iii) If medicines/stores are not available with I.D.B.L and other local manufacturers within price preference, orders should be placed with the Government Medical Stores of the Government of India.(C) If Medical Stores are not available from local manufacturers or at the M.S.D. then purchase should be made from other dealers duly approved by the Purchase Board from time to time.(D) The purchase may be made only of such items of stores as approved by the Director of Health Services from time to time.(E) As regards the purchase of medical stores other than drugs and medicines, indent should have the prior approval of the Director of Health Services, Assam.

16.

Purchase of furniture for new office or on expansion of existing offices or in replacement of old ones (including Hostel furniture).

Principal, Medical College.

Up to Rs. 3,000 in each case and subject to a limit of Rs. 30,000 per year.

Where standard types and scales of furniture have not been prescribed, G.A.D. should lay down standard types and scales.

17.

Repairs of Typewriters and Duplicators.

Do.

Up to Rs. 500 annually for each machine.

Subject to-(i) Availability of fund;(ii)

Repairing firms being approved by G.A.D.

18.

Local purchase of stationery in urgency.

Do.

Up to Rs. 1,000 in each case subject to a limit of Rs. 20,000 per year.

All articles of stationery which are supplied by the State Stationery Store, Guwahati must ordinarily be obtained from the Store. On indent when supply from this Store is not received, due to some reason or other and it is absolutely necessary to purchase the articles, local purchase up to Rs. 1,000 in each case subject to an annual limit of Rs. 20,000 may be resorted to by inviting tenders. It should be certified in each bill that the supply from the State Stationery Store was not available and that the bill does not contain any charge or any item above the permissible limit. Purchase of fountain pen is prohibited.

19.

Purchase of Books, Journals and Maps for library.

Principal, Medical Colleges.

Full powers.

Subject to the conditions that all charges incurred are within the budget allotment sanctioned for the purpose and that no addition is made to the allotment by re-appropriation from any sources without the previous sanction of Government. Sanction of the Heads of Department is sufficient of the purchase of Books, Maps, Publications, Newspapers and periodicals required for the essential need of their offices and those of their subordinates. Such purchase can be made only when the books etc. are necessary for the working of the Department.

20.

To accord administrative approval to plans and estimates to be carried out by the P.H.E. Department.

Additional Chief Engineer, Public Health Engineering Department.

Rs. one lakh for non-residential works under plan and non-plan.

Provided that-(1) The estimates are scrutinised by appropriate officers of the P.H.E. Department under Administrative Control of the Department.(2) The limits of the admissible outlay are not exceeded.(3) Funds by valid appropriation are available.(4) The power does not extend to acquisition of land for which sanction of Revenue/Finance will be necessary.

21.

Accept tenders.

Addl. C.E., P.H.E. Department.

Up to Rs. 15 (Fifteen) lakhs.

22.

Sanction for maintenance of buildings of the Hospital and maintenance of the Hospital equipments, furnitures.

Sanction for purchase of essential drugs, sanction for purchase of consumables and some durables, such as mattresses, blankets, linens, etc.

(1) Principals of Medical Colleges.

Rs. 2,000 in each case in each occasion.

Subject to-(1) Availability of fund in the

Budget.(2) The amount sanctioned as per this delegation shall not exceed the amount collected by the authority of the hospital by way of rent for the Paying Cabins, Registration fees, charges for different hospital services in the hospital, etc. and

deposited by the authority of the hospital by challan into the State Government Exchequer.(3) Any amount admissible to be sanctioned as per (2) above, if not sanctioned and drawn within the financial year, during which the concerned collection amount was deposited into the State Government Exchequer shall not be allowed to be drawn in the next or any subsequent financial year.(4) While issuing any sanction as per this delegation the reference (s) of the concerned challan No.(s) and date(s) with mention of the amount(s) deposited as per that/those challan(s) into the State Government Exchequer in reference to which this sanction is issued shall be mentioned in the sanctioning order itself.

Do.

(2) Superintendent of M.M. Choudhury Hospital,
Guwahati.

Do.

(3) Superintendent of L.G.B. Chest Hospital,
Guwahati.

Agriculture Department

1.

Rent for lands and buildings leased by Government.

Joint Director of Agriculture.

Up to Rs. 150 per month.

Subject to availability of funds and production of a certificate from the Executive Engineer to the effect that a suitable public building is not available for the purpose and a certificate from the Deputy Commissioner as to the reasonableness of rent.

2.

Sanction urgent periodical repairs to buildings.

(a) Do.

Up to Rs. 3,000.

Subject to the conditions laid down in the rules for the construction of Departmental buildings in Appendix VIII

and Chapter XII of the Assam Financial Rules.

(b) Principal of the Agricultural College.

Up to Rs. 500.

(c) District Agriculture Officers and other subordinate authorities.

3.

Sanction excess expenditure over the sanctioned estimates on works.

Joint Director of Agriculture.

Up to 5 per cent of the original estimates.

Subject to the total cost being within his powers.

4.

Sanction cost of repairs to tractors and agricultural machinery.

Do.

Up to Rs. 300 in each case.

Subject to Budget provision.

5.

Sell at a reduced rate surplus stock of seeds, plants, and grafts.

Director of Agriculture.

Up to Rs. 500.

Joint Director of Agriculture.

Do.

Principal, Agricultural College and District and Sub-Divisional Officers.

Up to 1 lb, seed of each kind and value not exceeding Rs. 50 in each case.

6.

Sell at reduced rate surplus stock of manures and fertilizers, including green manures, oil-cakes, phosphatic fertilizers, blood, meat and meat meal.

Director and Joint Director of Agriculture.

Up to Rs. 500 loss.

Director and Sub-divisional Agricultural Officers.

Up to Rs. 250 loss in each case.

7.

Sanction purchase of instruments, appliances, apparatus, machinery and purchase of stores (including livestock).

Director of Agriculture.

(a) Full powers when purchase is made through Central Stores Department or on rate contract or through a duly constituted Purchase Board wherein the Administrative Department are represented. (b) Otherwise up to Rs. 10,000 in each case.

Subject to Budget provision and provisions of the Financial Rules governing the purchase of stores for the public service (Appendix X of the Assam Financial Rules.)

Joint Director of Agriculture.

Up to Rs. 5,000 in each case.

Principal of the Agricultural College.

Up to Rs. 1,000 in each case.

District Agriculture Officers, Agricultural
Chemists, Economic Botanist.

Up to Rs. 300 in each case.

8.

Refund of advance received from the public for
the supply of costly agricultural implements from seed deposits.

Joint Director of Agriculture, District
Agricultural Officers.

Full powers.

If the implements cannot be supplied.

9.

Refund of college and hostel fees

Principal of the Assam Agricultural College

Do.

College fees (tuition, admission or Hostel fees)
paid by students in advance who are subsequently granted
Government scholarships or free studentships with retrospective
effect.

10.

Writing off of the irrecoverable value of stores
including furniture, livestock or public money lost by fraud or
the negligence of individuals or other causes including
irrecoverable dues to Government and interest thereon.

Joint Director of Agriculture.

Up to Rs. 250.

On the same conditions as in the case of the
Heads of Departments.

Principal Assam Agricultural College.

Up to Rs. 100.

11.

Writing off of the value of unserviceable stores
(including livestock) and furniture.

Director of Agriculture.

Full powers.

Subject to the conditions that-(1) The articles
are disposed of by sale which should ordinarily be by
auction.(2) The original purchase value of articles disposed
of at one and the same time does not exceed Rs. 1,000.Note.- (1) When articles are disposed of otherwise than by sale,
the

reasons should be placed on record.(2) A separate order of
write off shall not be required on account of losses by dryage or
rottag of articles in Agricultural Farms and Seed Depots in the
circumstances and within the limits mentioned below :

Agricultural farms articles and seed depots.

Maximum permissible loss per cent.

Period.

All farms and seed depots.

Paddy-5.Pulse-4.

For over a single year.

Upper Shillong Farms Seed Depots.

Sugarcane setts-25Potatoes-15.

In the case of farms and from one season of operation from November to April in the case of Seed Depots.

Jute seeds-4

For over a season, August to February in the case of farms and from one season of operation from September to December in the case of Seed Depots.

Chemical manures-10.

For over a single year.

Bone meal-5

Do.

Plants and Grafts-20.

Do.

Vegetable seed packets-10.

For 3 months since receipt of the indent.

Wheat-5

For 5 months from August to December.

Onion-4

For 4 months from the purchase.

Garlic-3.

For one single year.

Joint Director of Agriculture.

Up to Rs. 250.

On the same conditions as in the case of the Heads of Departments.

Principal, Assam Agricultural College.

Up to Rs. 100.

12.

Writing off of losses arising from stores of any kind (including machinery, implements, bullocks, houses, miscellaneous articles et.), losses due to dryage in plants, shortage due to theft, weighments and transit, losses of saleable implements due to breakage, accident etc., and losses due to unusual occurrence, e.g., damage by weevils, rats, white ants and rain, etc.

Joint Director of Agriculture.

Up to Rs. 250.

Provided the loss does not disclose-(1) a defect of system the amendment of which requires the order of higher authority; or (2) a serious negligence on the part of some officer or officers which might call for disciplinary action requiring the orders of higher authority; or (3) when the loss does not exceed the prescribed limit laid down, vide item 7 of Schedule II.

13.

Accept tenders for original and petty workers and repairs.

Do.

Up to Rs. 5,000.

Subject to the condition that-(1) the articles are disposed of by sale which should ordinarily be by public auction; (2) the original purchase value of articles disposed of at one and the same time does not exceed Rs. 500.

14.

Purchase of spares and cost of petty repairs to departmental vehicles.

District Agricultural Officers.

On the same conditions as in the case of the Heads of Departments up to Rs. 250 in case of spares and Rs. 100 for petty repairs in each case.

15.

Purchase of instruments, appliances, apparatus, machinery, tools and plants and other stores in India (including livestock).

Principal Agricultural College.

Up to Rs. 1,000 in each case.

Subject to Budget provision and provisions of the Financial Rules governing the purchase of stores for the public service (Appendix X of the Assam Financial Rules).

16.

Incur expenditure in connection with exhibitions, shows and fairs.

Director of Agriculture.

Up to Rs. 1,000.

In case of exhibitions, fairs and shows organised on State-wide basis.

Up to Rs. 250.

In case of district and local exhibitions, fairs and shows.

Chief Engineer, Agriculture

1.

To accord administrative approval to plan and estimate for works.

Chief Engineer, Agriculture.

Rs. one lakh for residential works under plan/non-plan; Rs. two lakhs for non-residential works under plan/non-plan.

Provided that-(a) The estimates are scrutinised by the appropriate officer of the Agriculture Engineering Wing of the Agriculture Department, (b) The limits of the prescribed admissible outlay are not exceeded, (c) Floor area is according to specification admissible for post category-wise. (d) Funds by valid appropriation are available, (e) The power does not extend to acquisition of land for which sanction of Revenue/Finance will be necessary.

2.

To accord technical sanction to original works and special repair.

Do.

Full powers.

Full powers as exercised by Chief Engineer,
P.W.D.

3.

Power to incur expenditure for petty
construction on Departmental buildings and repairs.

Chief Engineer, Agriculture.

Up to Rs. 20,000 in each case.

?.....

4.

To sanction excess expenditure over the
estimates.

Do.

Up to 5% provided the total of the excess amount
and the estimated amount is within their power of sanction.

?.....

5.

To accept tenders.

Do.

Full power when selection of tenders and
fixation of rates are made by the Tender Committee otherwise up
to Rs. 15,000 in each individual case.

?.....

6.

Sanction for purchase of instruments,
appliances, apparatus, machinery and purchase of stores
(including livestock).

Do.

(a) Full powers when purchase is made through
Central Stores Department or on rate contract or through a duly
constituted Purchase Board wherein the Administrative Department
and Finance Department are represented.(b) Otherwise up to
Rs. 10,000 in each case.

Subject to Budget provision and provisions of
the Financial Rules governing the purchase of stores for the
public service (Appendix 'X' of the Assam Financial Rules).

7.

Repairs of Departmental vehicles including
purchase of tyres, tubes and other spare parts, without fixtures
and furnishings.

Chief Engineer, Agriculture.

(1) For trucks up to 3 years old Rs. 10,000 for
each truck in a financial year.(2) For trucks more than 3
years old Rs. 20,000 for each truck in a financial year.(3)
For other four wheeler motor vehicles up to 3 years old Rs. 5,000
for each vehicle in a financial year.(4) For other four
wheeler motor vehicles more than 3 years old Rs. 10,000 for each
vehicle in a financial year.

Provided that-(1) Budget provision exists.(2)

This being subject to audit, a history sheet should be maintained
for each vehicle showing the mileage covered, major and minor
repairs the vehicles have undergone, spare parts purchased and

cost incurred in respect of each item of expenditure.

8.

To sanction purchase of spare parts for tractors/bulldozers.

Chief Engineer, Agriculture.

(a) Full powers when purchase is made through

Central Stores Department or on rate contract or through a duly constituted Purchase Board wherein the Administrative Department and Finance Department and Industries Department (where necessary) are represented. (b) Otherwise up to Rs. 15,000 in respect of a tractor in a year and upto Rs. 25,000 in respect of a bulldozer in a year.

Provided that-(1) Budget provision exists. (2)

This being subject to audit, a history sheet should be maintained for each tractor/bulldozer showing the span of life and total hours run in each year mentioning the works done as per norms fixed, spare parts purchased, major and minor overhauls the vehicle has undergone and cost incurred in respect of each item of expenditure and justification.

9.

To sanction disposal of unserviceable store relating to Engineering Workshop product or parts of Agriculture Department.

Chief Engineer, Agriculture.

Full power.

Subject to the condition that-(1) The articles are disposed of by sale which should ordinarily be by public auction. (2) The original value of articles disposed of does not exceed Rs. 25,000 in the each case. (3) The Standing Condemnation Board, constituted by the Administrative Department has approved the condemnation of the articles.

10.

To fix sale price of agriculture implement or agriculture product manufactured in Engineering Workshop of Agriculture Department.

Do.

Do.

Subject to the conditions that the price so fixed does not fall below the cost of production inclusive of handling/dealer's commission etc.

11.

Write off of the value of any building (borne on the books of the Agriculture Department) abandoned or dismantled.

Do.

Do.

Full power as exercised by Chief Engineer, P.W.D., Assam.

12.

To hire building on lease/on rent for use of office.

Do.

Up to Rs. 2,000 p.m., for each building.

Subject to the condition that-(1) Budget provision exists. (2) The rent is fixed by the competent authority under the Assam Urban Areas Rent Control Act. (3) The Deputy Commissioner certifies the reasonableness of rent outside Urban Areas.

Veterinary Department

1.

Refund of college fees of the Assam Veterinary College.

Principal, Assam Veterinary College.

Full powers.

College fees, (tuition, admission or hostel fees) paid by students in advance who are subsequently granted Government scholarships or free studentships with retrospective effect.

2.

Writing off of the irrecoverable value of stores (including furniture) lost by fraud or the negligence of individuals or other causes including irrecoverable dues to Government and interest thereon.

Do.

Up to Rs. 100.

On the same condition as in the case of the Heads of Departments.

3.

Writing off of the value of unserviceable stores (including livestock) and furniture.

Do.

Up to Rs. 200.

On the same condition as in the case of the Heads of Departments.

4.

Incur expenditure in connection with exhibitions, shows and fairs.

Director of Veterinary.

1. Up to Rs. 1,000.

In case of exhibition, fairs and shows organised on State-wide basis.

2. Up to Rs. 250.

In case of district and local exhibitions, fairs and shows.

5.

Purchase of instruments, apparatus, appliances, machinery, tools and plants and other stores in India (including livestock).

Do.

Up to Rs. 10,000 in each case.

Subject to Budget provision and provisions of the Financial Rules governing the purchase of stores for the public service (Appendix X of the Assam Financial Rules).

Co-operation Department

1.

Sanction grants-in-aid to societies.

Registrar, Co-operative Societies.

Up to Rs. 500.

Subject to Departmental Rules and orders and any special order passed from time to time by Government.

2.

Sanction of GPF Advance.

Joint Registrar of Cooperative Societies, Hills.

Full powers for 1st and 2nd advance to the Government servants of his establishment and that of DRCS and ARCS.

As per Rules 14 and 15 together with sub-rules and notes thereunder of G.P.F. Rules.

3.

Sanction of house rent for office accommodation.

Joint Registrar of Cooperative Societies, Hills.

Rent for the office accommodation of his office and that of DRCS and ARCS, etc. not exceeding Rs. 500 in each case.

Subject to the condition that-(1) Budget provision exists. (2) The rent is fixed by the competent authority under the A.U.A.R.C. Act in Urban Areas. (3) The D.C. certifies the reasonableness of rent outside Urban Areas. (4) The floor area is in accordance with the standard prescribed by the G.A. Department.

4.

Sanction expenditure on contingencies purchase of spare parts, tyres, tubes and cost of repair of Departmental vehicles etc.

Do.

Upto Rs. 2,500 in a financial year for one vehicle.

Subject to the following conditions :(1)

Availability of fund.(2) History sheet for each vehicle should be maintained.(3) Subject to observance of other rules and instructions in force.

Industries Department

1.

To grant Industrial loans.

Director of Industries, Assam.

Loans not exceeding Rs. 1,000.

On the personal security of the borrower, with or without a surety or subject to such rules as may be prescribed.

2.

Contributions to industrial exhibitions and fairs.

Do.

Up to Rs. 500 for each exhibition and fair.

Subject to Budget provision.

3.

Incur expenditure in connection with exhibitions, shows and fairs.

Do.

1. Up to Rs. 1,000.

In case of exhibition, fairs and shows organised on State-wide basis.

2. Up to Rs. 250.

In case of District and local exhibition, fairs and shows.

4.

To Sanction proposals with regard to Central Investment Subsidy and Transport Subsidy on behalf of State Level Committee.

Director of Industries, Assam.

Up to Rs. 25 lakhs (Twenty five lakhs).

Subject to-(i) fulfilment of conditions laid down by Government of India from time to time; (ii) the proposals being cleared by the State Level Committee where the Secretary, Industries, the Secretary, Finance, the Managing Director, Assam Financial Corporation, the Manager, I.D.B.I. and the Regional Manager, National Small Industrial Corporation should be present; (iii) full amounts being reimbursed by Government of India in due course and subject to Budget provision.

5.

To accord administrative approval to plans and estimates for civil works to be carried out by P.W.D. other than residential building and the projects involving acquisition of land.

General Manager/Chief Executive, District Industries Centre.

(a) Up to Rs. 25,000 for residential work under plan.

(a) Provided the estimates are scrutinised by the appropriate office of the P.W.D.

(b) Up to Rs. 50,000 for non-residential works under plan.

(b) The limits of the prescribed admissible works outlay not exceeded.

(c) Up to Rs. 25,000 for non-residential work under non-plan.

(c) Floor area must be according to for specification admissible for post or work category-wise.

(d) Funds by valid appropriation are available.

6.

To accord administrative approval and sanction expenditures on works to be executed departmentally- General Manager/ Chief Executive, District industries Centre.

Subject to Budget provision and that there is

technical personnel competent to scrutinise the estimates and supervise the work and that the rules laid down for departmental construction of public buildings (Appendix VIII to the Assam Financial Rules) are strictly adhered to.

(a)

Original Works.

Do.

In case of project involving residential buildings Rs. 15,000; for other works Rs. 25,000.

Note.- The term "residential buildings" does not include Government hostels or quarters for employees on pay scales the maximum of which does not exceed Rs. 325 per month.

(b)

Petty construction of departmental buildings and repairs.

Do.

Up to Rs. 5,000 in each case.

[See Notes on item 71 of Appendix 'B' and item 23 of Appendix 'C' to the Assam Contingency Manual; also para 13 of the Rules regulating departmental construction of public buildings (Appendix VIII to the Assam Financial Rules)].

(c)

Sanction excess expenditure over the estimates.

Do.

Up to 5 per cent provided the total of the exceeded estimate is within their power of sanction.

7.

Sanction expenditure on contingencies-
General Manager/ Chief Executive, District Industries Centre.

Up to Rs. 10,000 in each case when the purchase is made through Central Stores Depot.

Subject to Budget provision and provisions of the Financial Rules governing the purchase of stores for the public service (Appendix X of the Assam Financial Rules).

(1)

Purchase of instruments, appliances, apparatus, machinery, tools and plant and other stores in India (including livestock).

Do.

(b) Otherwise up to Rs. 5,000 in each case provided the cost of each item does not exceed Rs. 500.

(2)

Purchase of spare parts, tyres, tubes and cost of repair of departmental vehicles.

Do.

Subject to the scales laid down below : (1)

Purchase of tyres, tubes, up to Rs. 1,000 in each case. In regard to bulldozers, tractors, and other kind of earthmoving and heavy haulage equipment the purchase of spares may be allowed to the

extent of Rs. 4,000 in each case.(2) Minor overhaul and repairs at a cost not exceeding Rs. 1,500 in each case.(3) As the transactions pertaining to above are considerable and are subject to audit a history sheet should be maintained for each vehicle showing the mileage done, spare parts purchased, major and minor overhauls the vehicle has undergone, repairs undertaken and cost incurred in respect of each item of expenditure.

8.

Rent on lands and buildings leased out to Government.

General Manager/ Chief Executive, District Industries Centre.

Up to Rs. 500 per month in each case.

Subject to the condition that-(1) Budget provision exists. (2) The Executive Engineer certifies that a suitable public building is not available.

9.

Local purchase of stationery in case of urgency.

Do.

All articles of stationery which are supplied by the State Stationery Store at Gauhati must ordinarily be obtained from this Store on indent. When supply from this Store is not received due to some reasons or other and it is absolutely necessary to purchase the articles, local purchase up to Rs. 250 in each case subject to an annual limit of Rs. 5,000 may be resorted to by inviting tenders. It should be certified in each bill that the supply from the stationery store was not available and that the bill does not contain any change for any item above the permissible limit. Purchase of fountain pen is prohibited.

10.

Incur expenditure in connection with exhibition, shows and fairs.

Do.

Up to Rs. 500 in each case of District and Local exhibitions, fairs and shows.

Subject to availability of fund.

11.

Write off of the irrecoverable value of stores (including furniture) livestock or public money.

General Manager/ Chief Executive District Industries Centre.

Up to Rs. 150 in any single case.

Provided the loss does not disclose-(1) a defect of system the amendment of which requires the order of higher authority; or (2) a serious negligence on the part of some officer or officers which might call for disciplinary action requiring the orders of higher authority.

12.

Purchase of office equipments, such as clock, lime pieces, table fans, ceiling fans, etc.

Do.

Up to Rs. 250 in each case.

Subject to Store Rules. The limit refers, except where otherwise stated, to the cost of each article or any number of articles of the same kind purchase at any time whether for one office or a number of offices.

13.

Urgent printing at local presses (excluding forms standardised or non-standardised).

Do.

....

There is no objection for utilising local private printing presses where they charge reasonable prices and papers to be printed are not confidential. Where no allotment is made under this head, charge up to Rs. 1,000 in each case subject to a total of Rs. 5,000 in a year may be charged to the allotment under the office expenses and miscellaneous. Those limits include the cost of paper. Standardised forms of money receipts must never be printed locally without special orders of Finance Department.

14.

Purchase of books, periodicals, maps and newspapers.

General Manager/ Chief Executive District industries Centre.

Up to actual cost price of each item subject to an annual limit of Rs. 500.

Subject to the condition that all charges incurred are within the Budget allotment sanctioned for the purpose and that no addition is made to the allotments by reappropriation from any sources.

15.

Sanction expenditure for maintenance of departmental buildings and miscellaneous expenditure in any individual case or any object for which no scale or limit to its power is prescribed.

Do.

(a) Up to Rs. 100 if recurring in any single case.(b) Up to Rs. 1,000 if non-recurring in any single case.

Provided that-(1) The expenditure does not relate to the office of the authority concerned.(2) The expenditure is within the power of the authority.(3) The demand therefor has not been refused by the Assembly or the supply restricted at the instance of the Finance Department.(4) The expenditure is not on a new service which was not contemplated in the Budget.

16.

Purchase of furniture including steel almirah and iron safe for new offices or on expansion of new offices or in replacement of old ones.

Do.

Up to an annual limit of Rs. 10,000.

(a) Furniture should be of the approved

type.(b) Availability of funds,(c) Observance of

procedural and other general directions,(d) Such purchases

should be made in accordance with prescribed scale.Note.- Where standard types and scales of furniture have not been prescribed the G.A. Department should lay down standard types and scales.

17.

Accept tender.

General Manager/ Chief Executive, District Industries Centre.

Up to a limit of Rs. 30,000 in each case.

Subject to observance of procedural and other general directions and availability of fund.

18.

Execute contracts and instruments.

Do.

Up to a limit of Rs. 30,000 in each case.

Subject to observance of normal rules and conditions necessary for execution of the contract and instruments.

19.

To sanction seed money.

(1) Senior Special Officer F.M.T.C.

Up to Rs. 25,000 in any single case.

(i) Subject to budget provision for giving the seed money.

(2) Director of Industries.

Up to Rs. 15,000 in any single case.

(ii) The scheme in question should be techno-economically viable and the entrepreneur found to be deserving, both by the sanctioning authority and Banks/financing organisations.(iii) The full fund requirements of the scheme should be met partly from a nationalised or scheduled Bank etc. or partly from other sources including the entrepreneurs own resources.(iv) The amount of the seed money should not exceed 10 p.c. of the total fund requirements of the scheme or the investment made by the entrepreneur himself from his own fund, whichever is less, and the actual release of the seed money should be preceded and matched by actual investment made by entrepreneur from his own fund.

Sericulture and Weaving Department industrial

1.

To grant industrial loans.

Director of Sericulture and Weaving or Deputy

Director of Sericulture and Weaving when authorised by the Director of Sericulture and Weaving.

(1) Loan above Rs. 2,500 but not exceeding Rs

5,000 to applicants in general.(2) Loan up to Rs. 7,500 to

political sufferers subject to the recommendation of the Cottage Industries (Advisory) Board.

Subject to rules.

2.

To sanction grants-in-aid.

Do.

Up to Rs. 500 to each Weaving Rearer and
Co-operative Weaving Society.

3.

To sanction scholarships for industrial
training.

Director of Sericulture and Weaving or Deputy
Director of Sericulture and Weaving when authorised by the
Director of Sericulture and Weaving.

Full powers.

Subject to annual allotment in the Budget and to
the limit of Rs. 500 in any individual case. The Director can
sanction and extend, if necessary, the tenure of such
scholarships on condition that Scholarships shall not be granted
for new purposes of forms of training save with the sanction of
the Administrative Department.

4.

To sanction charges of common rooms of Training
Institutions.

Do.

Up to Rs. 250.

Subject to provision in the Budget.

5.

Sanction items on capital expenditure (excluding
purchase of livestock, stores, tools, plants, furniture).

Director of Sericulture and Weaving.

Up to Rs. 5,000 in each case.

Subject to Budget provision.

6.

Sanction expenditure on contingencies for
purchase of tools, plants, manures, etc. and other stores.

(a) Deputy Director of Sericulture and Weaving.

Up to Rs. 500 in each case.

Subject to the conditions laid down in Serial
No. 5 (1) of Schedule II.

(b) Assistant Director of Sericulture, Assistant
Director of Weaving.

Up to Rs. 350 in each case.

Subject to the conditions laid down in Serial 5
(1A) of Schedule II.

(c) Weaving Superintendents and Superintendents
of Sericulture.

Up to Rs. 250 in each case.

Subject to the conditions laid down in Serial
No. 5 (1A) of Schedule II.

(d) Sericulture Research Officer, Principal of
Assam Textile Institute and Sericulture Training Institute.

Up to Rs. 250 in each case.

Do.

7.

Writing off of the irrecoverable value of silk

Worm seeds, eggs, etc.

Deputy Director of Sericulture

Up to Rs. 50 in any single case.

(1) Provided the loss does not disclose a defect of system the amendment of which requires an order of higher authority; or(2) A serious negligence on the part of some officer or officers which might call for disciplinary action requiring the orders of higher authority.

Miscellaneous Department

1.

Refund of fees paid in excess and of fees paid for inspections which for any reason not due to any fault or omission of the owners or persons in-charge of the boilers, have not been made.

Chief inspector of Boilers.

Provided under Rule 5 of the Rules framed under Section 29 of the Indian Boiler Act, 1923 (5 of 1923) refunds are applied for within one year from the date of payment. Such refunds due may also be set off against fees or inspections of any other boilers of the same owner.

2.

Sanction expenditure for press advertisement.

Director of Small Savings, Assam.

Up to Rs. 1,000 in each case.

Subject to necessary provision of fund in the Budget.

3.

Purchase of spareparts for modem high powered vessels fitted with marine diesel.

Director, Inland Water Transport.

Up to Rs. 3,000 in each case.

Subject to availability of fund.

Chief Electoral Officer

1.

Repairing of roads/ buildings including electrification selected for polling station, counting Halls etc./ construction of temporary sheds in connection with the election/revision of Electoral Rolls.

Chief Electoral Officer.

Full powers.

Subject to the estimates being scrutinised by the competent authority of P.W.D. and the works being done as per norms as may be prescribed by the Election Commission.

2.

Sanction of miscellaneous expenditure on contingencies.

Chief Electoral Officer.

Full Powers.

Subject to-(a) Availability of Fund.(b)

Observance of procedural and other general directions laid down in the Assam Contingency Manual and special orders issued by the Government from time to time.

3.

Rent on land and buildings leased out to Government.

Do.

Do.

Subject to-(1) Budget provision. (2) Tire rent is fixed by the competent authority under the Assam Urban Areas Rent Contort Act in Urban Areas. (3) Reasonableness certificate of rent issued by the Deputy Commissioner in respect of rent outside the urban areas. (4) The floor area is in accordance with the standard prescribed by the General Administration Department.

4.

Purchase of type-writers/Duplicating machines and Calculating machines.

Do.

Do.

Subject to-(1) Budget provision. (2) Purchase is made from suppliers as per rates approved by the Printing and Stationery Department.

5.

Repairs to Government vehicles including Officer, purchase of tyres, tubes and spare parts in connection with the conduct of election/ revision of Rolls. Chief Electoral Officer.

Full powers.

Subject to-(1) Budget provision. (2) History register for each vehicle showing details of mileage, spare parts purchased, major and minor repairs done and cost incurred thereof being maintained.

6.

Local purchase of stationery in emergent cases in connection with the conduct of election and revision of Electoral Rolls.

Do.

Do.

Subject to the State Stationery Store office being unable to supply the stationery due to non-availability in the Store and the purchase is made inviting tender and the fixed as per lowest tendered rate.

Director of Information and Public Relations

1.

Incur expenditure in connection with exhibitions, shows and fairs.

Director of Information and Public Relations.

(1) Up to Rs. 1,000.

In each case of exhibitions, fairs and shows organised on State- wide basis.

(2) Up to Rs. 250.

In case of District and local exhibitions, fairs and shows.

2.

To declare as D.D.O. for drawal and disbursement of salary and T.A. of non-Gazetted staff.

Additional Directors of Information and Public Relations, (Hills) Haflong.

Full powers.

Subject to fulfilment of the conditions as laid down in S.O. 214 of the T. Rs. and S. Os. and T.A. bills being countersigned by the D.I.P.R., Assam.

3.

To sign cash book under Rule 95 (2) of A.F.R.

Additional Director of Information and Public Relations (Hills) Haflong.

4.

To sanction leave of non-Gazetted staff under him.

Do.

30 days.

Provided leave is admissible under the Rules.

5.

Local purchase of stationery articles up to Rs. 200 (Two hundred) in each case.

Do.

Up to an annual limit of Rs. 2,500 (Two Thousand and five hundred).

Provided those articles are not received from Government Stationery Stores against annual indent which should be certified.

5-a.

Local purchase of stationery articles.

Joint Director of Information and Public Relations, Assam Information Centre, Calcutta.

Up to Rs. 150 (One hundred fifty) in each case subject to annual limit of Rs. 2,000.

Do.

6.

To incur contingent expenditure.

Additional Director of Information and Public Relations (Hills) Haflong.

Up to Rs. 500 (Five hundred) in each case for non-recurring expenditure.

Subject to provision of valid appropriation and limitation as laid down in D.F.P. Rules, 1960 and provision in the Contingency Manual.

6-a.

To incur contingent expenditure.

Joint Director of Information and Public Relations, Assam Information Centre, Calcutta.

Up to Rs. 300 (Three hundred) in each case for non-recurring expenditure.

Do.

7.

To sanction periodical increment to non-Gazetted officers.

Do.

Full powers.

Unless otherwise withheld.

8.

Urgent printing at local press relating to publicity.

Joint Director of Information and Public Relations, Assam Information Centre, Calcutta.

Rs. 500 in each case.

After observing various Financial implications provided Government press could not undertake the works.

9.

Expenditure on exhibition.

Additional Director of Information and Public Relations (Hills) Haflong.

Rs. 500 for State level and Rs. 250 for district level.

Subject to Budget provision and observation of Rules and procedure.

10.

Sanction of expenditure on contingencies-

(a)

Purchase of instruments, appliances, apparatus, machinery, tools and plant and other stores in India (including livestock).

Do.

(a) Full powers when purchase is made through Central Stores Department or on rate contract or through a duly constituted Purchase Board wherein the Administrative Department and Finance Department are represented.(b) Otherwise up to Rs. 5,000 in each case provided the cost of each item does not exceed Rs. 1,000.

Subject to Budget provision and provisions of the Financial Rules governing the purchase of stores for the public service (Appendix X of the Assam Financial Rules).

(b)

Purchase of spare parts, tyres, tubes and costs of repairs on departmental vehicles.

A.D.I.P.R. (Hills).

(1) For purchase of tyres, tubes up to Rs. 1,000 in each case(2) Minor overhaul and repairs at cost not exceeding Rs. 500 in each case.

Subject to Budget provision and observance of procedure and other general direction.

(c)

Purchase of furniture for new office or on expansion of existing offices or in replacement of old ones.

Do.

Full powers.

(a) Furniture should be of the approved type. (b) Availability of Funds. (c) Observance of procedure and other general directions. Note.- Where standard types, scales of furniture have not been prescribed, General Administration Department should lay down standard types and scales.

(d)

Purchase of office equipments such as clocks, time pieces, table fans etc.

A.D.I.P.R. (Hills).

Up to Rs. 500 in each case.

Subject to Store Rules the limit refers except where otherwise stated, to the cost of each article or any number of articles of the same kind purchased at any time whether for one office or a number of offices.

(e)

Rent on lands and buildings leased out to Government.

Do.

Up to Rs. 500 per month in each case.

Subject to the condition that-(1) Budget provision exists. (2) The Executive Engineer certifies that a suitable public building is not available. (3) The Deputy Commissioner certifies as to the reasonableness of the rent. (4) The floor area does not exceed prescribed standard by more than 10 per cent.

(f)

Purchase of books, maps, periodicals and newspapers.

Do.

Full powers.

Subject to the condition that all charges incurred are within the Budget allotment sanctioned for the purpose and that no addition is made to the allotment by reappropriation from any source, without the previous sanction of Government, the sanction of the Heads of Departments is sufficient for the purchase of books, maps, publications, newspapers and periodicals required for the essential need of their offices or those of their subordinates. Such purchases can be made only when the books, etc. are necessary for the working of the Department. For full list of officers authorised to purchase books, maps, etc., please see Item 22, Appendix 'C' to the Assam Contingency Manual and also refer to Rules 328-331 of the Assam Executive Manual for further instructions.

11.

Sanction advances to Government servants under orders of transfer/on tour-

(1)

To a Gazetted/non-Gazetted officer (other than an inspecting officer, or for himself proceeding on transfer/on tour to cover his/her contingent charges for a month (ie. advance pay for a month/advance TA).

A.D.I.P.R. (Hills).

Full powers.

As per details in Rule 396 of the Assam

Financial Rules. In case of himself he should obtain the prior approval of D.I.P.R.

(2)

Inferior Government servants accompanying officers proceeding on tour to cover their personal travelling expenses for a month.

A.D.I.P.R.(Hills).

Full powers.

As per details in Rule 396 of the Assam

Financial Rules. In case of himself he should obtain the prior approval of D.I.P.R.

12.

To make payment of all advertisement bills.

D.I.P.R.

Do.

Subject to condition that the funds are available in the appropriate head of account and also observance of provisions under S.O. 214 & 213 (b) of the T.R.S. and S.O.S.

Director, Inland Water Transport

1.

Purchase of spare parts for modern high powered vessels fitted with marine Diesel Engines.

Director of Inland Water Transport.

Up to Rs. 6,000 in each case.

Subject to availability of fund.

Public Works Department

1.

Local purchase of stationery in emergent case.

P.W.D. Sectt.

All articles of stationery which are supplied by the State Stationery Stores at Gauhati and Shillong must ordinarily be obtained from these Stores on indent. When supply from these Stores are not received due to some reasons or other and it is absolutely necessary to purchase the articles, local purchase may be resorted to by inviting tenders subject to the following scale :Up to Rs. 30 in each case subject to the annual limit of Rs. 2,000.

2.

Make leases of land and houses.

P.W.D.

Full powers

Provided the lease is for a period not exceeding

one year.

3.

Remit charges for establishment, tools and plants on non-Government works.

Do.

.....

When works outlay does not exceed Rs. 1,000.

4.

Sanction the sale or dismantlement of State buildings.

Do.

.....

Provided the book value does not exceed Rs. 40,000.

5.

Sanction expenditure on works-original works.

Do.

Up to Rs. 50,000 in each case.

Subject to Budget provision and rules relating to construction laid down in Rules 240 and 243 of the Assam P.W.D. Code.

6.

Sanction expenditure under repairs and suspense.

Do.

Full powers.

.....

7.

Sanction the leasing of houses as residences for Government servants.

P.W.D.

Full powers.

.....

8.

Sanction increases in the reserve stock of a Division.

Do.

Do.

.....

9.

Undertake deposit works.

Do.

Do.

.....

10.

Purchase, manufacture and dispose of store and tools and plants including livestock.

Do.

Do.

Subject to provision in the Store Rules.

11.

Payment of compensation to contractors for

unforeseen losses due to acts of God.

Do.

Up to Rs. 2,000 in any single case

.....

12.

Writing off of the irrecoverable value of stores, livestock or public money lost by fraud or the negligence of individuals or other causes.

Do.

Up to Rs. 5,000.

Provided that the loss does not disclose (a) defect of system the amendment of which would require a reference to the Finance Department; or (b) a serious negligence on the part of a particular Government servant or servants which might call for disciplinary action requiring a reference to the Finance Department.

Chief Engineers and other subordinate authorities

13.

Classify as 'works' or 'temporary' those establishments as to the correct classification of which there is doubt.

Chief Engineer.

Full powers.

Provided the concurrence of the Accountant General, Assam is obtained.

14.

Waive the rule that works establishment must be employed upon a specific work and to determine the proportions in which the cost of such establishment shall be allocated between the works concerned.

Do.

Do.

15.

Remission and refund of ferry revenue and tolls on roads and bridges.

Do.

.....

Refund of revenue which have become due as a matter of right owing to mistake in collection, collection being made twice over and to similar causes.

16.

Writing off of the value of any building (borne on the books of the P.W.D) abandoned or dismantled.

All public works disbursers including Civil Public Works Officer/Additional Executive Engineer.

Full powers.

17.

Writing off of the value of unserviceable stores and tools and plants (including livestock).

Executive Engineers/ Additional Executive

Engineers.

Within their powers of disposal of such articles.

Subject to the approval of the Superintending Engineer, when an individual item costs over Rs. 1,000.

18.

Writing off of the irrecoverable value of stores (including furniture), livestock or public money lost by fraud or negligence of individuals or other causes.

(a) Superintending Engineer.(b) Executive Engineers/ Additional Executive Engineers

Up to a limit of Rs. 1,000. Up to Rs. 100.

Provided the loss does not disclose-(1) a defect of system the amendment of which requires the order of higher authority; or (2) a serious negligence on the part of some officer or officers which might possibly call for disciplinary action requiring the orders of higher authority.

19.

Give technical sanction to original works and special repairs (exclusive of departmental charges).

(a) Chief Engineer.

Full powers.

(b) Superintending Engineer.

Up to Rs. 4,00,000.

(c) Executive Engineer/Additional Executive Engineer.

Up to Rs 50, 000.

(d) Inspector of Local Works.

Up to Rs. 20,000

(e) Civil Public Works Officers.

Up to Rs. 10,000.

20.

Entertain work charged establishment.

Commissioner/Secretary of the concerned Administration Departments.

Full powers.

Provided that-(1) Budget provision exists.(2)

Staff are to be entertained for 3 (three) months only.

21.

Give technical sanction to repairs.

(a) Executive Engineer/Additional Executive Engineer.

Full powers.

(b) Civil Public Works Officer.

Do.

Within the limit of the approved lump sum or standard estimates.

22.

Sanction contribution works.

(a) Chief Engineer.

Full powers.

(b) Superintending Engineer.

Up to Rs. 1,00,000.

(c) Executive Engineer and Civil Public Works

Officers/ Additional Executive Engineer.

Up to Rs. 25,000.

23.

Sanction excess over estimates.

(a) Chief Engineer.

Full powers.

(b) Superintending Engineer and Divisional

Officers.

Up to 5 per cent provided the total of the exceeded estimate is within his power of sanction.

24.

Purchase and manufacture of stores and tools and plants including livestock.

(a) Executive Engineer/Additional Executive Engineer.

Full powers.

Subject-(1) to the provisions of the Stores

Rules and the Rules in the Assam P.W.D. Code. (2) to the articles included in the sanctioned estimates or the value is within the reserve stock limit (except the plant and machinery which will be arranged by the Chief Engineer). (3) to the approval of the Superintending Engineers when an individual item costs over Rs. 4,000.

(b) Civil Public Works Disbursers/ Additional Executive Engineer.

Do.

Subject to the approval of the Superintending Engineer when an individual item costs Rs. 1,000 or more.

25.

Disposal of stores and tools and plants including livestock (both serviceable and unserviceable).

Executive Engineer/Additional Executive Engineer.

Full powers.

Subject to the following conditions : (1) In the case of articles in use of officers and subordinates of the Department or lent to contractors for use of Government work which may be lost or damaged, full value is to be recovered or part value for causes which Executive Engineer may consider reasonable. (2) In the case of articles of Bungalow furniture lost or damaged same as in (1). (3) In other cases, disposal is to be by sale which should ordinarily be by auction or by calling for tenders as may be considered most suitable. (4) In all cases by book or if not known, the estimated value of an individual item disposed of or written off at one and the same time must not exceed Rs. 1,000. Note.- The expression "individual Item" includes a quantity of the same articles reckoned as one item according to the unit adopted by

the P.W.D. e.g., 1,000 bricks are an individual item.(5) In cases not covered by the above the previous approval of the Superintending Engineer must be obtained, and also when the Executive Engineers consider it necessary in the public interest that certain articles or classes of articles should be destroyed and not made available to an outside party over on payment.

Executive Engineer.

Up to a limit of Rs. 1,000.

On the same conditions. In their case the total value of articles disposed of or written off at one and the same time is limited to Rs. 1,000.

Civil Public Works Disbursers/Addl. Executive Engineer.

Do.

26.

Sanction local purchase of stationery.

(a) Executive Engineer/Addl. Executive Engineer.

Up to Rs. 36 per Sub-division annually.

For works establishment and up to a limit of Rs.

20 in each case for office use.Note.- An excess over the prescribed annual limit of Rs 36 per sub-division may be approved by the Chief Engineer; provided the total of the excesses is covered by the total of the saving in others in the same years.

(b) Deputy Commissioner, Mizo District.

Up to Rs. 90 annually for the same purpose.

27.

Sanction all estimates for repairs and carriage of tools and plants.

(a) Chief Engineer.

Full powers.

(b) Superintending Engineer.

Up to Rs. 1,00,000.

(c) Executive Engineer / Addl. Executive Engineer.

Up to Rs. 20,000.

(d) Inspector of local works

Up to Rs. 20,000.

(e) Civil Public Works Officer.

Up to Rs. 5,000.

28.

Sell or dismantle Provincial buildings.

Superintending Engineer

Up to Rs. 5,000.

29.

Sell or dismantle temporary buildings erected during construction of a work.

Executive Engineers and Civil Public Works Officers/ Addl. Executive Engineer.

Full powers.

30.

Sell materials received from works dismantled or undergoing pairs as their estimated value.

(a) Executive Engineers/Addl. Executive Engineer.

Do.

Subject to the condition that serviceable stores, the book value of which exceeds Rs. 1,000 shall only be disposed of by auction or by calling for tenders.

(b) Civil Public Works Officers.

Up to Rs. 1,000.

On the same condition.

31.

Accept tenders.

(a) Chief Engineer/Addl. Chief Engineer.

Full powers when selection of tenders and fixation of rates are made by the Tender Committee; otherwise up to Rs. 15,00,000 in each individual case.

(b) Superintending Engineer.

Up to Rs. 2,00,000.

(c) Executive Engineer-in-charge of Division.

Up to Rs. 50, 000.

(d) Civil Public Works Officers.

Up to Rs. 15,000.

(e) Public Works Sub-divisional Officers-

(i) Executive Engineer/Additional Executive Engineer.

Up to Rs. 5,000.

(ii) Assistant Engineers.

Up to Rs. 2,000.

(iii) Subordinate Engineering Service.

Up to Rs. 1,000.

(f) Sub-divisional Officer.

Up to 500.

Subject to such conditions as the Deputy Commissioner concerned may direct.

Sub-divisional Officers P.W.D. Chapakhowa.

Up to Rs. 500.

Do.

Sub-divisional Officer, P.W.D. Garo, Hills.

Up to Rs. 500.

Subject to such conditions as the D.C. concerned may direct.

(g) Sub-divisional Officer with not less than 5 years' experience as Sub-divisional Officer.

Up to Rs. 5,000.

(h) Sub-divisional Officer with less than 5 years' experience as Sub-divisional Officers.

Up to Rs. 2,000.

32.

Purchase of spares and cost of petty repairs to the Departmental vehicles.

Executive Engineer/ Additional Executive Engineer.

On the same conditions as in the case of the Heads of Departments, up to Rs. 250 in case of spares and Rs. 100 for petty repairs in each case.

33.

To accord administrative approval to Plans and Estimates to be carried out by P.W.D.

Additional Chief Engineer, P.W.D.

Rs., 1 (One) lakh for non-residential works under plan/non-plan.

Provided-1. The estimates are scrutinised by appropriate officers of P.W.D. under the administrative control of the Department.2. The limits of the admissible outlay are not exceeded.3. Funds by valid appropriation are available.4. The power does not extend to acquisition of land for which sanction of Revenue/ Finance will be necessary.

34.

To accord administrative approval to Plans and Estimates to be carried out by Irrigation Department.

Additional Chief Engineer of Irrigation Department within their respective zones.

Rs. 1 (One) lakh for no-residential works under plan/non-plan.

(1) The new Schemes and Buildings-Schemes are approved by the Departmental Committee.(2) The estimates are scrutinised by appropriate officers of Irrigation Department under administrative control of the Department.(3) The limits of the prescribed admissible outlay are not exceeded.(4) Floor area must be according to specification admissible for post category-wise.(5) Funds by valid appropriation are available.(6) The power does not extend to acquisition of land for which sanction of Revenue/ Finance will be necessary.

Panchayat and Rural Development Department

1.

Creation of temporary posts (Power to make appointments).

(a) Development Commissioner and Deputy Development Commissioner.

In respect of non-gazetted posts carrying pay scales the minimum of which does not exceed Rs. 200 per mensem. Subject to the course of recruitment as prescribed by State Government and other conditions laid down by Government in the delegation of such power to other Heads of Department.

(b) Deputy Commissioner.

In respect of non-gazetted posts carrying pay scale the minimum of which does not exceed Rs. 125 per mensem. Under schemes/establishment sanctioned by Government.

Do.

Full powers.

Under schemes sanctioned by the Deputy Commissioner.

(c) P.E.Os./A.P.E. Os., In-charge (B.D.Os.).

In respect of non-gazetted posts carrying pay scale the minimum of which does not exceed Rs. 125.

Under schemes sanctioned by the Deputy Commissioner.

2.

Equipment and stores-

(i)

Purchase of capital equipment.

(a) Development Commissioner.

Up to Rs. 55,000 for a single item.

(b) Deputy Development Commissioner.

Up to Rs. 50,000 for a single item.

(c) P.E.Os./A.P.E. Os., In-charge (B.D.Os.)

Up to Rs. 5,000 for a single item.

(d) Deputy Commissioner.

Full powers.

Under schemes sanctioned by him.

(ii)

Purchase of stores for stock-pile.

(a) Development Commissioner.

Up to Rs. 30,000 for a single item.

(b) Deputy Development Commissioner.

Up to Rs.25,000 for a single item.

(c) P.E.Os./A.P.E. Os., In-charge (B.D.Os.)

Up to Rs.5,000 for a single item.

(d) Deputy Commissioner.

Full powers.

Under schemes sanctioned by the Deputy Commissioner.

(e) Deputy Commissioner.

Up to Rs. 10,000 for a single item.

Under schemes/establishment sanctioned by Government.

(iii)

Purchase of stores against specific sanctioned works.

(a) Development Commissioner.

Up to Rs. 55,000 for a single item.

(b) Deputy Development Commissioner.

Up to Rs. 50,000 for a single item.

(c) Deputy Commissioner.

Up to Rs. 25,000 of a single item.

Do.

Do.

Full powers.

Under schemes sanctioned by him.

(d) P.E.Os./A.P.E. Os., Incharge (B.D.Os.)

Up to Rs. 15,000 for a single item.

3.

(1) Sanction expenditure on works (provided the plans and estimates have been approved by an Executive Engineer of P.W.D.).

(a) Development Commissioner.

Up to Rs. 55,000 for a single item.

Provided the plans and estimates are approved by the Executive Engineer, Public Works Department for works up to Rs. 25,000 and by the Superintending Engineer, Public Works Department up to Rs. 50,000 and by the Chief Engineer over Rs. 50,000.

(b) Deputy Development Commissioner.

Up to Rs. 50,000 for a single item.

(c) Deputy Commissioner.

Up to Rs. 10,000 for a single item.

Do.

Full powers.

Under schemes sanctioned by him.

(d) P.E.Os./ A.P.E.Os., Incharge (B.D.Os.).

Up to Rs. 5,000 for a single item.

Provided the plans and estimates have been approved by the Overseer of the Block.

(2)

Sanction expenditure on repair and maintenance of works and to accept tenders, etc. (provided the plans and estimates are approved by the Overseer of the Block).

(a) Development Commissioner.

Up to Rs. 7,000 for a single item of work.

(b) Deputy Development Commissioner.

Up to Rs. 5,000 for a single item of work.

(c) Deputy Commissioner.

Up to Rs. 2,000 for a single item of work.

Under schemes/establishment sanctioned by Government.

Do.

Full powers.

Under schemes sanctioned by the Deputy Commissioner.

(d) P.E.Os./ A.P.E.Os., Incharge (B.D.Os.)

Up to Rs. 500 for a single item of work.

4.

Contingencies- Sanction contingent expenditure on items not specifically mentioned in the schedule of a-

(i)

Non-recurring nature

(a) Development Commissioner.

Up to Rs. 500 for a single item.

(b) Deputy Development Commissioner.

Up to Rs. 500 for a single item.

(c) Deputy Commissioner.

Up to Rs. 300 for a single item.

Under schemes/ establishment sanctioned by Government.

Do.

Full powers.

Under schemes sanctioned by him.

(d) P.E.Os./ A.P.E.Os., In-charge (B.D.Os.)

Up to Rs. 100 for a single item.

(ii)

Recurring nature.

(a) Development Commissioner, and Deputy Development Commissioner.

Up to Rs. 100 per mensem for a single item.

(b) Deputy Commissioner.

Up to Rs. 50 p.m. for a single item.

Under schemes/ establishment sanctioned by Government.

(c) P.E.Os./ A.P.E.Os., Incharge (B.D.Os.)

Up to Rs 10 p.m. of a single item.

5.

(1) Powers of the Head of an office, and Drawing and Disbursing Officer.

(a) Development Commissioner and Deputy Development Commissioner.

Full powers of the Head of a Department.

(b) P.E.Os./ A.P.E.Os., In-charge (B.D.Os.)

Full powers.

In respect of Government servants working under him.

(2)

Sanction casual leave.

(a) Development Commissioner and Deputy Development Commissioner.

Full powers of the Head of Department.

(b) P.E.Os./A.P.E.Os., In-charge (B.D.Os.)

Full powers.

Do.

(3)

Sanction leave admissible under the rules including extraordinary leave-

(i)

In respect of non-gazetted Government servants.

(a) Development Commissioner and Deputy Development Commissioner.

Full powers.

Subject to provision in S.R. 61.

(b) P.E.Os./AP.E.Os. Incharge (B.D.Os.)

Do.

In respect of non-gazetted Government servants working under him.

(ii)

In respect of gazetted Government servants.

(a) Development Commissioner, Deputy Development Commissioner.

Do.

Subject to provision in S.R.62.

(b) P.E.Os./ A.P.E.Os., Incharge (B.D.Os.)

Up to 7 days at a time.

(4)

Sanction earned increments according to prescribed rules in respect of salaried posts.

(a) Development Commissioner, Deputy Development Commissioner.

Do.

(b) P.E.Os./ A.P.E.Os., Incharge (B.D.Os.)

Do.

In respect of non-gazetted Government servants working under him.

(5)

Accept resignation of non-gazetted Government servants.

(a) Development Commissioner, Deputy Development Commissioner.

Do.

(b) P.E.Os./ A.P.E.Os., In-charge (B.D.Os.)

Full powers.

In respect of staff appointed by him.

(6)

Withholding of increments in respect of Government servants.

(a) Do.

Do.

In respect of staff working under him.

(b) Do.

Do.

(7)

Act as Controlling Officer under S.R. for travelling allowance claim.

(a) Do.

Do.

In respect of non-gazetted Government servants working under him.

(b) Do.

Do.

(8)

Require medical certificate of fitness before return from leave.

(a) Development Commissioner, and Deputy Development Commissioner.

Do.

As the Heads of Department.

(b) P.E.Os./ A.P.E.Os., In-charge (B.D.Os.)

Do.

In respect of all Government servants working under him.

(9)

Prescribe headquarters.

(a) Development Commissioner, and Deputy Development Commissioner.

Do.

As the Heads of Department.

(b) P.E.Os./ A.P.E.Os., In-charge (B.D.Os.)

Do.

In respect of non-gazetted Government servants working under him.

6(1)

Determine number of workers to be employed on daily rate of wages for work other than constructional work.

P.E.Os./A.P.E.Os., In charge (B.D.Os.)

Full powers within the frame works of sanctioned estimates.

(2)

Fix wages of daily rate workers.

Do.

Full powers within the limits of the local P.W.D. schedule of rate.

(3)

Discharge, or accept resignation of workers on daily rates of wages.

Do.

Full powers.

(4)

Fix piece-rate of work for a group of workers (other than constructional work).

P.E.Os./A.P.E.Os., Incharge (B.D.Os.)

Full powers within the sanctioned detailed estimates.

7.

(1) Sanction expenditure on advertisement charges.

(a) Development Commissioner and Deputy Development Commissioner.

Up to Rs. 2,000 in a financial year.

(b) P.E.Os./ A.P.E.Os., Incharge (B.D.Os.)

Up to Rs. 200 in a financial year.

(c) Deputy Commissioner.

Up to Rs. 500 in a financial year.

Under Schemes/establishment sanctioned by Government.

(d) Do.

Full powers.

Under schemes sanctioned by the Deputy Commissioner.

(2)

Sanction expenditure on freight and transit insurance.

(a) Development Commissioner, and Deputy Development Commissioner.

Up to Rs. 1,000 in a single case.

(b) P.E.Os./ A.P.E.Os., In-charge (B.D.Os.)

Up to Rs. 200 in a single case

(c) Deputy Commissioner.

Up to Rs. 750 in a single case.

Under schemes/establishment sanctioned by the Government.

(d) Do.

Full powers.

Under schemes sanctioned by the Deputy Commissioner.

(3)

Sanction expenditure on demurrage charges (when these are not due to the negligence of any Government servant).

(a) Development and Deputy Development Commissioner.

Up to Rs. 200 in a single case.

(b) P.E.Os./ A.P.E.Os., In-charge (B.D.Os.)

Up to Rs. 50 in a single case.

(c) Deputy Commissioner.

Up to Rs. 100 in a single case.

Under schemes/establishment sanctioned by the Government.

(4)

Sanction local purchase of stationery.

(a) Development and Deputy Development Commissioner.

Up to Rs. 50 in each case.

Subject to a total of Rs. 2,000 in a financial year on fulfilment of the condition laid down in Serial No. 6 of Schedule II.

(b) P.E.Os./ A.P.E.Os., Incharge (B.D.Os.)

Up to Rs. 10 in each case.

Subject to a total of Rs. 300 in a financial year.

(c) Deputy Commissioner.

As delegated by Government (P. & S. Department) from time to time.

(5)

Sanction local printing (when Government Press is unable to undertake the work).

(a) Development and Deputy Development Commissioner.

There is no objection to utilising local private printing presses where these charge reasonable prices, and the papers to be printed are not confidential. Where no allotment is

made under this head, charge up to Rs. 100 in each case subject to a total of Rs. 1,000 in a year may be charged to the allotment under Office Expenses and Miscellaneous. These limits include the cost of paper. Standardised forms must never be printed locally. The work may be distributed after obtaining quotation from different local presses and to the best economic interest of Government.

(b) Deputy Commissioner.

On the same condition up to Rs. 75 in each case subject to a total of Rs. 600 in a year.

(c) P.E.Os./ A.P.E.Os., In-charge (B.D.Os.)

On the same condition up to Rs. 50 in each case subject to a total of Rs. 300 in a year.

It should be certified in each bill that the printing could not be undertaken by the Government Press and that the bill does not contain any charge for any item above the permissible limit.

(6)

Sanction purchase of non- official publications.

(a) Development and Deputy Development Commissioner.

Up to Rs. 500 per annum.

(b) Deputy Commissioner.

Up to Rs. 200 per annum.

(c) P.E.Os./ A.P.E.Os., Incharge (B.D.Os.).

Up to Rs. 100 per annum.

(7)

Sanction expenditure on-

(a)

Repairs and maintenance of motor vehicles.

(a) Development and Deputy Development Commissioner.

Up to Rs. 2,000 per annum, per vehicle.

(b)

Petrol and lubricants.

(b) P.E.Os./ A.P.E.Os., Incharge (B.D.Os.)

Up to Rs. 500 per annum per vehicle.

All the Officers referred to above

To the extent required for day to day running of the vehicle.

(8)

Sanction purchase of miscellaneous articles for office use, e.g. tumblers and water pots, etc.

(a) Development Commissioner and Deputy Development Commissioner.

Up to Rs. 250 per annum.

Under schemes sanctioned by him.

(b) Deputy Commissioner.

Full powers.

(c) P.E.Os./ A.P.E.Os., Incharge (B.D.Os.)

Up to Rs. 100 per annum.

(9)

Sanction expenditure on upkeep of typewriters, Calculating machines, etc.

(a) Development Commissioner.

At the rate of Rs. 5 per month per machine.

Do.

(b) Deputy Commissioner.

Do.

(c) Deputy Commissioner.

Full powers.

(d) P.E.Os./ A.P.E.Os., Incharge (B.D.Os.)

At Rs. 2 per mensem per machine.

(10)

Sanction expenditure on purchase of furniture and fixtures for the office.

(a) Development Commissioner and Deputy Development Commissioner.

Up to Rs. 2,000 per annum.

(a) Furniture should be of the approved

type.(b) Availability of funds.(c) Observance of

procedural and other general directions.(d) Such purchases

should be made in accordance with prescribed scales.Note.- G.A.D. should take steps to prescribe the standard types and

scales of furniture in consultation with the Finance Department.

(b) Deputy Commissioner.

Full powers.

Under the schemes sanctioned by the Deputy Commissioner.

(c) P.E.Os./ A.P.E.Os., Incharge (B.D.Os.)

Up to Rs. 500 per annum.

8.

Sanction expenditure on-

(a) Development Commissioner and Deputy Development Commissioner.

Up to Rs. 1,000 in each case of repairs, erection, removal, etc.

Under the schemes sanctioned by the Deputy Commissioner.

(i)

Repairs to erection and removal of machinery and equipment.

(b) Deputy Commissioner.

Full powers.

(ii)

Repairs to furnitures and fixtures.

(c) P.E.Os./ A.P.E.Os., Incharge (B.D.Os.)

Up to Rs. 200 in each case of repairs, erection, removal, etc.

9.

(1) Authorise sale by public auction or calling for tenders unserviceable stores and tools or articles

manufactured/produced in industrial centre, farms, etc.

(a) Development Commissioner and Deputy Development Commissioner.

Up to the extent of book value of Rs. 500 per month.

Under the schemes/establishment sanctioned by Government. Under the schemes sanctioned by the Deputy Commissioner.

(b) Deputy Commissioner.

Up to the extent of the book value of Rs. 100 per month.

(c) Do.

Full powers.

(2)

Sanction write off of stores provided the losses are not due to fraud or negligence, misappropriation or defect in the existing rules or system.

(a) Development Commissioner and Deputy Development Commissioner.

Full powers of Heads of Department.

Under the schemes sanctioned by the Deputy Commissioner.

(b) Deputy Commissioner.

Full powers.

Subject to a total of Rs. 200 in a year.

(c) P.E.Os./ A.P.E.Os., Incharge (B.D.Os.)

Up to Rs. 20 in each case.

10.

Sanction loans to individuals and groups.

(a) Development Commissioner.

Up to Rs. 1,000.

Provided the provisions in the relevant Acts and instructions in the departmental circulars are observed.

(b) P.E.Os./ A.P.E.Os., Incharge (B.D.Os.)

Up to Rs. 500 in each case.

Under the schemes/establishment sanctioned by the Government.

(c) Deputy Commissioner.

Up to Rs., 1,000 in each case.

Under the schemes/establishment sanctioned by the Government.

11.

Sanction 'Grants-in-aid, to local institutions and 'Honoraria' to teachers, etc. detailed scheme.

P.E.Os./A.P.E.Os., Incharge (B.D.Os.)

(a) Full powers in respect of grant-in-aid.

(a) To the extent provided in each case in the sanctioned detailed scheme.

Do

(b) Upto Rs. 50 in each case

(b) In respect of honoraria in a financial year.

12.

Incur expenditure on any item of expenditure.

P.E.Os./A. P.E.Os., Incharge (B.D.Os.)

Up to Rs. 500 at a time.

Provided the following conditions are fulfilled

:(1) The item in question should form part of the overall C.D. Programme;(2) The item should be included in the relevant detailed scheme under preparation;(3) The expenditure incurred should be covered by Budget allotment under the relevant minor head; and(4) The expenditure should be incurred in consultation with the district head of the department concerned or the Deputy Commissioner/S. D.O., as the case may be.

13.

Sanction any scheme under "Irrigation".

Deputy Commissioner.

An outlay not exceeding Rs. 50,000.

Provided-(1) the Block Development Committee has approved the scheme.(2) Such scheme involving an outlay of more than Rs. 10,000 but not exceeding Rs. 25, 000 has been technically examined and approved by the Superintending Engineer, P.W.D.

Deputy Development Commissioner.

An outlay exceeding Rs. 50,000.

Provided-(1) the Block Development Committee has approved the scheme.(2) The scheme has been technically examined and approved by the Chief Engineer. P.W.D.

14.

Power to sanction schemes-

Deputy Development Commissioner and Deputy Commissioners.

As per details in C.P. Department's letter Nos.

CPM. 39/55/378, dated 23rd May, 1960 and CPPS. 104/58/11, dated 8th September, 1958, vide Annexure IV.

(a)

Within itemwise provision in the Budget.

(b)

Schemes exceeding the itemwise provision or loan of other than loan provision.

(c)

Sanction re-appropriation between items within the allotment for a head of development in the schematic Budget.

(d)

Sanction schemes involving re-appropriation between different development heads.

15.

Powers to create temporary posts under the Community Development Programme and in the pre-extension stage Blocks, etc.

Deputy Commissioner.

As per details in C.P. Department's letter Nos.

CPA/III. 59/117, dated 9th May, 1960, CPPS 104/58/4, dated 29th

February, 1960 and CPED. 131/58/24, dated 18th March, 1960, vide Annexure V.

Planning and Development Department

1.

To accord sanction for purchase of scooter, motor-cycle, bicycle etc. to the employees working under the administrative control of P& D Department.

Special Commissioner.

Full powers.

Subject to-(1) observance of all rules and procedures and availability of fund; and (2) fulfilment of conditions laid down by Finance Department from time to time.

2.

To sanction advance to Government servant under his administrative control for construction, purchase and repair of houses.

Do.

Do.

As per details in Rules 382, 383 and 384 of Assam Financial Rules.

Relief and Rehabilitation Department

1.

Sanction of ex-gratia grant to the next of kins of the victims of extremists' violence.

Secretary, Relief and Rehabilitation Department.

Up to Rs. one lakh

Provided that-(1) Budget provision and availability of fund.(2) On the basis of the report furnished by the respective D.C. and S.P.

Governor's Secretariat

1.

Creation of temporary posts in services, cadres under Governor's Secretariat.

Secretary to Governor.

Non-gazetted posts on pay scale with the minimum not exceeding Rs. 650 p.m., for a period not exceeding 12 months.

The powers conferred to create temporary posts shall be exercised only in case of urgency i.e. when an appointment is to be made immediately in the public interest and reference to the Finance Department would cause undue delay.It will further be subject to the following conditions :(i)

Copies of all sanctions should be forwarded to the Finance Department immediately.(ii) No post shall be created in the Governor's Secretariat.(iii) Availability of funds by valid appropriation.(iv) Conformity with standard scales of pay approved for similar posts in the same offices.(v) Posts should be in addition to the cadre in existence. No new category of posts should be created.(vi) Observance of instructions regarding staff composition and work standards where prescribed.(vii) No advance increment should be given without prior approval of the Finance Department.Note.- (1)

The authority creating the post shall have power to abolish the same before expiry of the stipulated period if circumstances justify the same. If a post is initially created for a shorter period the authority creating the post shall be competent to extend it to the full limit of its power. Extension hereafter in all cases shall invariably require the approval of the Finance Department.(2) In case of posts in the Governor's Secretariat reference to Finance Department will be necessary.(3) Persons appointed to the post will be entitled to dearness and other allowances as admissible under the rules for the time being in force.

2.

Sanction for retention of staff created with the concurrence of the Finance Department.

Secretary to Governor.

For one year at a time and for 5 years in respect of Governor Secretariat.

(i) Availability of funds by valid appropriation.(ii) Conformity with original sanction.(iii) Circumstances which weighed in creating the posts still exist.

3.

Purchase of Typewriters/ Duplicators/ Calculating machines.

Secretary to Governor

Full powers.

Subject to Budget provision.Note.-

The typewriter of the required size may be obtained direct from the approved suppliers/firms at the approved price without channelising the proposal through the G.A. (P& S) Department after ascertaining the position from them.

4.

To sanction pre-audit claims up to 6 years.

Do.

Do.

5.

Repairs of Type-writers/Duplicators/ Calculators.

Do.

Up to Rs. 500 annually for each machine.

Subject to-(1) Availability of fund.(2)

Repairing firms are approved by General Administration Department.

6.

Purchase of books, maps, periodicals, newspapers for official use.

Do.

....

Subject to the condition that all charge incurred are within the Budget allotment sanctioned for the purpose and that no addition is made to the allotments by re-appropriation from any source, without the previous sanction

of Finance Department.

7.

Sanction advance to Government servants for construction, repairs and purchase of house.

Do.

Full powers subject to fulfilment of conditions as laid down by Finance (A & F) Department from time to time. Subject to observance of all rules and procedure and availability of fund.

8.

Write off of the value of unserviceable stores.

Do.

Full powers.

The Standing Condemnation Board constituted by the Governor's Secretariat shall consist of-(i) Secretary -Chairman.(ii) A Technical Officer nominated by Governor's Secretariat -Member.(iii) F.& A.O. of the Governor Secretariat -Member Secretary.

9.

Printing of standardised/non-standardised forms/except money receipt.

Secretary to Governor.

Full powers.

Provided the Government Press expresses inability to supply or the Government Press is unable to supply within 60 days of requisition. In respect of forms of money receipt special orders of Finance Department should be obtained.

10.

Sanction miscellaneous expenditure in any individual case or any subject which no scale limit to its power of sanction is prescribed.

Do.

Up to Rs. 2,000 if recurring in any single case.

Up to Rs. 9,000 in non-recurring in any single case.

Provided that-(1) Budget provision exists.(2)

The expenditure is not on a new service which was not contemplated in the Budget.

11.

Purchase of spare parts, tyres, tubes, and cost of repairs of department vehicles.

Do.

1. For trucks up to 3 years old; Rs. 10,000 for each truck in a financial year.2. For trucks more than 3 years old; Rs. 2,000 for each truck in a financial year.3. For other four wheeler motor vehicles up to 3 years old, Rs. 5,000 for each vehicle in a financial year.4. For other four wheeler motor vehicle more than 3 years old; Rs. 10,000 for each vehicle in a financial year.

Provided that-(1) Budget provision exists.(2)

This being subject to audit a history register should be maintained for each vehicle showing the details of mileage done,

spare parts purchased, major and minor repairs made to the vehicles and cost incurred in respect of each item of expenditure.

12.

Local purchase of stationery articles.

Secretary to Governor.

All articles of stationery which are supplied by the State Stationery Store at Guwahati must ordinarily be obtained from this Store on indent. When supply from this Store is not received and it is absolutely necessary to purchase the articles, local purchase up to Rs. 700 in each case subject to annual limit of Rs. 15,000 may be resorted to by inviting tenders.

13.

(a) Outfit allowances to Aide-de-Camps.

Do.

As may be prescribed by the Ministry of Defence, Government of India from time to time.

Subject to Budget provision.

(b)

For supply of liveries as required by the Governor.

Secretary to Governor.

Full powers.

Subject to-(a) Availability of funds(b)

Observance of procedural and other general direction laid down in the Contingency Manual and special orders issued by Government from time to time.

14.

Expenditure on P.O.L. for Rajbhavan vehicles.

Do.

Full powers.

Subject to Budget provision and maintenance of records like log books etc.

15.

To install casual telephones for V.V.I. Ps./VIPs and Governor's guest at Rajbhavan.

Do.

Full powers.

Subject to Budget provision.

16.

For renewal of furnishing of the official residence of the Governor.

Do.

Full powers.

Subject to Budget provision and relevant instructions issued by the Government from time to time.

17.

To incur expenditure from the contract allowance of the Governor.

Do.

Full powers.

Subject to Budget provision.

18.

To incur expenditure from the tour expenses of the Governor.

Do.

Full powers.

Subject to Budget provision.

19.

(a) Purchase of approved office equipment such as clock, time-piece, table fan, ceiling fan, water filter, etc.

Do.

Up to Rs. 1,000 in each.

Subject to Store Rules, the limit refers except where otherwise stated to cost of such article or any number of articles of the same kind purchased at any time, whether for one office or a number of offices.

(b)

Purchase of furniture for new office or on expansion of existing offices or in replacement of old furniture.

Secretary to Governor.

Full powers.

Subject to scales and types of entitlement of furniture as prescribed by General Administration Department.

20.

To sanction reimbursement for medical facilities to the Governor, his family and staff as prescribed by Government of India's letter No. F. 2/81/78-States, dated 25th January, 1983.

Do.

Subject to Budget provision.

21.

Sanction of expenditure on contingencies e.g. cooking gas, consumable stores for laundry, lump coal heating.

Do.

Do.

Do.

22.

To incur expenditure on the cost of medicines etc. supplied to Raj-Bhavan Dispensary to provide medical facilities to the Governor and his family.

Do.

Do.

Subject to-(1) Budget provision; and(2) The conditions laid down under Government of India's Notification No. GSR 343 (E), dated 30th March, 1987.

23.

To sanction expenditure as "entertainment allowances" for patronising art, culture and music by the Governor.

Secretary to Governor.

Full powers.

Subject to-(1) Budget provision; and (2) The conditions laid down under Government of India's Notification No. GSR 343 (E), dated 30th March, 1987.

Labour and Employment Department

1.

Medical Store.

Administrative Medical Officer under E.S.I. Scheme.

Full powers-(a) when purchase is made through Central Stores Depot or on rate contract or through a duly constituted Purchase Board where on Administrative Department, Finance Department and an Officer of D.H.S. are represented.(b) Otherwise up to Rs. 8.000 (Rupees eight thousand) in each case provided the cost of each item does not exceed Rs. 1.000 (Rupees one thousand).

Subject to Budget provision and provision of the Financial Rules governing the purchase of stores for the Public Service (Appendix 'X' of the Assam Financial Rules).

2.

Equipment and instruments.

....

....

3.

Medical reimbursement-

(a)

Medicines.

Administrative Officer under E.S.I. Scheme.

Up to Rs. 500 (Five hundred).

Subject to the approval of D.H.S.

(b)

Hospitalisation charges.

Do.

Up to Rs. 1,000 (One thousand).

Do.

4.

Miscellaneous-

(i)

Allotment of Budget to DDOS.

Do.

Full powers.

Subject to approval of Labour and Employment Department.

(ii)

Purchase of Typewriters and Duplicating machines.

A.M.O. under ESI Scheme.

Full powers.

Provided-(i) Budget provision exists.(ii)

Purchase is made from suppliers approved by GAD (P&S) at Government approved rate.

(iii)

Repairs of Types-writers and Duplicating machines.

Do.

Up to Rs. 400 annually for each machine.

Subject to-(i) Availability of Fund.(ii)

Repairing firms are approved by GAD (P&S) Department.

(iv)

Repair of Departmental buildings.

Do.

Up to Rs. 8,000 in each case.

Subject to Budget provision and that there is technical personnel competent to scrutinise the estimates and supervise the works and that the rules laid down for departmental construction of public buildings (Appendix VIII of the Assam Financial Rules) are strictly adhered to.

(v)

Sanction of house rent.

Do.

Up to Rs. 1,000 p.m. for each building.

Subject to the condition that (i) Budget provision exists, (ii) The rent is fixed by the competent authority under the Assam Urban Areas Rent Control Act in urban areas, (iii) The D.C. certifies the reasonableness of rent outside the urban areas, (iv) The floor area is in accordance with the standard prescribed by GAD.

(vi)

Purchase of stationery articles including furniture, clocks, etc.

Do.

(a) Stationery articles as mentioned in Col. 5.

(a) All articles' of stationery must ordinarily be obtained from State Stationery Stores at Gauhati on indent When supply from this Stores is not received and it is absolutely necessary to purchase the articles, local purchase up to Rs. 400 in each case subject to an annual limit of Rs. 8,000 may be resorted to by inviting tenders. A non-availability certificate is to be obtained from the State Stationery Stores, and on that basis it is to be certified in each bill that the Stationery Stores is not in a position to supply the stationery. Purchase of fountain-pen is prohibited.

(b) Furniture-Full powers.

(b) Subject to scales and types of entitlement of furniture is prescribed by GAD.

(c) Clocks and other office equipments-up to Rs.500 in each case.

(c) Subject to Store Rules, the limit refers except where otherwise stated to the cost of such article or any number of articles of the same kind purchased at any time, whether for one office or a number of offices.

(vii)

Repair of Departmental vehicles.

A.M.O. under ESI scheme.

(a) For truck-Up to 1,000 per vehicle in a financial year.

Subject to-(i) Budget provision exists.

(b) For other vehicles up to Rs. 7,000 per vehicle in a financial year.

(ii) This being subject to audit, a history sheet should be maintained for each vehicle showing the mileage done, spare parts purchased, major and minor overhauls the vehicle has undergone, repairs undertaken and cost incurred in respect of each item of expenditure.

(viii)

Sanction of advance T.A. for Gazetted Officers and V.I.Ps. for medical treatment.

Do.

....

As provided in the T.A. Rules and as may be certified by the authorised medical attendant in respect of medical treatment subject to adjustment by final bill.

Finance Department

1.

To accord sanction of house building advance to all Financial Advisers, Finance and Accounts Officers, Treasury Officers, Research Officers, Assistant Research Officers, Research Assistants, and any other employees under establishment of Finance Department.

Finance (Staff Inspection Unit).

Full powers.

Subject to (1) fulfilment of conditions laid down by Finance (A&F) Department from time to time; (2) Observance of all rules and procedures and availability of fund.

IV

List of Heads of Department

[See Rule 2(i)]

1. Commissioners of Divisions.
2. Director of Land Records and Inspector General of Registration.
3. The Registrar of Co-operative Societies, Assam.
4. Conservator of Forest, Assam.
5. Director of Survey, Assam.
6. The Legal Remembrancer, Assam.
7. Inspector General of Police, Assam.
8. Director of Public Instructions, Assam.
9. Inspector General of Prisons, Assam.
10. Inspector of Health Services, Assam.
11. Districts and Sessions Judges.
12. Chief Engineer, P.W.D. (Road).
13. Commissioner of Excise, Assam.
- 14.
- Director of Agriculture, Assam.
- 15.

The Commissioner of Taxes, Assam.

16.

Secretary, Assam Public Service Commission.

17.

The Labour Commissioner, Assam.

18.

The Chief Inspector of Factories, Assam.

19.

The Advocate General, Assam.

20.

Commissioner of Transport, Assam.

21.

Director of Economics and Statistics, Assam.

22.

Director of Animal Husbandry and Veterinary, Assam.

23.

Director of Information and Public Relations, Assam.

24.

Director of Panchayat and Community Development, Assam.

25.

Director of Sericulture and Weaving, Assam.

26.

Director, Inland Water Transport, Assam.

27.

Director of Industries, Assam.

28.

Director of Food and Civil Supplies, Assam.

29.

Director of Tourism, Assam.

30.

Director of Soil Conservation, Assam.

31.

Director of Technical Education, Assam.

32.

Director of Printing and Stationery, Assam.

33.

Examiner, Local Accounts, Assam.

34.

The Registrar (Judicial), Gauhati High Court.

35.

Chief Electoral Officer, Assam.

36.

The Chief Inspector of Boiler, Assam.

37.

Director of Geology and Mining, Assam.

38.

Director of Employment and Craft-men Training, Assam.

39.

Director of Fisheries, Assam.

40.

Trade Adviser and Director of Movements, Government of Assam, Calcutta.

41.
State Textile Commissioner, Assam.
42.
Chief Public Health Engineer, Assam.
43.
Director of State Lotteries, Assam.
44.
Director of Small Savings, Assam.
45.
Director of Accounts, Assam.
46.
The Chairman, Assam Administrative Tribunal.
47.
The Town Planner, Assam.
48.
The Director of Municipal Administration, Assam.
49.
The Chief Engineer, P.W.D. (Building).
50.
Director of Sports and Youth Welfare, Assam.
51.
Director of Cultural Affairs, Assam.
52.
Director of Civil Defence and Commandant General, Home Guards, Assam.
53.
Controller of Weights and Measures, Assam.
54.
Director of Financial Inspections, Assam.
55.
Director of Social Welfare and Probation.
56.
Director of W.P.T. & B.C. Assam.
57.
Director, Tribunal Research Institute, Assam.
58.
Director of Pension.

Annexure I

Instructions for the Guidance of Financial Advisers

Financial Advisers appointed under the scheme of financial decentralisation will have to face initially a difficult situation. It will be easier to face that situation if they keep in mind the background for the change. One of the important developments of our time is rapid expansion of public expenditure. So far as the plan expenditure is concerned, the expansion is related to the launching of the development schemes. But expenditure has also increased in departments which are not really development departments. As officers representing the Finance Department the Financial Advisers will be expected to see that the large public expenditure brings commensurate results so that public may not have to sacrifice by way of taxation more than what they got in return in the form of services. In other words, economy should be the guiding principle. But there is the risk of economy being insisted at the expense of results. For instance, by spending slightly more under a certain scheme it may be possible to achieve proportionately bigger result than by rigidly cutting down expenditure to the bone. The economy achieved by cutting down expenditure to the bone under such circumstances will be false economy inasmuch as for the small volume of service the nation will receive it, will have to pay proportionally more. Therefore, the Financial Advisers should always examine whether the expenditure proposed is sufficient to achieve the objects of the scheme.

Scrutiny of schemes before they are provided in the Budget estimates is an important function of the Finance Department. Of late for want of time and for heavy pre-occupations the Budget Department cannot scrutinise all the schemes before provision is made for them in the Budget. What is worse provision is sometimes made in lump which is against the clarions of sound finance, because one cannot scrutinise properly the adequacy of provision made for a service in lump. The Financial Advisers will be expected to help the departments in the preparation of new scheme in detail and moreover will be expected not to allow any item which in his opinion cannot be justified. In cases of difference with the administrative departments he will be expected to refer the matter to Finance (Budget) so that at the time of provision the matter can be gone into. The idea is that after a scheme is provided in details in the Budget it should take no time to issue expenditure sanctions for which the administrative departments themselves have been given necessary delegations. As there has been constant complaint of Budget provision having lapsed or being surrendered for want of timely sanctions the Financial Advisers will not do well to devote sufficient attention to the scrutiny of details of schemes before they are sent to the Budget Department for provision and to ensure that after the Budget is passed and communicated to the administrative departments the schemes meant for implementation during the year are sanctioned expeditiously. Where the existing delegation of the administrative departments is not sufficient to enable them to issue sanction on their own authority the Financial Advisers will be expected to advise the administrative departments to split up the scheme and to send to the part for which the department is not competent immediately to finance for sanction. The Financial Advisers would on the one hand advise the administrative departments freely and on the other keep themselves in close touch with the Finance Department. In order to enable them to come in close touch with the senior officers of the department the administrative departments will be requested formally to utilise their services to the best of their capacity. But the actual use of the services of the Financial Advisers will depend upon the way in which they behave initially. If they can bring a constructive plan to bear upon their work so that the departments begin to treat them as their friends and not as critics, the purpose of the scheme will served. To repeat the purpose of the scheme is to share with the administrative departments a part of the burden which the Finance Department has to shoulder at present, namely the burden of working out schemes in details before they are included in the Budget and secondly the burden of controlling expenditure in public interest.

The Financial Advisers will also be expected to watch the progress of plan expenditure and to report to Finance Department so that the returns required by the Planning Commission may be duly submitted. In addition they will be expected to advise the departments, to raise the necessary debit against the Central Government on account of assistance under various schemes according to the assistance pattern.

A senior officer of the Finance Department will always be available for consultation in case of difficulties and the Financial Advisers are requested to keep themselves in close touch with this officer. They should meet every Saturday at 1 p.m. in the office room of the Secretary, Finance so that they may exchange among themselves and raise points of difficulties of solution.

Annexure II

Duties and Functions of the Finance and Accounts Officers

1. To assist the Head of a Department in the discharges of his responsibilities-

- (i)
for the financial regularity of the transactions under a Budget grant in respect of which the Head of the Department functions as the Controlling Officer;
 - (ii)
for the maintenance of the accounts of the transactions correctly and in the form prescribed under the rules and orders in force; and
 - (iii)
for formulating proposals for expenditure in the Department consistent with the programme of Economic Planning adopted by the Government;
- the Finance Department will post Finance and Accounts Officers to the Head of Departments as the Finance Department consider necessary.

2. (a) The function of the Finance and Accounts Officers are two-fold :

- (i)
as Finance Officer i.e., as the adviser to the Head of the Department in all matters relating to the Budget Estimates Supplementary Demands, Advances for the Contingency Fund, regularisation thereof, Schemes of Development

continuing and new, and to the operation of financial rules; and

(ii)

as Accounts Officer, i.e., as the officer exercising supervision over the regular and correct compilation of all accounts that are required to be compiled and maintained in the Heads of Departments offices.

(b)

In the discharge of these duties he is expected to keep himself fully conversant with all sanctions and orders passing through the office of the Head of the Department and with other proceedings of the Head of the Department and his subordinates which may have effect on the estimate or amounts or actual or anticipated receipts receipts and charges. He should advise the Head of the Department on the financial effect of all proposals for expenditure and keep watch as far as possible over all liabilities as they are incurred against the grants under the control of the Head of the Department, who should also see that the Finance and Accounts Officer is given the fullest opportunity of becoming conversant with these sanctions and orders and proceedings.

3. (i) The Finance and Accounts Officer is responsible for the arrangement for punctual compilation of correct accounts and statistics which are to be submitted by the Head of the Department to the higher authorities and to the Accountant General as required by the existing rules and orders and as called for by them from time to time;

(ii)

He should scrutinise over all matters relating to the appropriation accounts and disposal of audit objections;

(iii)

In all matters concerned with personal claims of Government servants, the F.A.O. is expected to give ex parte advice, and help; and

(iv)

He will render help to the Heads of the Department in the matter of watching the realisation of Government dues including revenues and loans.

4. The Finance and Accounts Officer is also required to exercise a general supervision over the Accounts Branch of the office of the Head of the Department and to inspect the accounts branches of the subordinate officers under the Head of the Department and to report to him all defects noticed in course of the work of supervision or inspection.

5. (i) Any serious financial irregularities should be brought immediately to the notice of the Head of the Department in writing with copy to the Administrative Department concerned and the Finance Department; and

(ii)

Any infructuous or unnecessary or avoidable expenditure should be brought to the notice of the Head of the Department in writing with copy to the Administrative Department concerned.

6. For due discharge of his duties and functions the Finance and Accounts Officer, should be provided by the Head of the Department with the requisite facilities by placing the entire sanctioned Accounts staff of his office under the supervision and control of the Finance and Accounts Officer.

7. The Head of the Department has a right to seek the advice of the Accountant General or the Government in the Administrative Department or the Finance Department in all matters connected with the accounts to be compiled and maintained in his office or the application of the financial rules and orders concerning which there may be any doubt. It will unusually be desirable, however, that he shall first obtain the advice of the F.A.O, who is specially trained for the duty and this should be done in writing in all cases.

Annexure III

Authority to Execute Instruments

A. General

Nature of instrument

By whom to be executed

1.

All deeds and instruments relating other than those specified elsewhere in this resolution.

By a Secretary to Government.

2.

Contracts and other instruments in matters connected with the lease of land-

(a) If the be permanent.

By Deputy Commissioners.

(b) If otherwise.

By Settlement Officers, Deputy Commissioners
and Sub-Divisional Officers.

3.

(a) Contracts and other instruments in matters
connected with the hire or purchase of land or building or with
the sale of Government land or with the lease or sale of
Government building or with prospecting and exploring licences
and mining leases.

By Deputy Commissioners.

(b) Contracts, instruments and engagements
specified above when the value or amount of such contract,
instrument or engagement does not exceed Rs. 500.

By Assistant Commissioners and Sub-Divisional
Officers.

4.

Contracts and other instruments not included in
Art. 3 in matters connected with the lease of ferries, fisheries
and other benefits arising out of land.

By Deputy Commissioners and Sub-Divisional
Officers.

5.

Contracts for the supply of articles required
for the use of any Department or for the sale of articles
produced or manufactured by the Department and for the execution
of Public Works otherwise than through the agency of the Public
Works Department and other instrument connected with the
Administration of the Department.

By the Head of the Department.

6. []

[Item 6 amended vide No. 42 (FE 1973/67/16, dated 29-6-1967).]

Contracts and other instruments not included
in Art. 3 for the sale, purchase, supply, carriage or conveyance
of stores and building materials and for the provision of labour
and for the execution of Public Works Department and such like
engagements etc.

By Deputy Commissioners and Director of
Fisheries, Assam, as the case may be.

7.

Contracts for the supply of articles produced
in the local markets for hospitals, lunatics asylums, etc.

By the Civil Surgeon, Sub-Divisional Officer or
Superintendent, as the case may be.

8.

Contracts and other instruments relating to
house building and other advances.

By authorities granting the advances.

9.

Bonds executed by a Government Stipendiary.

By a Deputy Commissioner or Secretary to the Government of Assam.

10.

Deeds and instruments relating to supply of food and drinks by contractors in Circuit Houses and Dak Bangalows.

By the Deputy Commissioner or a Sub-Divisional Officer, as the case may be.

B. In the case of the Public Debt and Currency Department, Treasuries and Account Offices

1.

Mortgage deeds given as security in connection with the employment of officers as Treasurers and Shroffs in District or Sub-District Treasuries and agreements entered into with such officers.

By Deputy Commissioners.

2.

Mortgage deeds given as security in connection with the employment of Treasurers, cashiers or clerks in Accounts offices, charged with the disbursement of money or the custody and handling of securities.

By the Head of Office.

3.

Instrument relating to the reassignment of the insurance policies which are assigned to the Governor of Assam in accordance with the rules regulating the General Provident Fund.

By the Accounts Officer of the Fund as defined in the rules of the Fund.

4.

Deeds of re-conveyance of security given by Shroffs in District and Sub-District Treasuries.

By the Deputy Commissioners and Governor of the Reserve Bank of India.

5.

Treasury Bills and other Government securities issued by the Government of Assam in respect of any loan contracted under the provisions of the Constitution.

By the Governor or a Deputy Governor of the Reserve Bank of India.

C. In the case of the Public Works Department (Subject to any limit fixed by Departmental Orders)

1.

All instruments relating to purchase, supply and conveyance or carriage of materials, stores, machinery, etc.

By Chief Engineer, Superintending Engineer, Divisional Officers and Sub-Divisional Officers.

2.

All instruments relating to the execution of works of all kinds, connected with buildings, bridges, roads, tanks, reservoirs and embankments and also instruments relating

to the construction of water works, sewage works and the erection of machinery.

.....

3.

Bond of auctions and security bonds for the due performance and completion of works.

.....

4.

Security bonds for the due performance of their duties by Government servants whom the officers specified have power to appoint.

.....

5.

Leases for grazing cattle on road sides, and instruments relating to the sale of grass trees, or other produce on road sides.

By Chief Engineer, Superintending Engineers and Divisional Officers.

6.

Leases of houses, land or other immoveable property, provided that the rent reserved shall not exceed Rs. 5,000 a month

.....

7.

All instruments connected with the re-conveyance of property given as security.

....

8.

Instruments connected with the collection or farming of tolls at bridges or ferries or other means of communication provided by the State Government.

By Chief Engineer, Superintending Engineers and Divisional Officers.

9.

Arrangements relating to the loan of tools and plants to contractors and others.

By Divisional Officers and Sub-Divisional Officers.

10.

All deeds and instruments relating to any matters other than those specified in heads 1 to 9.

By a Secretary to the Government.

D. In the of Forest Department

Contracts and other instruments in matters connected with the administration and working of forests and with the business of the Forest Department generally.

By the Secretary to the Government of Assam in the Forest Department exceeding Rs. 25,000.

E. In the case of the Survey Department

1.

Contracts of agreements for the supply of

Survey instruments.

By the Director of Survey, Assam.

2.

[****]

[Item Nos. 2 to 5 have been deleted vide FEB 245/86 (U/0)/3, dated 12th August, 1986.]

3.

[****]

[Item Nos. 2 to 5 have been deleted vide FEB 245/86 (U/0)/3, dated 12th August, 1986.]

4.

[****]

[Item Nos. 2 to 5 have been deleted vide FEB 245/86 (U/0)/3, dated 12th August, 1986.]

5.

[****]

[Item Nos. 2 to 5 have been deleted vide FEB 245/86 (U/0)/3, dated 12th August, 1986.]

F. In the case of the Public Health

Department

Contracts for the supply of calves to the
Vaccine Depot.

By the Officer-in-charge of the Vaccine Depot.

G. In the case of the Agricultural Department

1. []

[Item 1 has been amended vide No. 42 (FE 1973/67/16,dated 2-6-1967).]

Contract for-(a) Supply of
articles required by the Department.(b) Sale of articles
produced or manufactured by the Department.(c) Execution of
public works relating to and placed under the executive control
of the Department.

By the Director of Agriculture, Additional
Director of Agriculture, Joint Director of Agriculture,
Principal, Assam Agricultural College, Principal, Gram Sevak
Training Centre, Regional Agricultural Engineers, District
Agricultural Officers and other Officers of Assam Agricultural
Service Class, I, and Sub-Divisional Agricultural Officers to
the extent up to which they can accept tenders for such supply,
sale and execution.

(d) Carriage or conveyance of Stores of the
Department.

District Agricultural Officer and Regional
Agricultural Engineer.

2.

Agreements for hiring out Departmental
Tractors, Bulldozers, Power Pumps, Trucks, Tools, Implements,
Plant Protection Equipments to private individuals.
District Agricultural Officers, Regional
Agricultural Engineers, Assistant Agricultural Engineers,
Sub-Divisional Agricultural Officers.

3.

Agreements relating to credit sale of articles
from Agricultural Farms and Seed Depots.
District Agricultural Officers and
Sub-Divisional Agricultural Officers.

4.

Contract relating to farming of lands to
Adhiars.

District Agricultural Officers.

5. []

[Item 5 amended vide No. 42 (FE 1973/67/16, dated 29-6-1967).]

Agreements and bonds for sale of articles by
the Department on hire purchase system or cash-cum-credit sale
terms.

Regional Agricultural Engineers, District
Agricultural Officers and Sub-Divisional Agricultural Officers.

6.

All deeds and instruments relating to any
matters other than those specified in items 1 to 5 above.

Director of Agriculture.

H. In the case of the Supply Department

1.

All instruments relating to the trade purchase
of rice and paddy and products thereof.

By a Secretary to Government, the Director of
Supply (Procurement), Deputy and Assistant Director of Supply
(Procurement).

2.

All instruments relating to contracts for
payment of handling and transport of rice and paddy and product
thereof.

By a Secretary to the Government, the Director
of Supply (Procurement).

3.

Security bonds for the due performance and
completion of contracts by Traders, Millers, Contractors and
Agents.

By a Secretary to the Government, Director,
Deputy Director and Assistant Director of Supply including
supply Procurement.

4.

All deeds and instruments relating to matters
other than those specified in items 1 to 3.

By a Secretary to the Government.

I. In the case of the Transport Department

1.

All deeds and instruments relating to Transport
Department.

By a Secretary to the Government.

J. In the case of the Community Projects
Department

1.

Short term agricultural loans for fertilizers,
manures, improved seed used of pumping set, etc.

By the Deputy Commissioners and Sub-Divisional
Officers as the case may be.

2.

Medium term agricultural loans for purchase of bullocks, improved agricultural implements, pumping sets, etc.

.....

3.

Loans for rural housing especially to landless cultivators.

.....

4.

Loans for Cottage and Small Scale Industries and for improvement of inland fisheries.

K. In the case of the Relief and Rehabilitation Department

1.

Rehabilitation loans under the Assam Displaced Persons (Rehabilitation Loans) Act, 1951.

By the Deputy Commissioners, Sub-Divisional Officers, Additional Relief and Rehabilitation Commissioner, Assam, Silchar, as the case may be.

L. In the case of the Planning and Development Department

1.

Loans for housing under the rules for the grant of Housing Loans in Assam.

By the Deputy Commissioners and the Sub-divisional Officer, as the case may be.

Annexure IV

3. Miscellaneous Branch

No. CPM 39/55/378, dated Shillong the 23rd, May, 1960.

From : Shri P.H. Trivedi, I. A .S.

Deputy Development Commissioner and Ex-officio Joint Secretary to the Government of Assam, Development (Community Projects) Department, Shillong.

To

All Deputy Commissioners.

Subject : Sanction to expenditure on "Contingencies" under Project/Block Headquarters.

Sir,

I am directed to invite a reference to the Government letter No. CPPS 104/58/11, dated 8th September, 1958 and to issue the following clarifications in partial modification of the instructions in para 3 of the circulars.

In the Paragraph referred to above, it has been mentioned inter alia that schemes under the minor-head project/block headquarters will be sanctioned by Deputy Development Commissioner (Community Project).

As a matter of fact however no development scheme is envisaged against the provision under the minor head. The entire provisions meant for pay and allowances for staff in the revised pattern and expenditure of contingent nature for such establishment. While sanction to the creation and retention of the posts of different categories will continue to be accorded by the Deputy Development Commissioner with the concurrence of Finance, where necessary, it is only fair that powers to sanction expenditure of contingent nature be delegated to the D.Cs. /P.E.Os./A.P.E.Os. to the extent necessary to obviate delay in the issue of sanction, etc. It will also be seen from the Schedule of powers at Annexure 'B' that with regard to certain item of expenditure such as repairs and maintenance of jeeps necessary powers have been specifically delegated to P.E.Os./A.E.Os.

It is therefore clarified further that the power to incur expenditure of contingent nature against item (v) contingencies may be exercised by the D.Cs./ P.E.Os./A.P.E.Os. to the extent mentioned therein in the respect of provisions made under the head project (block headquarter). This would mean that sanction to the entertainment of punkha pullers, sweepers,

purchase of furniture, etc., against provision under contingencies may be accorded by the D.Cs./P.E.Os./A.P.E.Os. to the extent covered by delegation.

Yours faithfully

Deputy Development Commissioner, and

Ex-officio Joint Secretary to the

Government of Assam, Development

(Community Projects) Department, Shillong.

Development (Community Projects) Department Projects Branch

Notification No. CPPS. 104/58/11, dated Shillong, the 8th September, 1958

From

Shri Rana, K.D.N. SINGH, I.A.S.

Additional Secretary to the

Government of Assam and Deputy Development

Commissioner (Community Projects) Shillong.

To

All Deputy Commissioners.

Subject : Revised Procedure for sanction to schemes under C.D. Programmes.

Sir,

I am directed to state that in order to ensure prompt sanction and speedy implementation of schemes framed under the schematic budget of the C.D. Programme, it is considered desirable to modify the present procedure of sanctioning such schemes, and to invest the Deputy Commissioners with powers to sanction the schemes after getting the approval of local heads of technical and development departments, subject to the conditions and exceptions detailed below.

2. Revised schematic budgets for blocks in stages 1 and II are being communicated with the concurrence of Finance Department separately to all Heads of Departments, Deputy Commissioners, Sub-divisional Officers and Project Executive Officers/Assistant Project Officers. Detailed schemes should be framed, keeping in view, the financial allocation available for the respective item or head in the revised schematic budgets.

3. Block Headquarters staff and Housing for block staff.

In respect of the expenditure on schemes of the following categories, the Deputy Development Commissioner would remain the competent sanctioning authority, irrespective of the amount involved.

Staff and contingencies under minor heads (i) Block Headquarters (Group I); and (ii) Housing for project staff and Rural Housing (Group X) of the schematic budget.

Since there is no provision for staff under any minor head except Block headquarters, the detailed schemes, could not include provision for any staff except minimum work charged staff, muhorrir under "Communications" or a bull attendant under "Key Village" scheme under exceptional circumstances. Subsequent approval of Deputy Development Commissioner should be separately obtained by the sanctioning authority for inclusion of such staff.

4. Irrigation

(A)

The Deputy Commissioner may sanction any scheme under "irrigation" which does not involve an outlay exceeding Rs 50,000, provided-

(i)

the Block Development Commissioner has approved the scheme.

(ii)

such scheme involving an outlay of more than 10,000 but not exceeding Rs. 25,000 has been technically examined and approved by Executive Engineer, Public Works Department or involving an outlay of more than more than Rs. 25,000 but not exceeding Rs. 50,000 is technically examined and approved by the Superintending Engineer, Public Works Department.

(B)

The Deputy Development Commissioner may sanction any scheme involving an outlay exceeding Rs. 50,000, provided (i) the Block Development Committee has approved the scheme, and (ii) the scheme has been technically examined and approved by the Chief Engineer, Public Works Department.

5. Sanctioning Powers of Deputy Commissioner

(a)

Scheme within item-wise provision in the budget. - Subject to the conditions and exceptions in paragraphs 3 and 4 above, the Deputy Commissioner may sanction schemes involving an outlay not exceeding that provided in the respective item of schematic budget, provided (i) the approval of the Block Development Committee is obtained, (ii) where necessary, the approval of local head of the technical department has been obtained.

(b)

Scheme exceeding the item-wise provision or loan or other than loans provision but within the allotment for the respective head of development. - The Deputy Commissioner may sanction schemes involving an outlay exceeding the financial allotment of the respective item, or exceeding the loan or other than loan provision of the respective item as shown in the schematic budget, provided (i) the outlay involved does not exceed the total financial allotment for the respective head of development in the schematic budget and or for the total loan or other than loan provision, for the respective head of development, as the case may be, (ii) prior approval of the Head of the Department concerned is obtained (Annexure A), (iii) the Block Development Committee has approved the scheme.

Illustrations. - Scheme for "Demonstration equipment etc." and "A. I. Centres under A. H. Extension," involving an outlay of Rs. 10,000 and Rs. 15,000 respectively as against budgetary provisions of Rs. 15,000 and Rs. 20,000 respectively may be sanctioned by the Deputy Commissioner provided the conditions (i), (ii) and (iii) above are satisfied.

(c)

Re-appropriation between items within the allotment for a ahead of development in the schematic budget. - The Deputy Commissioner may sanction re-appropriation of funds between item within the same head of development of the extent necessary, consequent upon the sanction of schemes under (b) above; provided : (i) Such re-appropriation does not exceed the provision under demand other than loan prescribed for the respective head of development; (ii) prior approval of the Head of the Department concerned is obtained (Annexure A).

Sanction for such re-appropriation should be communicated by the Deputy Commissioner to Project Executive Officer/Assistant Project Officer with copy endorsed to Deputy Development Commissioner (Community Projects) Department, Finance Department and Accountant General, Assam.

6. Sanction of schemes involving re-appropriation between development heads. - (a) Schemes involving an outlay exceeding either the total provision, prescribed for the respective development head, or exceeding the loan or other than loan provision of the respective development head, the excess being proposed to be met from the savings from the provisions for any other development head or loan or other than loan provision for any other Development head, as the case may be, may be sanctioned by the Deputy Development Commissioner with the concurrence of Finance Department. When the local circumstances justify such a course such schemes shall be submitted by the Deputy Commissioner together with his recommendation and the recommendation of the Block Development Committee to the Deputy Development Commissioner who will take action in consultation with the head of the relevant Department.

Illustration. - In case of schemes under A.H. Extension involving an outlay of Rs. 40,000 under loan and of Rs. 30,000 under other than loan as against Rs. 30,000 for loan and Rs. 25,000 for other than loan prescribed under that head in the schematic budget the excess provisions of Rs. 10,000 under loan and Rs. 5,000 under other than loan, being proposed to be met from savings under the respective detailed heads under "Agriculture Extension". Such schemes under Animal Husbandry Extension" will have to be submitted to Deputy Development Commissioner for sanction.

(b)

All proposals or re-appropriations involving allocations in excess of the limits laid down for 'loan' and 'other than loan' in respect of any head of development, the excess being proposed to be met from the savings under any other head of development should similarly be forwarded to the Deputy Development Commissioner for sanction with the concurrence of Finance Department and in consultation with the head of department concerned to the extent of funds available in the schematic budget. For example, if a re-appropriation is proposed so as to provide revised allocations to a total of Rs. 70,000 under 'Education' the excess of Rs. 10,000 being proposed to be met by reducing the allocations in the scheme under 'Social Education' by Rs. 10,000 (both the excess and education being under 'other than loan') while the allocations made in the scheme sanctioned originally were within the limits laid down in the schematic budget, viz., Rs. 10,000 and Rs. 70,000 respectively, the proposal for re-appropriation should be submitted to the Deputy Development Commissioner (C.P.) for sanction.

7. As the revised procedure mainly aims at expediting sanction and initiation of work-

(a)

the Project Executive Officers and the District Head of Development Departments should ensure that the schemes are drawn up and submitted to the Deputy Commissioner and sanctioned with the least possible delay.

(b)

The Deputy Commissioner should ensure that any scheme or any proposal for re-appropriation received by him and within his powers of sanction, is scrutinised and sanctioned within a month from the date of receipt. Whenever the concerned Head of Department's prior approval is necessary, such approval should be obtained as soon as possible.

8. As the Deputy Development Commissioner will remain the controlling authority for all expenditure under the Community Development Programme; and accounts/statement reports in connection with budget and accounting relating to Community Development Programme will be submitted to him direct by the Project Executive Officer/Assistant Project Officer under intimation to Deputy Commissioner/Sub-Divisional Officer. The Deputy Commissioner should also keep the Deputy Development Commissioner posted with all necessary information required for reports, progress reviews, etc., from time to time. Instructions on budget and accounting as well as explanation of the financial implications of the provisions in the schematic budgets and programmes falling thereunder are being issued separately.

9. The procedure outlined above, will apply to blocks in respect of both stage I and stage II as well as the Community Development blocks.

10. Delegation of powers dealt with foregoing paragraphs will apply to sanction of schemes under the different development heads. The financial and other powers delegated to the Deputy Development Commissioner, Deputy Commissioner, Project Executive Officers and Assistant Project Officers under the revised procedure are as shown in pages, 66-74. This supersedes orders issued under Government letter Nos. CPE 25/54/22, dated 6th March, 1954, CPE. 25/54/59, dated 5th April, 1954, CPE. 25/54/70, dated 6th July, 1954, CPE. 25/54/86, dated 2nd August, 1954, CPE. 25/54/87, dated 6th September, 1954, CPE. 25/54/118, dated 11th November, 1954, CPE. 114/53/180, dated 16th March, 1955, and CPA. 69/57/3, dated 6th July, 1957.

It is requested that the implications of the revised procedure, together with the changes involved in preparing the schemes and obtaining the sanction thereof may be explained in detail to all concerned by you in a meeting of all officers concerned. Any clarification necessary to clear up any ambiguity or to meet any difficulty, may be asked for as early as possible.

Yours faithfully

Additional Secretary to the Government of
Assam and Deputy Development, Commissioner,
(Community Projects) Department Shillong.

Annexure 'A'

Head of Development

Head of Department

1.

Agriculture.

Director of Agriculture.

2.

Veterinary and Animal Husbandry.

Director of Animal Husbandry and Veterinary.

3.

Fisheries.

Director of Fisheries.

4.

Irrigation.

Director of Agriculture for small schemes upto Rs. 10,000 (E and S. E. E. and D. up to Rs. 50,000) and Deputy Development Commissioner for bigger schemes over Rs. 50,000.

5.

Reclamation including Soil Conservation.

....

6.

Health and Rural Sanitation.

Director of Health Services.

7.

Education.

Director of Public Instructions.

8.

Social Education.

-do-

9.

Communication.

Deputy Development Commissioner (Community Project)

Department.

10.

Rural Arts, Crafts and Industries.

Secretary, Village Industries who will communicate approval and take other necessary action through Joint Director of Cottage Industries or Joint Director of Sericulture and Weaving, as the case may be.

Annexure B

Development (Community Projects) Department

Notification No. CPPS. 104/58/4, dated Shillong, the 29th February, 1960. From : Shri B.M. Dam, I.A.S.

Deputy Development Commissioner and Ex-officio Additional Secretary to the Government of Assam, Development (Community Project) Department, Shillong.

To

The Accountant General, Shillong.

Subject : Delegation of powers to the Deputy Commissioners to create temporary posts.

Sir,

I am directed to convey sanction of the Governor of Assam, to the delegation of powers to the Deputy Commissioners to create temporary posts under the Community Development Programme in the scale of pay, the minimum of which does not exceed Rs. 60 per month for a period up to one year on the following conditions :

(a)

Availability of funds in the budget;

(b)

The post should be in the standard scale of pay sanctioned by Government for that particular category of post;

(c)

Observance of instructions regarding staff composition and work standard where prescribed;

(d)

Creation of the post has the concurrence of the District Technical Head as a requirement under the approved policy and programme of the Department;

(e)

No higher initial pay or premature increment or special pay can be given without sanction of Government in the Finance Department;

(f)

Copies of all sanctions should be forwarded to the Finance (B.II) Department;

(g)

Sanction to the further continuance of such posts will require the concurrence of the Finance Department.

Deputy Development Commissioner and Ex-officio Additional Secretary to the Government of Assam, Development (Community Project) Department, Shillong.

Development (Community Projects) Department Establishment Branch

Notification No. CPED 131/58/24, Shillong, dated the 18th March, 1960. From : Shri B.M. Dam, I. A. S. Deputy

Development Commissioner and Ex-officio Secretary to the Government of Assam, Development (C.P.) Department, Shillong.

To,

The Accountant General, Assam, Shillong.

Subject : Delegation of powers.

Sir,

I am directed to say that the Governor of Assam is pleased to delegate the following powers the Deputy Development Commissioner (C.P.) subject to the conditions mentioned hereafter:

(1)

Powers to create posts in the Pre-extension Stage Blocks as per list at Annexure 'A' with the opening of such blocks;

(2)

Powers to create post as per list at Annexure 'B' with the conversion of pre-extension Blocks into Stage I inclusive of the posts as at Annexure 'A';

(3)

Powers to retain the posts as per Annexure 'C' Stage II Blocks on their conversion into Stage II.

The above delegation of powers is subject to the following conditions and limitations :

(1)

Provision of funds in the schematic Budget concerned;

(2)

Existing staffing pattern prescribed by Government of India being not changed;

(3)

The scales of pay for different categories of posts being kept the same as sanctioned by Finance Department for corresponding Schemes;

(4)

One copy of the sanctioning letter to be sent to Finance Department; This has the concurrence of the Finance Department.

Yours faithfully,

Deputy Development Commissioner and Ex-officio

Additional Secretary to the Government of Assam,

Development (Community Projects)

Department, Shillong.

Annexure 'A'

Staffing Pattern for Pre-Extension Blocks

Block Development Officer or Project Executive Officer or

Assistant Project Executive Officer as the case may be

...

1

Extension Officer (Agriculture)

...

1

Gram Sevak

...

5

Lower Division-cum-Typist

...

1

Office Peon

...

1

Personal Orderly of B.D.O or P.E.O. or A.P.E.O. as the case may be

...

1

Annexure 'B'

Block Development Officer or Project Executive Officer or
Assistant Project Executive Officer, as the case may be

...

1

Medical Officer

...

1

Extension Officer (Veterinary)

...

1

Extension Officer (Agriculture)

...

1

Extension Officer (Panchayat)

...

1

Overseer

...

1

Social Education Organisers

...

2

Gram Sevaks

...

10

Gram Sevikas

...

2

Progress Assistant

...

1

Upper Division Assistant

...

1

Accountant-cum-Store-keeper

...

1

Lower Division-cum-Cashier

...

1

Typist-(Lower Division)

...

1

Driver

...

1

Class IV servants

...

4

Stockmen (Veterinary)

...

2

Messenger (Veterinary)

...

2

Compounder

...

1

Sanitary Inspector

...

1

Midwife

...

4

Sweeper

...

2

Annexure 'C'

Staffing Patterns for Stage II Block

Block Development Officer or Project Executive Officer or

Assistant Project Executive Officer, as the case may be

...

1

Extension Officer (Agriculture)

...

1

Extension Officer (Veterinary)

...

1

Extension Officer (Panchayat)

...

1

Overseer

...

1

Social Education Officer

...

2

Gram Sevaks

...

10

Gram Sevikas

...

2

Progress Assistant

...

1

Upper Division Assistant

...

1

Accountant-cum-Store-Keeper

...

1

Lower Division-cum-Cashier

...

1

Typist (Lower Division)

...

1

Driver

...

1

Class IV servants

...

4

Finance Establishment (B) Department

Notification No. FEB. 95/77/40, dated Dispur, the 6th March, 1978.

From : Shri. D. Choudhury, A.C.S.

Deputy Secretary to the Government of Assam, Finance Department.

To:

All Administrative Departments.

Subject : Delegation of power of sanctioning permanent retention of temporary post.

Sir,

In supersession of this Department Letter No. FE. 1163/75/1, dated 5-8-1976, I am directed to say that in pursuance of the Government assurance, the Governor of Assam is pleased to delegate the powers of sanctioning permanent retention of temporary posts continuing for 5 years or more in the manner prescribed below and subject to fulfilment of the conditions indicated thereunder.

Power Delegated

1. In case of any post for which the appointing authority is at the District Level, the power of permanent retention of temporary post is delegated to the District Authority.

2. In case of any post for which the appointing authority is the Head of the Department the power of delegation of permanent retention of temporary post is delegated to the Head of the Department.

3. In case of any non-Gazetted post for which the Government is the appointing authority, the power of delegation of permanent retention of temporary post is delegated to the Head of the Department.

4. In case of Gazetted post like Registrar in the Heads of Departments the power of delegation of permanent retention of such temporary post is delegated to the Secretary of the Administrative Department of the respective Heads of Department.

5. In case of some Gazetted posts, namely :

(i)

Administrative Officer in the Heads of Department;

(ii)

Superintendent in Assam Secretariat;

(iii)

Stenographer Grade 1 in the Assam Secretariat the power of delegation of permanent retention of such temporary post is delegated to the Chief Secretary to the Government.

6. In case of any other Gazetted post for which the Government is the appointing authority, the existing procedure of the Administrative Department making the post permanent with the approval of the Finance Department may continue.

Conditions to be fulfilled

The above delegations are subject to fulfilment of the following conditions :

1. The Department/ Office itself must be a permanent one;

2. The posts to be retained permanently must have continued for 5 years or more from the date of their original sanction;
3. The posts should not be of temporary nature sanctioned for specific work and for a specific period;
4. The posts are not against any scheme which is taken up purely on an experimental measure on an ad-hoc basis;
5. A copy of the orders sanctioning permanent retention must be endorsed to the Heads of Department (if the appointing authority is subordinate to him); to the Administrative Department (if the Appointing Authority is the Heads of Department); to the Finance Department (if the Appointing Authority is the Governor) together with a statement as per proforma given below :

Sl. No.

Category of posts.

No. of posts.

No. and date of the letter/letters under which
the post/posts/was/ were originally created.

Remarks.

- 1
- 2
- 3
- 4
- 5

This will take effect from the date issue.

Yours faithfully

Deputy Secretary to the Government of Assam,

Finance Department

Finance Establishment (B) Department

Notification No. FEB. 95/77/55, dated Dispur, the 15th February, 1980

Office Memorandum

Subject : Delegation of powers of sanctioning permanent retention of temporary Gazetted posts.

In pursuance of the Government assurance the Governor of Assam is pleased to modify the provision of para 6 of this Department Letter No. FEB. 95/77/40, dated 6th March, 1978 in the matter of delegating the powers of sanctioning permanent retention of temporary Gazetted post continuing for 5 (five) years or more in the manner prescribed below and subject to fulfilment of the conditions indicated in this Department Letter No. FEB. 95/77/40, dated 6th March, 1978.

Power delegated

"6. In case of any other Gazetted posts for which the Government is the appointing authority the power for sanctioning permanent retention is delegated to the Administrative Department of the Government subject to fulfilment of the conditions as indicated in Finance (Establishment B) Department's Letter No. FEB. 95/77/40, dated 6th March, 1978 and submission of the report as per proforma given below as and when such posts are permanently retained."

Proforma

Sl. No.

Category of post.

No. of posts.

No. & date of the letter/letters under which
the post/posts was/were originally created.

No. & date of the letter of the last renewal.

Remarks, if any.

- 1
- 2
- 3
- 4
- 5
- 6

This will come into force from the date of issue of this Office Memorandum.

Secretary to the Government of

Assam, Finance Department.

Related AI tags, queries and research notes

Translation